

Message 1 of 148

FW: Going Down Deep to Get to the Bottom to stay on Top

Sender	liz.taylor@enron.com
Recipients	['richard.causey@enron.com', 'rick.buy@enron.com', 'raymond.bowen@enron.com']
File	kitchen-l/_americas/esvl/408.

-

---Original Message---

From: Sherriff, John Sent: Friday, November 30, 2001 2:59 AM To: Whalley, Greg; Frevert, Mark; Taylor, Liz Subject: Going Down Deep to Get to the Bottom to stay on Top

Well our "Administration" feels a lot more like a liquidation. I am not sure how much longer I will have access to Enron House in London. They shut off my outgoing calls on my cell phone yesterday but our email still works. They are totally focused on preserving value for our creditors and will spend little resource on protecting Enron or Directors of Enron companies outside of EEL. Michael and I are still trying to work these other issues on Enron's behalf.

Two critical things that Michael is working on: * Working with the regulators on an orderly windown of our business. This is a challenge because PWC's initial take on the situation is to nominate everything at zero. * Getting an agreement in place to have some Enron corp people get access to the building and files so that we can work on other Enron companies and issues that do not fall under the EEL umbrella. But they have the keys to the building and they hit pretty fast. For example to save paper, they have now shut off all the printers. We are using Jim Hughes as the focal point for this. And here the major contact besides Michael is Eric Shaw at 3

So anyway here is how you can get ahold of me if our normal Enron communications break down further:

FYI

my home number is 01732-832-807 email address LSherriff@btinternet.com home cell number is 07811454933

And Michael's home number is 011-44-1582-760-140

John

Message 2 of 148

Important Communication-Relocation Services

Sender	announcements.enron@enron.com
Recipients	[]
File	kitchen-l/_americas/esvl/268.

We are pleased to announce The MI Group (MI) as our new vendor to provide international relocation services. All international moves are to be handled by MI. At the time of your repatriation/relocation, MI will provide assistance based upon the terms of your assignment. MI may be contacted as follows: John Branigan Willie Bailey The MI Group 3500 Claymoore Park Drive Houston, TX 77043 Tel 713 460 0192 or 1 800 223 7911 Fax 713 460 4382 www.themigroup.com john.branigan@themigroup.com willie.bailey@themigroup.com

MI will be able to work with many of the same shipping agents that the previous vendor was using to provide a seamless transition. If you have already started the relocation process, please call or email MI to provide your contact information. Global Employee Services is working to support you during this difficult time for all of us. As a reminder, you may contact the appropriate person below with questions: Compensation Rebecca Longoria 713-646 9679 Benefits Linda Hallmark 713-646 9678 Relocation Bobbi Tessandori 713-345 2809 Tax Michael B Jones 713-345 5859

Timothy J. Callahan Director, Global Employee Services Enron Corp 333 Clay Street, Suite 1047 Houston, Texas 77002
Telephone: 713.646.9565 Fax: 713.646.9501

Message 3 of 148

FW: Dynegy Master Netting/Sithe

Sender	carol.st.@enron.com
Recipients	['s..bradford@enron.com', 'tanya.rohauer@enron.com', 'louise.kitchen@enron.com']
File	kitchen-l/_americas/esvl/556.

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-8537 (fax) 281-382-1943 (cell phone) 8774545506 (pager)
281-890-8862 (home fax) carol.st.clair@enron.com

-----Original Message-----

From: Murphy, Harlan Sent: Tuesday, November 13, 2001 9:44 AM To: St. Clair, Carol Cc: Tweed, Sheila Subject: RE: Dynegy Master Netting/Sithe

The MNA covers form commodity and trading agreements entered into between specified Dynegy and Enron entities. I spoke with Sheila Tweed (who did the Sithe deal) about this and we got comfortable that no aspects of the Sithe deal were done under the form trading agreements or between the specified entities. In addition, the Enron Corp. Guaranty that will be used in connection with the MNA will not supersede the Enron Corp. Guaranty issued in connection with the Sithe transaction.

Harlan E. Murphy Enron Wholesale Services - Legal 1400 Smith Street, EB 3811 Houston, Texas 77002 Tel: 713.345.2679 Fax: 713.646.3490 E-mail: Harlan.Murphy@Enron.com

-----Original Message-----

From: St. Clair, Carol Sent: Tuesday, November 13, 2001 8:43 AM To: Murphy, Harlan Cc: Rohauer, Tanya Subject: Dynegy

Harlan: Can you send me an e-mail explaining how the Sithe contract (which I know nothing about) is not part of the Dynegy MNA? Thanks.

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-8537 (fax) 281-382-1943 (cell phone) 8774545506 (pager)
281-890-8862 (home fax) carol.st.clair@enron.com

Message 4 of 148

RE: Meeting this week-end

Sender	louise.kitchen@enron.com
Recipients	['greg.whalley@enron.com', 'm..presto@enron.com', 'tammie.schoppe@enron.com', 'louise.kitchen@enron.com']
File	kitchen-l/sent_items/203.

UBS CONTACTS

IN HOUSTON WEEKEND OF JANUARY 19/20 Position Home Work Cell Other Anderson, Mimi Data Administration 203-353-9121 203-719-6448 Brown, Anthony All Issues 212-253-6313 212-821-2346 646-244-6311 Galasso, Jill Data Administration 203-277-2067 203-719-3614 Lee, Jenai Data Manager 718-788-8468 212-821-6073

KEY CONTACTS WEEKEND OF JANUARY 19/20 Position Home Work Cell Other Bliss, Melissa Front Office 203-655-4678 203-719-6358 203-253-4339 Eastwick, Jacqueline Front Office 203-966-9294 203-719-4575 Martin, Audrey Front Office 212-423-5764 203-719-4699 917-468-0237 860-824-7707 Luecke, Susan Operations 203-602-3332 203-719-6916 914-830-4528 Ciliberto, David IT 212-253-5477 212-713-3276 917-319-5360 Reichman, Peter FCD/Legal

914-939-4161 203-719-0276 917-417-8914 Knight, Linda CRM/HR/Market Risk 203-438-5397 203-719-4681
917-848-7251

KEY SPECIALIST CONTACTS WEEKEND OF JANUARY 19/20 Position Home Work Cell Other Raman, Kumar
Immigration 212-891-7515 Digiacomio, Larry Relocation/Int'l Assignees 203-248-4560 203-719-4686 203-696-8646 Hart,
Tracy Compensation Policies 203-358-9687 203-719-4688 Raimondi, Vince Benefits 203-563-0535 203-719-0656
203-563-0535

HOUSTONIAN HOTEL 713-680-2626 War Room - Magnolia Room

-----Original Message-----

From: Kitchen, Louise Sent: Friday, January 18, 2002 5:38 PM To: Presto, Kevin M.; Whalley, Greg; Shively, Hunter S.;
Lavorato, John; Belden, Tim; Calger, Christopher F.; Milnthorp, Rob; Oxley, David Cc: Schoppe, Tammie Subject: Meeting
this week-end

We plan to have a conference call at 2pm Sunday to discuss progress. We want to reallocate dollars which have been
returned to the pool and ensure we keep the process moving and any contracts redone by the UBS team in preparation for
Monday. David is going to send an email with contact numbers etc for questions people may have with regard to the
contracts (apart from the numbers and promotions) as all those questions need to be sent to HR.

Please make sure you contact all of your guys and have an idea of where they are at.

Tammie will contact you all with the dial in number.

The meeting will be in John's office.

Thanks

Louise

Message 5 of 148

RE: UBS Information

Sender	claudia.robinson@ubsw.com
Recipients	['louise.kitchen@enron.com', 'm..carroll@enron.com', 'amy.fitzpatrick@enron.com', 'jennifer.plunkett@enron.com...]
File	kitchen-l/deleted_items/5.

Amy,

Jennifer Plunkett (212-713-1445) will order the publications and reprints for you from our fulfillment house. Please let her
when you need them, and she will let you know if that is possible.

About the folders, you will need to order those directly from Corporate Services (Teresa Carroll, 201-352-3034).

Please let me know if you need anything else.

Regards,

Claudia 212-713-8508

-----Original Message-----

From: Fitzpatrick, Amy [mailto: Amy.Fitzpatrick@ENRON.com] Sent: Wednesday, February 06, 2002 12:57 PM To:
Robinson, Claudia Cc: Kitchen, Louise Subject: UBS Information

Claudia -

Thank you so much for responding. The materials that we are looking for at each office are the following.

Annual Review Handbook (this is the one that you mentioned to me yesterday) Article: reprint from Wall Street dated
4/9/01 - 'UBS Warburg Sizzles Despite...' Article: reprint from Advocate/Greenwich Time - 'The House of UBS'

Can you please give me an idea as to when you would be able to ship the materials to us?

The numbers and contact information for each location are below.

Houston - 300 copies of each

Amy FitzPatrick 1400 Smith Street ECS06745 Houston, TX 77002 713-345-2729

Portland - 100 copies of each

Mollie Gustafson 121 SW Salmon 3WTC0306 Portland, OR 97201 503-464-3817

Calgary - 100 copies of each

Nella Cappelletto 3500, 400 3rd Avenue SW Calgary, Alberta T2P 4H2 403-974-6971

Also, do you have any UBS Warburg folders that the materials can be placed in (same numbers as request above if available)?

Thanks! Amy

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Visit our website at <http://www.ubswarburg.com>

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Message 6 of 148

RE: London Serviced Apartments

Sender	louise.kitchen@enron.com
Recipients	['tammie.schoppe@enron.com']
File	kitchen-l/sent_items/1560.

Waitlist if no cost and find somewhere else asap

-----Original Message-----

From: =09Schoppe, Tammie =20 Sent:=09Tuesday, November 27, 2001 2:03 PM To:=09Kitchen, Louise Subject:=09RE: London Serviced Apartments

I know but the Sloane apts. are booked. Would you like to go on a waitlist= or find somewhere else to stay?

Tammie Schoppe Enron Americas-Office of the Chair Assistant to Louise Kitchen 713.853.4220 office=20 713.646.8562 fax 713.253.2131 mobile

-----Original Message-----

From: =09Kitchen, Louise =20 Sent:=09Tuesday, November 27, 2001 12:51 PM To:=09Schoppe, Tammie
Subject:=09RE: London Serviced Apartments

I need a two bedroom

-----Original Message-----

From: =09Schoppe, Tammie =20 Sent:=09Tuesday, November 27, 2001 12:45 PM To:=09Kitchen, Louise
Subject:=09FW: London Serviced Apartments

Please read email below and let me know if you are interested.

Tammie Schoppe Enron Americas-Office of the Chair Assistant to Louise Kitchen 713.853.4220 office=20 713.646.8562 fax 713.253.2131 mobile

-----Original Message-----

From: =09roy@londonservicedapartments.co.uk@ENRON =20 Sent:=09Tuesday, November 27, 2001 11:33 AM
To:=09Schoppe, Tammie Subject:=09London Serviced Apartments

Hi Tammie,

Nice to speak with you this afternoon.

As I mentioned, currently Sloane Apartments do not have a two bedroom apartment available from January 1 - 5, however they feel that it is likely that a cancellation may come in which would allow them to accommodate Ms Nettleton.

In the meantime, they shall be pleased to reserve a one bedroom suite plus an adjoining deluxe double bedroom at their sister property Parkes Hotel in Knightsbridge. The rate per night of Sloane Apartments 2 bedroom apartment is GBP195 per night, and although the rates at Parkes Hotel is considerably higher, they will be pleased to reserve both the suite and double bedroom for the same rate.

Parkes Hotel is located at 41 Beaufort Gardens, London SW3. Below is a brief description plus I have attached a few pictures. Could you please confirm that Ms Nettleton would be happy to accept the suite and deluxe double bedroom at Parkes Hotel and should a two bedroom apartment become available at Sloane Apartments they will amend her reservation.

The One Bedroom Suite Parkes Hotel has:-

Comprises of separate bedroom with double bed. Separate lounge with Sofa (sofabed on request at additional cost), armchairs, coffee table, desk with data port and extensive personal bar. Has a full bathroom with shower. Also has small kitchen with fridge/freezer and combination oven, together with tea making facilities Can combine with either Deluxe Double or Junior suite Approximate dimensions 46sq.m

Parkes Hotel has the ideal location. Only 100 metres from Harrods and within walking distance of many of London's exclusive shops and restaurants. Heathrow is a mere 30 - 40 minutes away. Let us arrange a limousine and enjoy the trip in comfort.=0F =0F Allow us to take care of you. Our staff will be happy to arrange theatre seats, book flights, do your shopping, run errands, anything to make your life easier. With no more than fifty guests, we have the time to make you feel at home.=0F =0F Whether you are here on a hectic business trip or a relaxing holiday, we have the facilities and, more important, the desire to make your stay a pleasant one.

All our rooms and suites are traditionally decorated with air conditioning, room safes, direct dial telephone, data ports, CNN/Movie Channel, and extensive minibars

It is a pleasure to be of service.

Best regards Roy

Roy McKenzie London (Serviced) Apartments

London Serviced Apartments <http://www.londonservicedapartments.co.uk> TEL: +44 (0)20 8923 0918 FAX: +44 (0)20 8521 9548 The following section of this message contains a file attachment prepared for transmission using the Internet MIME message format. If you are using Pegasus Mail, or any another MIME-compliant system, you should be able to save it or view it from within your mailer. If you cannot, please ask your system administrator for assistance.

---- File information ----- File: onebedsuite.jpg Date: 27 Nov 2001, 16:50 Size: 28449 bytes. Type: JPEG-image

- onebedsuite.jpg << File: onebedsuite.jpg >>=20 The following section of this message contains a file attachment prepared for transmission using the Internet MIME message format. If you are using Pegasus Mail, or any another MIME-compliant system, you should be able to save it or view it from within your mailer. If you cannot, please ask your system administrator for assistance.

---- File information ----- File: deluxdouble3.jpg Date: 27 Nov 2001, 16:49 Size: 27933 bytes. Type: JPEG-image

- deluxdouble3.jpg << File: deluxdouble3.jpg >>

Message 7 of 148

RE: certified original birth certificate/ Uk birth registry &

Sender	bobbi.tessandori@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/hr/209.

Miss Louise,

Welcome to being a parent!!!! It only gets better!!! How are you doing?? I will respond with proper information later. However, you really haven't said if you are doing well? Did everything go okay? Please call if you have a moment to visit. My cell number is 713 516 7299 and home is 281 358 5732. Do you have family visiting to help you?

When you are ready to share Scott, please feel free to let me know and we can have "y'all" over to our house for dinner. This may prove a good break from your usual routine, if you like.

Welcome Summer! Best Regards, Bobbi 713 345 2809 mailstop: EB 3658-b fax: 713 646 5969

-----Original Message-----

From: Kitchen, Louise Sent: Tuesday, June 05, 2001 5:04 PM To: Tessandori, Bobbi Subject: Re: certified original birth certificate/ Uk birth registry & passport

Ignore previous email - I obviously have lost the power to see the bottom of the screen - where your number is - fax on its way.

Bobbi Tessandori@ENRON 05/18/2001 01:31 PM To: Louise Kitchen cc: marcus Nettelton

Subject: certified original birth certificate/ Uk birth registry & passport

Louise,

Birth registry with The Vital Statistics and Records office (the office who issues certified original birth certificates) will not have record of Scott's birth for approximately eight weeks. We need this document to obtain the UK birth registry and passport.

If you have plans to travel soon/before the birth certificate is available, we can appear in person, with tickets (travel itineraries are not acceptable), information provided by the hospital and obtain it by 4:00pm the day following the application. I will also need the two items listed in the next paragraph as well.

If you have no immediate travel plans, I have calendared the seventh week (after Scott's birth) to obtain documentation from you, a letter with your signature stating I can receive it on your behalf and a copy of your drivers license. I will then confirm his birth has been registered and apply on your behalf.

Best Regards, Bobbi new telephone: 713 345 2809 new fax: 713 646 5969 new address:1400 Smith St (mailstop: EB-3691), Houston, TX 77002-7361; physical location EB-3658b

<Embedded Picture (Device Independent Bitmap)>

Message 8 of 148

Data Room Information

Sender	mary.cook@enron.com
Recipients	['jeff.golden@enron.com', 'steve.van@enron.com', 'louise.kitchen@enron.com', 'suzanne.vann@enron.com']
File	kitchen-l/_americas/esvl/256.

Attached are the indices for the data room thus far for your review. Steve Van Hooser at 37238, (cell 713 582 6413), (home 281 955 0346) will be coordinating further activities in respect of the data room (additional information, logistics). We expect additional information from Sally Beck's operations group. We are having copies made this weekend to cover 4 separate data rooms, which copies are to be returned Monday am. Steve will be reviewing certain of the materials with Mark Taylor that are counterparty specific for inclusion in the data room. It is our understanding that you may also want to preview everything on Monday. As the boxes arrive on Monday, Steve will call you to determine a time to meet you for review.

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (713) 646-3393 (fax) mary.cook@enron.com

Message 9 of 148

FW: Cross netting products and entities

Sender	carol.st.@enron.com
Recipients	['s..bradford@enron.com', 'louise.kitchen@enron.com']
File	kitchen-l/_americas/esvl/669.

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-8537 (fax) 281-382-1943 (cell phone) 8774545506 (pager) 281-890-8862 (home fax) carol.st.clair@enron.com

-----Original Message-----

From: "Wilson, Jay" <jay.wilson@mirant.com>@ENRON Sent: Thursday, November 1, 2001 12:28 PM To: St. Clair, Carol Cc: Brown, Steve; Russell, Nicole; Starbird, Zack; Soto, Oscar Subject: Cross netting products and entities

Carol: Thanks for sending me your legal analysis regarding the cross-netting of products and entities. Mirant will work diligently to review and digest the analysis. I will call you back once we complete our review of the material provided.

<<...OLE_Obj...>>

Jay Wilson Mirant Legal 1155 Perimeter Center West Atlanta, GA 30338 678-579-6640

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Message 10 of 148

PG&E Meetings-- Contact List and Conference call information

Sender	travis.mccullough@enron.com
Recipients	['tim.belden@enron.com', 'william.bradford@enron.com', 'phillip.allen@enron.com']
File	kitchen-l/_americas/portland/158.

Attached is the telephone contact list for all of the Enron personnel that have been working on the California crisis.

For those calling in to the meetings over the weekend:

The call-in number for the 3:00 p.m. (Houston time) Saturday call is:

888-422-7128 Code: 610989

The purpose of this call is primarily for the legal team to discuss the due diligence process.

The call-in number for the 3:00 p.m. (Houston time) Sunday call is:

888-422-7128 Code: 835002

The purpose of this call is to review the results of the due diligence process and prepare summaries and recommendations to be discussed at the 7:00 meeting.

The call-in number for the 7:00 p.m. (Houston time) Sunday meeting is:

888-422-7101 Code: 337268

The purpose of this call is to report the results of the due diligence investigation and make appropriate recommendations regarding the open PG&E positions.

The legal team will be meeting in conference rooms on 38 over the weekend. I understand that the 7:00 meeting will be held in EB3321.

Please call if you have any questions.

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3893 Houston Texas 77002 Phone: (713) 853-1575
Fax: (713) 646-3490

Message 11 of 148

FW: BNYCP Litigation Risk Memo

Sender	angela.davis@enron.com
Recipients	['Kline', 'lance.schuler@enron.com', 'Elaine L.', 'jmontgomery@mainelaw.com', 'e..haedicke@enron.com', 'louise....']
File	kitchen-l/_americas/east_power/155.

The A&K legal memo previously transmitted did not include the exhibits referenced therein. The exhibits have been included in this e-mail.

Angela D. Davis Enron North America Corp. 1400 Smith Street, EB3817 Houston, Texas 77019 Tel: (713) 345-8347 Fax: (713) 646-3393 e-mail: angela.davis@enron.com

-----Original Message-----

From: "Cobb, Chris" <chris Cobb@akllp.com>@ENRON

[mailto:IMCEANOTES-+22Cobb+2C+20Chris+22+20+3Cchris Cobb+40akllp+2Ecom+3E+40ENRON@ENRON.com] Sent: Wednesday, July 11, 2001 1:01 PM To: Young, Mark Cc: Davis, Angela Subject: FW: BNYCP Litigation Risk Memo

Dear Angela and Mark,

Here is the memorandum and its three exhibits. Please call me if you need more. -Chris Cobb

-----Original Message-----

From: Cobb, Chris Sent: Wednesday, July 11, 2001 9:16 AM To: 'gail.brownfeld@enron.com' Cc: Kline, Thomas R.; Farris, Elaine L.; 'jmontgomery@mainelaw.com' Subject: BNYCP Litigation Risk Memo

Attached please find the BNYCP Litigation Risk memorandum and exhibits prepared by Tom Kline, Elaine Farris and myself. Please call me should you have any questions.

Christopher Cobb Andrews & Kurth L.L.P. 1701 Pennsylvania Ave., N.W., Suite 300 Washington, D.C. 20006 voice: (202) 662-3016 -- fax: (202) 662-2739

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- BNYCP Litigation Risk.DOC - chart for risk assessment memo.DOC - BNYCP--Quantum Meruit Memo.rtf - BNYCP witnesses.rtf

Message 12 of 148

Commercial Re-start Sub-Committee Mtgs. (Tues & Thurs)	
Sender	liz.taylor@enron.com
Recipients	['rob.milnthorp@enron.com', 'dale.furrow@enron.com', 'tim.belden@enron.com', 'greg.whalley@enron.com', 'mike.s...]
File	kitchen-l/inbox/52.

The new meeting Louise Kitchen refers to in her email below will commence this Thursday, Feb. 7 @ 10:30 a.m.(CST) for 15 minutes in Conf RM 06716. This starts a new weekly meeting for 15 minutes every Thursday @ 10:30 a.m.(CST). The dial-in number for this new meeting is listed below, along w/the dial-in number for Tuesday's weekly meeting. Please call me if you have any questions.

Commercial Re-Start Sub-Committee Mtgs. Thursday's 10:30 a.m. - 15 minute meeting Dial-in# 888.380.9636 Host Code: 926946 (Louise) Participant code: 237334

Tuesday's 10:00 a.m. weekly meeting Dial-in# 877.807.5706 Host Code: 259857 (Louise) Participant code: 913663

Liz Taylor Assistant to Greg Whalley 713.853.1935 office 713.853.1838 fax 713.854.3056 mobile

-----Original Message-----

From: Kitchen, Louise Sent: Tuesday, February 05, 2002 5:09 PM To: Milnthorp, Rob; Calger, Christopher F.; Furrow, Dale; Curry, Mike; Redmond, Brian; Vickers, Frank; Tycholiz, Barry; Kitchen, Louise; Forster, David; Lagrasta, Fred; Llodra, John; Bradford, William S.; Taylor, Mark E (Legal); Cook, Mary; Hodge, Jeffrey T.; Sager, Elizabeth; Hansen, Leslie; Thomas, Jake; Foster, Chris H.; Mcdonald, Michael; Davies, Derek; Le Dain, Eric Cc: Belden, Tim; Swerzbin, Mike; Presto, Kevin M.; Davis, Mark Dana; Sturm, Fletcher J.; Zufferli, John; Allen, Phillip K.; Shively, Hunter S.; Lavorato, John; Grigsby, Mike; Martin, Thomas A.; Whalley, Greg; Gilbert-smith, Doug; Carson, Mike Subject: Commercial Re-start Sub-Committee

Following this morning's meeting, we have agreed to have a fifteen minute conference call on a Thursday morning to give a quick update of issues. Chris Calger will ensure a list of progress is circulated prior to the two calls.

For those of you cc:d on this. Please feel free to join any of the calls to catch up on progress we are making with getting contracts in place.

Liz Taylor will redistribute the conference call numbers for Tuesday and Thursday.

Thanks

Louise

Message 13 of 148

EnronOnline Desk coverage and Escalation procedures.

Sender	savita.puthigai@enron.com
Recipients	['louise.kitchen@enron.com', 'a..shankman@enron.com', 'john.arnold@enron.com', 's..shively@enron.com', 'john.s...
File	kitchen-l/_americas/eol/144.

In the event EnronOnline has a new release or if there are critical system problems we should apply the following procedures.

The following persons will be responsible for covering the various desks.

Houston Team Responsibilities

In the event Savita is not available either Lindsay or Leonardo will be responsible for the gas floor.

Every day there will be one member of the Houston Team in the office early, by 7am, available for support. The schedule is set as follows:

Monday: Leonardo Tuesday: Carl Wednesday/Thursday: Savita & Lindsay (rotating) Friday: Kevin

****When there are system upgrades or other possible issues that can be anticipated, additional members of the Houston Team will be in the office by 6:15am.**

Desk Coverage -London

Every day there will be one member of the London Team in the office early, by 7am, available for support.

****When there are system upgrades or other possible issues that can be anticipated, additional members of the London Team will be in the office by 7.00 a.m.**

Product Suspension Procedures

During these critical times if traders are unable to control or suspend their products, the desk head may choose to have these products suspended. Please contact one of the following individuals to do so in this order.

North America 1. Savita Puthigai 713-859-8014 (cell) 2. Desk Representative as listed above 3. Brad Richter 5-4893 or 713-594-0220 (cell)

Europe 1. Lara Mckinney x 35431 2. Arfan Aziz x 3. Savita Puthigai 713-859-8014 (cell) 4. Brad Richter 5-4893 or 713-594-0220 (cell)

Outside of regular business and trading hours, in order to suspend 24 hour products please contact the Control Center directly at 713-853-5079.

****Please note that individual products cannot be suspended; only entire Country and Commodity combinations can be suspended. For example, individual power products cannot be suspended, but all of US Power can be. Suspending a 24 hour product will also suspend all products within its Country and Commodity combination.**

<Embedded Microsoft Word Document> <Embedded Microsoft Word Document>

Message 14 of 148

FW: modified version

Sender	beth.perlman@enron.com
Recipients	['vince.kaminski@enron.com', 'tim.belden@enron.com', 'kevin.presto@enron.com', 'louise.kitchen@enron.com']
File	kitchen-l/_americas/it/138.

This may be of interest to you. I was contacted by Steve Lake from Argonne National Laboratory who is interested in selling us some of their models and mapping software. Let me know if there is any interest.

Thanks, Beth

-----Original Message-----

From: "Lake, Stephan" <slake@anl.gov>@ENRON
[mailto:IMCEANOTES+22Lake+2C+20Stephan+22+20+3Cslake+40anl+2Egov+3E+40ENRON@ENRON.com] Sent:
Wednesday, April 04, 2001 3:52 PM To: Perlman, Beth Cc: Conzelmann, Guenter Subject: FW: modified version

Beth,

I enjoyed talking with you this afternoon regarding possible Enron/Argonne National Laboratory collaboration. As I mentioned, one of our divisions, Decision Information Sciences has built state of the art tools for modeling and simulating energy use. They have trained many country energy ministries on the use of their tools as well as solved complex energy technology issues.

I've attached a presentation which describes some of their capabilities in this area. Decision Information Sciences also has done much work in studying critical infrastructure issues in both gas and electric systems which also may be of interest. Finally, they have been pioneers in the development of agent based complex adaptive systems for modeling very complex systems that are impossible to view with over approaches.

I will also include a copy of my correspondences with one of your e-business groups under separate transmission.

Regards,

Stephan Lake Manager, Business Development and Marketing Argonne National Laboratory 630-252-5685 telephone
630-252-5230 fax

-----Original Message-----

From: Conzelmann, Guenter Sent: Monday, April 02, 2001 4:50 PM To: Lake, Stephan Subject: modified version

Guenter Conzelmann Manager, National and International Studies Section Energy and Environmental Systems Analysis
Group Argonne National Laboratory 9700 South Cass Avenue Building 900 Argonne, IL 60439-4832 Telephone:
++1-630-252-7173 Fax: ++1-630-252-6073 email: guenter@anl.gov Web: <http://enpep.dis.anl.gov/enpep/>

FedEx/DHL Address: 1200 International Parkway Woodridge, IL 60517

- enpep overview industrial partnership 02 lake.ppt

Message 15 of 148

RE: EnronOnline patent application - deadline approaching

Sender	travis.mccullough@enron.com
Recipients	['louise.kitchen@enron.com', 'e..haedicke@enron.com', 'legal <.taylor@enron.com', 'c..koehler@enron.com']
File	kitchen-l/_americas/netco_legal/43.

It is currently owned by the Estate, but I assume (Anne, Mark or Mark?) that it would be assigned to NETCO as part of that transaction. I should add that we will incur some legal expenses in filing applications in foreign jurisdictions (although

probably not substantial). Also, an additional benefit of delaying the filing for ten months is that the US Patent and Trademark Office will make an initial determination as to some elements of patentability (which they do not otherwise do) -- this would give us some indication of whether it is worthwhile pursuing the patent process.

Please note new address and fax number:

Travis C. McCullough Enron North America Corp. 1400 Smith Street EB 2079 Houston, Texas 77002 Phone: (713) 853-1575 Fax: (713) 853-9252

-----Original Message-----

From: Kitchen, Louise Sent: Tuesday, January 08, 2002 8:28 AM To: McCullough, Travis; Haedicke, Mark E. Cc: Koehler, Anne C.; Taylor, Mark E (Legal) Subject: RE: EnronOnline patent application - deadline approaching

Where does this patent reside - in the Estate or NetCo?

-----Original Message-----

From: McCullough, Travis Sent: Monday, January 07, 2002 3:56 PM To: Haedicke, Mark E.; Kitchen, Louise Cc: Koehler, Anne C.; Taylor, Mark E (Legal) Subject: EnronOnline patent application - deadline approaching

With respect to prosecuting our business method patent application outside the U.S., we may now designate those non-U.S. countries in which we are seeking patent protection, or elect to postpone that process for an additional ten months.

If we wish to designate the appropriate countries now, we must file an application in each country in which we want patent protection on or before February 28, 2002. If we elect to postpone the process, we must file an notice to that effect on or before January 30, 2002. One benefit of taking the ten-month extension of the process is that the U.S. Patent and Trademark Office will review our patent application and issue a non-binding written opinion on whether our invention meets certain conditions (novelty, inventiveness, industrial applicability) that are required in order to be patentable.

Please let me know whether we should designate countries now, or file for the extension. It may be that we want to let the dust settle on the NETCO transaction before making this decision.

Please note new address and fax number:

Travis C. McCullough Enron North America Corp. 1400 Smith Street EB 2079 Houston, Texas 77002 Phone: (713) 853-1575 Fax: (713) 853-9252

Message 16 of 148

RE: Transfers to Netco

Sender	louise.kitchen@enron.com
Recipients	['louise.kitchen@enron.com', 'angela.davis@enron.com', 'eddy.daniels@enron.com', 'mary.cook@enron.com']
File	kitchen-l/sent_items/326.

It is going to be really difficult to do the split, eg the EnronOnline patent is moving, can we take all of the history of concerning that which is on drives etc

-----Original Message-----

From: Kitchen, Louise Sent: Tuesday, January 08, 2002 5:12 PM To: Davis, Angela Cc: Cook, Mary; Daniels, Eddy Subject: RE: Transfers to Netco

Unless I am mistaken the estate is a part of this new deal, does this mean we can do without this.

-----Original Message-----

From: Davis, Angela Sent: Tuesday, January 08, 2002 5:08 PM To: Kitchen, Louise Cc: Cook, Mary; Daniels, Eddy Subject: RE: Transfers to Netco

Information regarding specific trades can not be transferred due to (i) confidentiality provisions with counterparties and (ii) with respect to power, the need for FERC approval. Everyone seems to be comfortable that the identity of counterparties can be disclosed, as well as the counterparties contact information and aggregated trade data not associated with any particular counterparty. Consequently, the software going to Netco will be cleansed of the trade data and individual's data bases and files should be similarly cleansed.

Angela D. Davis Enron North America Corp. 1400 Smith Street, EB3817 Houston, Texas 77019 Tel: (713) 345-8347 Fax: (713) 646-3393 e-mail: angela.davis@enron.com

-----Original Message-----

From: Kitchen, Louise Sent: Tuesday, January 08, 2002 5:02 PM To: Davis, Angela Cc: Cook, Mary; Daniels, Eddy; Taylor, Mark E (Legal) Subject: RE: Transfers to Netco

Why is this necessary in the first place? I really do not understand why it is necessary.

-----Original Message-----

From: Davis, Angela Sent: Tuesday, January 08, 2002 4:51 PM To: Kitchen, Louise Cc: Cook, Mary; Daniels, Eddy; Taylor, Mark E (Legal) Subject: Transfers to Netco

Paula Corey has informed that the IT people say it would be impossible to delete all prior trade data from "to be Netco" employees' h drive existing e-mail home directory

The recommendation is to wipe these clean prior to Netco employees obtaining access to them. Further, the recommendation was made that people not be warned to avoid cheating. I do not know if not telling people is fair. However, absent some other solution, it would appear that deleting this information would be advisable. Would you be the person to instruct the IT people to delete and/or announce to "to be Netco" employees that this will occur?

Angela D. Davis Enron North America Corp. 1400 Smith Street, EB3817 Houston, Texas 77019 Tel: (713) 345-8347 Fax: (713) 646-3393 e-mail: angela.davis@enron.com

Message 17 of 148

ENERGY: PG&E Bankruptcy (Calpine & Mirant) Note

Sender	don.miller@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/asset_marketing/76.

----- Forwarded by Don Miller/HOU/ECT on 04/06/2001 03:24 PM -----

Jon Cartwright <JCartwright@FI.RJF.com> on 04/06/2001 01:23:12 PM To: "RJF Energy-Gram" <cartwrit@bloomberg.net> cc: Subject: ENERGY: PG&E Bankruptcy (Calpine & Mirant) Note

*Recapping my verbal comments from the 1:30 PM call: * PG&E Conf Call is 2:15 EST (415) 228-4835 Conf # 5056296 * Calpine has \$305 million (pre-tax now that I think about it) in accruals with PG&E as of last week. Our numbers and the company's guidance previously has been that all financial forecasts the firm has made exclude those numbers, i.e. any recovery would be a benefit to guidance. * Mirant has never broken out its exposure, but most recent guidance excluding PG&E's numbers as well. We think MIR's exposure is close to \$0.10 per share, which if ever collected would be additive to estimates. * What happens in bankruptcy? Well basically a federal judge will precede over the filing and immediately determine operating costs for PG&E so that it can remain a going concern. As such, as a letter of the law, operating costs (which in this case would be purchasing power from CPN, MIR, DYN, etc) are to be kept current. Bottom line the credit risks of not getting paid go away immediately, net-net CPN and MIR will start getting paid every day as opposed to accruing revenue like they had been doing for the past several months. * While the filing has surprised investors, the weakness being experienced across the board in the electric power space is way overdone in our opinion. We would take advantage of the weakness. * We will obviously have more later today and Monday, but this is actually a positive turn of events for merchant power producers. For PG&E bond and common stock owners, that's a whole different story. CPN: SB1 2001 EPS \$1.80 2002 EPS \$2.50 MIR SB1 2001 EPS \$1.60 2002 EPS \$1.95 Fred Schultz - Houston*

Portable Document Format (PDF), are viewable using Adobe Acrobat Reader(tm), available as freeware at <http://www.adobe.com/products/acrobat/readstep2.html>>

Jon Kyle Cartwright VP & Senior Energy Analyst Raymond James & Associates Taxable Fixed Income Research
Raymond James Financial Center Tower III, Third Floor 880 Carillon Parkway St. Petersburg, FL 33733-2749 Telephone:
727-573-8366 Facsimile: 815-425-4161 JCartwright@fi.rjf.com

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Message 18 of 148

Women's Initiative Reception--Hosted by V&E's Paula Hinton

Sender	mhulin@uwtgc.org
Recipients	['ssmith@uwtgc.org']
File	kitchen-l/deleted_items/43.

Good Morning:

We haven't heard from you and the next event is around the corner. Please see the information below and let us know if you will be joining us!

The Women's Initiative of United Way of the Texas Gulf Coast and Vinson & Elkins L.L.P.

Cordially invite you to a networking reception for women supporting the United Way Tuesday, February 12, 2002 5:30 p.m. - 7:30 p.m.

Hosted by: Paula Hinton

Place: 3971 Inverness Houston, Texas 77019 (713) 965-9401 (directions provided on the reverse side)

Please RSVP to Melissa Hulin at (713) 685-2466 mhulin@uwtgc.org

We look forward to seeing you there!

Melissa Hulin Fund Development Specialist United Way of the Texas Gulf Coast Direct: 713.685.2466 Fax: 713.956.2868
e-mail: mhulin@uwtgc.org

Message 19 of 148

EOL click trade curtailment and banner

Sender	david.portz@enron.com
Recipients	['jay.webb@enron.com', 'elizabeth.sager@enron.com', 'louise.kitchen@enron.com', 'lisa.mellencamp@enron.com', '...']
File	kitchen-l/_americas/eol/27.

Jay -- Consistent with my voicemail to you, Elizabeth Sager has indicated that Louise Kitchens and John Lavorado approved that counterparties will not be able to click trades on EOL commencing tomorrow morning, and that the banner shown in red below shall be shown to direct counterparties to execute as over-the-counter trades with desk personnel. Legal's Lisa Mellencamp has okayed the banner in relation to the bankruptcy aspects. Accordingly, please implement for EOL site starting tomorrow.

"All prices posted are read only. Please contact Enron trading desk personnel to transact on posted information."

David A. Portz Senior Counsel Enron North America Corp. 1400 Smith, EB 3805a Houston, Texas 77002-7361 Phone: 713-853-9239 Fax: 713-646-3491 Cell: 713-417-9116 Assistant: Linda Simmons (Ext. 57851)

Message 20 of 148

UBS Information

Sender	amy.fitzpatrick@enron.com
Recipients	['louise.kitchen@enron.com', 'claudia.robinson@ubsw.com']
File	kitchen-l/inbox/33.

Claudia -

Thank you so much for responding. The materials that we are looking for at each office are the following.

Annual Review Handbook (this is the one that you mentioned to me yesterday) Article: reprint from Wall Street dated 4/9/01 - 'UBS Warburg Sizzles Despite...' Article: reprint from Advocate/Greenwich Time - 'The House of UBS'

Can you please give me an idea as to when you would be able to ship the materials to us?

The numbers and contact information for each location are below.

Houston - 300 copies of each

Amy FitzPatrick 1400 Smith Street ECS06745 Houston, TX 77002 713-345-2729

Portland - 100 copies of each

Mollie Gustafson 121 SW Salmon 3WTC0306 Portland, OR 97201 503-464-3817

Calgary - 100 copies of each

Nella Cappelletto 3500, 400 3rd Avenue SW Calgary, Alberta T2P 4H2 403-974-6971

Also, do you have any UBS Warburg folders that the materials can be placed in (same numbers as request above if available)?

Thanks! Amy

Message 21 of 148

Archibold research report - Enron

Sender	richard.s.walker@chase.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/it/113.

Louise -

Hope all is well. As per my voicemail, would you please consider participating in a 20 minute conversation with Rai Archiboldn regarding his report on Transaction Management Infrastructure (see attached questionnaire). If not yourself then perhaps someone on your team at EOL.

Give me a call with the appropriate name and number and I'll get Rai to arrange a time with that person.

Thanks

Rick Walker (713) 216-8850 ----- Forwarded by Richard S. Walker/CHASE on 04/30/2001 09:44 AM

Sri N Kosaraju@JPMORGAN 04/20/2001 10:08 AM

To: Richard S. Walker/CHASE@CHASE cc: Subject: Archibold research report - Enron

Rick,

Per your coversation with John Hall earlier, we wanted to send you a questionairre that illustrates some of the topics Rai would like to cover with Enron, if possible. If there are any questions, please feel free to call John (212-648-7119) or myself (212-648-6939). Thank you

(See attached file: End User Questionnaire.doc)

-Sri

Sri N. Kosaraju JPMorgan H&Q 60 Wall Street, 28th Floor New York, NY 10260 (212) 648-6939
kosaraju_sri@jpmorgan.com

- End User Questionnaire.doc

Message 22 of 148

FW: SEC Questionnaire

Sender	louise.kitchen@enron.com
Recipients	['liz.taylor@enron.com']
File	kitchen-l/sent_items/57.

2024247643 is the fax. Please fax and courier original.

-----Original Message-----

From: "Plegge, Lisa" <LDPlegge@SWIDLAW.com>@ENRON Sent: Friday, February 01, 2002 8:40 AM To: Kitchen, Louise Cc: Carpenter-Holmes, Amy Subject: FW: SEC Questionnaire Importance: High

Attached is an electronic version of the SEC Questionnaire. It is extremely important that you complete this at your earliest convenience and return to Amy Carpenter-Holmes at the address below. Please contact Amy at 202-424-7732 if you have any questions. Thank you for your cooperation. Amy Carpenter-Holmes Swidler Berlin Shereff Friedman LLP 3000 K Street, N.W., Suite 300 Washington, DC 20007 Tel: (202) 424-7732 Fax: (202) 424-7647 AKHolmes@swidlaw.com <<BACKGRND_.doc>> The preceding e-mail message contains information that is confidential, may be protected by the

attorney/client or other applicable privilege, and may constitute non-public information. It is intended to be conveyed only to the designated recipient(s). If you are not an intended recipient, please notify the sender at 202-424-7541. Unauthorized use, dissemination, distribution or reproduction of this message is strictly prohibited and may be unlawful.

- BACKGRND_.doc

Message 23 of 148

SECURITIES PURCHASE AGREEMENT (AIG).doc

Sender	steve.hooser@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/east_power/202.

Louise,

The attached, with some minor revisions to be discussed by ENA's business team today, is the return draft that we intend to send to AIG and their counsel before the end of the day. As discussed in Friday's meeting, I have arranged a lawyers only conference call for this afternoon (2:00p.m.) to apprise AIG counsel (Jay Grushkin at Milbank Tweed) of the NASD Rule that likely prevents ENA from collecting its brokerage fee in the manner contemplated by the LOI. I'll apprise you of those discussions later today.

Steve

Steve Van Hooser Enron North America Corp. 1400 Smith EB3877 Houston, Texas 77002 713-853-7238 ----- Forwarded by Steve Van Hooser/HOU/ECT on 04/23/2001 08:42 AM -----

"Jay Sonnenberg" <jsonnenberg@bracepatt.com> 04/22/2001 01:56 PM To: <Heather.Kroll@enron.com>, <ozzie.pagan@enron.com>, <steve.van.hooser@enron.com> cc: "Clark Thompson" <cthompson@bracepatt.com>
Subject: SECURITIES PURCHASE AGREEMENT (AIG).doc

I have attached a black-lined version of the above agreement, marked to show changes against the version that Milbank prepared. We look forward to discussing this with you on Monday.

Best regards,

Jay

Jay Sonnenberg Bracewell & Patterson, L.L.P. 711 Louisiana St., Suite 2900 Houston, TX 77002-2781 (713) 221-1417 (Ph) (713) 221-2158 (Fax)

- #1269388 vRED - SECURITIES PURCHASE AGREEMENT (AIG).doc

Message 24 of 148

FORTUNE Women's Summit - October 3-5, 2001

Sender	leary@timeinc.com
Recipients	['louise@enron.com', 'tammie.schoppe@enron.com']
File	kitchen-l/_americas/mrha/ooc/172.

We are delighted to receive the great news that you will be joining us for the 2001 FORTUNE Most Powerful Women in Business Summit to be held at The Huntington Ritz-Carlton Hotel & Spa, Pasadena, California - October 3-5, 2001.

You will receive additional information over the next few weeks which will include a brochure, preliminary agenda, participants list, hotel reservation form and other information relative to the Summit.

In an attempt to fine tune our records, kindly confirm (by returning this e-mail) that the information we have on file for you is correct:

Name Ms. Louise Kitchen Title Chief Operating Officer, Enron Americas Company Enron Corp. Address 1400 Smith Street Houston, Texas 77002-7361 Phone 713-853-3488 Fax 713-646-2308 e-mail louise@enron.com Assistant Tammie Schoppe Asst. phone Asst. e-mail tammie.schoppe@enron.com

We welcome your participation. Please do not hesitate to call or e-mail us with your suggestions or concerns by phone 212-522-9444, fax 212-522-1383 or e-mail: suzanne_o'leary@timeinc.com.

In the meantime, if we can be of any further assistance, just give a yell.

Regards,

Suzanne O'Leary Director, Executive Relations FORTUNE Conference Division

Message 25 of 148

RE: Revised curtailment and banner for EOL

Sender	elizabeth.sager@enron.com
Recipients	['david.portz@enron.com', 'carol.st.@enron.com', 'jay.webb@enron.com', 'legal <taylor@enron.com>', 'lisa.melle...]
File	kitchen-l/_americas/eol/25.

How about this for the banner on EOL

All posted prices are read only. If you are interested in discussing a possible transaction, contact the Enron trading desk. Please be advised that Enron Corp. and other subsidiaries of Enron have made filings under Chapter 11 of federal bankruptcy laws.

After further consideration, I think it is important to make clear (1) that we will not automatically agree to the trade if a counterparty calls and (2) that Enron has filed for bankruptcy protection.

-----Original Message-----

From: Portz, David Sent: Mon 12/3/2001 6:57 PM To: Webb, Jay; Lavorato, John; Kitchen, Louise Cc: Mellencamp, Lisa; Sager, Elizabeth; Taylor, Mark E (Legal); St. Clair, Carol; Aronowitz, Alan; Murphy, Harlan Subject: EOL click trade curtailment and banner

Jay -- Consistent with my voicemail to you, Elizabeth Sager has indicated that Louise Kitchens and John Lavorado approved that counterparties will not be able to click trades on EOL commencing tomorrow morning, and that the banner shown in red below shall be shown to direct counterparties to execute as over-the-counter trades with desk personnel. Legal's Lisa Mellencamp has okayed the banner in relation to the bankruptcy aspects. Accordingly, please implement for EOL site starting tomorrow.

"All prices posted are read only. Please contact Enron trading desk personnel to transact on posted information."

David A. Portz Senior Counsel Enron North America Corp. 1400 Smith, EB 3805a Houston, Texas 77002-7361 Phone: 713-853-9239 Fax: 713-646-3491 Cell: 713-417-9116 Assistant: Linda Simmons (Ext. 57851)

Message 26 of 148

FW: BEAVER CREEK TRAVEL

Sender	dorie.hitchcock@enron.com
Recipients	['louise.kitchen@enron.com', 'john.lavorato@enron.com']
File	kitchen-l/_americas/ooc/158.

Wanted to make sure that you approve of the charter price listed below for the Portland office. Thanks.

-----Original Message-----

From: Calger, Christopher F. Sent: Wednesday, August 01, 2001 10:29 AM To: Hitchcock, Dorie Subject: RE: BEAVER CREEK TRAVEL

Dorie,

Tim Belden and I are looking into chartering a plane to fly 8 people from Portland. The cost is approx \$20K. Commercial flights require two legs to Vail or a flight to Denver plus the drive. Either would take 5-7hours each way. Lavorato said this was OK so long as we did not "break the bank" on the charter.

Chris Calger 503-464-3735

-----Original Message-----

From: Hitchcock, Dorie Sent: Wednesday, August 01, 2001 8:05 AM To: Belden, Tim; Calger, Christopher F.; Collonges, Remi; Davies, Derek; Devries, Paul; Foster, Chris H.; Gonzalez, Orlando; Kishkill, Joe; Kitagawa, Kyle; Mcdonald, Michael; Milnthorp, Rob; Parquet, David; Swerzbin, Mike; Thomas, Jake; Whitt, Mark; Wiggs, Brett; Wolfe, Greg; Zufferli, John; Forster, David Subject: BEAVER CREEK TRAVEL

The Enron Americas Management Offsite has been scheduled for August 16-19, 2001 in Beaver Creek, Colorado. Charter aircraft will be available between Houston and Eagle/Vail Airport - flight itinerary is listed below: Thursday, August 16 - 5:00pm departure from Enron Aviation at George Bush Intercontinental Airport (arriving in Eagle/Vail at approximately 6:00pm) Sunday, August 19 - 9:00am departure from Eagle/Vail Airport (arriving at Enron Aviation at approximately 12:00pm)

You have the option of flying into Houston and taking this charter flight or you can work with your local travel agent to obtain personal travel into either Denver International or Eagle/Vail. Enron will provide ground transportation from both airports. Flights into Eagle/Vail are very limited during the summer months. Driving time from Denver to Beaver Creek is approximately 2 1/2 hours and approximately 35 minutes from Eagle/Vail to Beaver Creek.

Once travel has been confirmed, please provide me with a copy of your itinerary so I can secure the proper ground transportation.

Please let me know if I can be of assistance or if you have any questions. Thanks.

Dorie Hitchcock Event Manager Enron 1400 Smith Street Suite 3640a Houston, TX 77002 Telephone: (713) 853-6978 Fax: (713) 646-5800 Cell: (713) 594-7093 E-Mail: dorie.hitchcock@enron.com

Message 27 of 148

FW: POWER: Enron (ENE: Baa3/BBB-) -- Credit Comment...

Sender	no.address@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/esvl/490.

FYI -----Original Message----- From: Jon Cartwright [mailto:JCartwright@FI.RJF.com] Sent: Tuesday, November 20, 2001 3:03 PM To: Energy-Gram (E-mail) Subject: POWER: Enron (ENE: Baa3/BBB-) -- Credit Comment...

<<ENE 2001 11 20.pdf>>=20

Portable Document Format (PDF), are viewable using Adobe Acrobat Reader(tm)= , available as freeware at
<<http://www.adobe.com/products/acrobat/readstep2=.html>>>

=20 Jon Kyle Cartwright=20 Senior Energy Analyst=20 Raymond James & Associates=20 Taxable Fixed Income
Research=20 Raymond James Financial Center=20 Tower III, Third Floor=20 880 Carillon Parkway=20 St. Petersburg, FL
33733-2749=20

Tel: 727-573-8366=20 Fax: 815-425-4161=20 eMail: JCartwright@fi.rjf.com=20

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=20

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available to the Research Departm= ent about companies mentioned in this report. For institutional clients of = the
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herein is available upon request.

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Message 28 of 148

Governor Announces QF Agreement and Schedule for Final Resolution

Sender	christopher.calger@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/portland/183.

Louise,

California is proposing to buy QF energy/capacity for \$79 for 5 years or \$69 for ten years. We will re-run the economics of
Ace today.

Chris ----- Forwarded by Christopher F Calger/PDX/ECT on 03/21/2001 10:03 AM -----

Christopher F Calger 03/21/2001 07:45 AM To: cc: Subject: FW: EIX, PCG: Governor Announces QF Agreement and
Schedule for Final Resolution

Guys,

This looks real positive for a QF resolution. Do we know the proposed pricing terms and the impact on the Ace valuation? Any news from Ahlstrom?

Chris ----- Forwarded by Christopher F Calger/PDX/ECT on 03/21/2001 07:44 AM ----- From: Chip Schneider/ENRON@enronXgate on 03/21/2001 08:40 AM CST To: Michael Tribolet/ENRON@enronXgate, William S Bradford/ENRON@enronXgate, James D Steffes/NA/Enron@Enron, Alan Comnes/PDX/ECT@ECT, Christopher F Calger/PDX/ECT@ECT, W David Duran/HOU/ECT@ECT cc: Subject: FW: EIX, PCG: Governor Announces QF Agreement and Schedule for Final Resolution

-----Original Message-----

From: Paul Patterson <Paul_Patterson@xmr3.com>@ENRON
[mailto:IMCEANOTES-Paul+20Patterson+20+3CPaul+5FPatterson+40xmr3+2Ecom+3E+40ENRON@ENRON.com]
Sent: Wednesday, March 21, 2001 7:21 AM To: Schneider, Chip Subject: EIX, PCG: Governor Announces QF Agreement and Schedule for Final Resolution

Credit Suisse First Boston Paul Patterson Good morning, Here are the recent developments in the California power crisis: -Yesterday, Governor Davis gave a press conference to announce a QF agreement that would ensure future utility payments and possibly deter involuntary bankruptcy filings by certain QFs. A CPUC order on long-term QF contracts is expected next Tuesday. -Corroborating the governor's announcement, Edison International and PG&E Corp each announced yesterday that it reached agreement with the QFs for payment of future deliveries. -The governor laid out a schedule that targets a final resolution to the utilities' final crisis by mid-April. On April 3, the CPUC is expected to issue an order on DWR cost recovery. A final settlement for the utilities is anticipated 10-15 days afterwards. -Significantly, the governor expects that (1) the final settlement will occur within the existing rate structure, and (2) that the DWR will recover its costs with priority over the QFs and utilities. -The achievement of a QF agreement may make potential bankruptcy appear more remote and therefore support the stocks in the near-term. However, we believe that substantially more effort will be required to resolve the utilities' financial crisis. We recommend that investors avoid EIX (\$12.04, Hold) and PCG (\$11.40, Hold), unless they have a high tolerance for risk and volatility.

Please call us with any questions you may have. Regards, Paul Patterson, 212-325-5876 Neil Stein, 212-325-4217 Wen-Wen Chen, 212-538-0223 Emily Lao Chua, 212-325-1982

If you would prefer not to receive further messages from this sender, please click on the following link and confirm your request: Mailto:K-1-62573-701678-2-151-US2-9B3CEF5B@xmr3.com You will receive one additional e-mail message confirming your removal.

- ppp032101.pdf

Message 29 of 148

ENERGY: Notes from PG&E Conference Call

Sender	don.miller@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/asset_marketing/78.

Thought this might be helpful.

----- Forwarded by Don Miller/HOU/ECT on 04/06/2001 03:24 PM -----

Jon Cartwright <JCartwright@FI.RJF.com> on 04/06/2001 02:52:18 PM To: "'RJF Energy-Gram"
<cartwrit@bloomberg.net> cc: Subject: ENERGY: Notes from PG&E Conference Call

*The PG&E conference call just ended. * The Company reaffirmed that all trade suppliers will be paid in the normal course of business. The Company specifically mentioned that it intended to maintain and pay in full all of its bi-lateral contracts, which includes a contract with Calpine. The Company also plans to maintain and assume its contracts with Qualifying Facilities and will pay in full all post petition obligations. * The Company will also make all interest payments on its mortgage bonds, however,*

*no principle payments will be made until a reorganization is finalized. * The Company indicated that it had "adequate cash for a significant period of time". * PG&E did not provide a time table for the reorganization. * The Company reiterated that this is a financial and regulatory crisis, not an operational one. * The Company will continue to work towards and believes that it will be reimbursed in full, and, under that scenario, all creditors would be paid.*

Jon Kyle Cartwright VP & Senior Energy Analyst Raymond James & Associates Taxable Fixed Income Research
Raymond James Financial Center Tower III, Third Floor 880 Carillon Parkway St. Petersburg, FL 33733-2749 Telephone:
727-573-8366 Facsimile: 815-425-4161 JCartwright@fi.rjf.com

Raymond James & Associates, Inc. Member New York Stock Exchange/SIPC Institutional clients may call for additional information: High Grade Trading 800-248-8863 ext. 8336 * High Yield Trading 800-448-6623 This communication is not an offer to sell or a solicitation to buy any securities mentioned herein. High grade and High yield securities mentioned herein may not be suitable for all investors. Raymond James & Associates, Inc. or its affiliates (RJA) may perform investment banking or other services for, or solicit investment banking business from, any company mentioned in this report. RJA or its officers, employees, or affiliates may own shares, options, rights or warrants and/or execute transactions in the securities mentioned in this report, which may not be consistent with the report's conclusions. Additionally, RJA may at times elect to make markets in particular high yield securities, but there can be no guarantee that our market making activities will be uninterrupted. All expressions of opinion reflect the judgment of the Research Department of Raymond James & Associates, Inc., at the time of publication and may be subject to change without notice. Information has been obtained from sources considered reliable, but we do not guarantee that the foregoing report is accurate or complete. Other departments of RJA may have information that is not available to the Research Department about companies mentioned in this report. For institutional clients of the European Economic Area (EEA): This document (and any attachments or exhibits hereto) is intended only for EEA Institutional Clients or others to whom it may lawfully be submitted. Further information on the securities mentioned herein is available upon request. ? 2001 Raymond James & Associates, Inc.

Message 30 of 148

Re: Enron Online case

Sender	cbartlett@hbs.edu
Recipients	['louise.kitchen@enron.com', 'cpatrick@enron.com']
File	kitchen-l/_americas/hr/240.

Louise,

Many thanks. As Christie probably told you, the case was a huge success - and you were a star! Thanks again for all your help.

Regards,

Chris

At 08:39 AM 5/4/01 -0500, you wrote:

Hello Chris and Christie, I have asked Kal Shah to run with getting you what you need to ensure that you will have a contact during my absence. I have copied Kal on this email and hope that this works for everyone. Thanks Louise Christie Patrick 05/03/2001 01:12 PM To: cbartlett@hbs.edu cc: (bcc: Louise Kitchen/HOU/ECT) Subject: Enron Online case Hi Chris! Thanks for the message and the great experience at Harvard last week! Harvard's hospitality was the best!! I'm travelling right now and only have a minute, but I've passed along your request to Louise and will follow up with her and the totality of your request on Monday. (I also told Louise she was a "star in absentia" at Harvard last week!!!) Take care and we'll speak soon! Best! --Christie. ----- Forwarded by Christie Patrick/HOU/ECT on 05/03/2001 01:02 PM ----- Christopher Bartlett <cbartlett@hbs.edu> on 05/03/2001 09:33:48 AM To: christie.patrick@enron.com cc: Subject: Enron Online case Christie: Following up on my message of last week, I have now finished the minor edits required to clarify the Enron Online case (correcting the stock price, clarifying the "One to Many" versus "Many to Many" models of trading, etc.). The one piece that remains for me to insert is some information that will allow the students to make some estimates about the economic risk

involved in this bold move. I know that wholesale services contributed about 89% of Enron's total profit in 1999, but it is unclear what extent of this was provided by the traditional trading activities that subsequently were enhanced by Enron Online. My suspicion is that it is the majority of the sales volume, and perhaps the majority of profitability, but if we could give some clue to that in the case, it would be helpful. This might simply be that "trading activities constituted the majority of wholesale services profits" or "the vast majority" or "over 80%" or whatever you think would give the students some sense of quantification. The alternative might be to provide data that was disguised and could be footnoted as such. For example, we could identify that trading contributed "over \$750 million to Enron's net profits" with that number footnoted as a disguised figure. The other thing that would be very helpful would be again to provide some data on the profitability of operations in 1999 versus the profitability in 2000 when Enron Online became a dominant part of its activities. Once again, we could include broad-level generalizations or disguised data. It's your choice, but it will give the students a sense of the size of the issue facing them. If it is helpful to talk about this in person, please feel free to call me on 617-495-6308 today (Thursday); or tomorrow (Friday) in the afternoon at 802-457-1880. Once again, thanks so much not only for the cooperation on the case, but also for the terrific organization you did in getting your executive team up here for last week's classes. I think you probably realized that it was a "home run" with the students, who are still talking about it. Best wishes, Chris

Professor Christopher A. Bartlett Harvard Business School Morgan 465 Soldiers Field Boston, MA 02163 U.S.A. Phone: 617-495-6308 Fax: 617-496-5271 email: cbartlett@hbs.edu

Message 31 of 148

EA EVENT MASTER SCHEDULE

Sender	dorie.hitchcock@enron.com
Recipients	['louise.kitchen@enron.com', 'tammie.schoppe@enron.com', 'john.lavorato@enron.com', 'kimberly.hillis@enron.com...]
File	kitchen-l/_americas/ooc/172.

Attached is the Enron Americas master schedule of events for 2001. The approval process that was established in EA has enabled my department to easily track event costs and provide overall savings by leveraging the fees for items such as hotel rates, audio/visual, transportation and printing charges. I will update this schedule after each quarter. Please let me know if you have any questions or require additional information. Thanks.

Dorie Hitchcock Event Manager Enron 1400 Smith Street Suite 3640a Houston, TX 77002 Telephone: (713) 853-6978 Fax: (713) 646-5800 Cell: (713) 594-7093 E-Mail: dorie.hitchcock@enron.com

Message 32 of 148

FW: L/C amendment

Sender	s..bradford@enron.com
Recipients	['mary.perkins@enron.com', 'jessie.mata@enron.com', 'w..brown@enron.com', 'louise.kitchen@enron.com']
File	kitchen-l/_americas/esvl/520.

Not sure why they are making this request. I will be on a conference call with them at 11AM. Please call ASAP with an update on the status of the L/C.

Thanks, Bill

-----Original Message-----

From: "Janna Blanter" <jxblanter@duke-energy.com>@ENRON Sent: Friday, November 16, 2001 10:03 AM To: Bradford, William S. Subject: L/C amendment

The extension of the letter of credit needs to be delivered to

Kathrine McLendon Simpson Thacher & Bartlett 425 Lexington Avenue New York, NY 10017

I am also going to fax this request to Chase.

Janna Blanter Director, Credit Operations Duke Energy 5400 Westheimer Court Houston, Texas 77056 (713) 627-6137
(713) 627-6187 fax

Message 33 of 148

Catching Up

Sender melvin.anderson@enron.com

Recipients ['louise.kitchen@enron.com']

File kitchen-l/_americas/hr/54.

So who was that crazy woman beating on the glass?

It was great seeing you again. Sorry we weren't able to catch up in Chicago.

As I said, I'm relocating to Houston. We'll be moving the Anderson gang down here next week.

I'll be working in Enron Freight Markets. The learning curve is pretty vertical for now, but it's a great opportunity for me.

Got any time to get together in the near future? I'd love to catch up and hear what you are up to...might even have to steal some of your great ideas and use them in Freight. I'm here through Thursday.

Joel

Joel Anderson Enron Freight Markets Enron Center South (ECS 03825) Houston, TX 77002 Office: (713) 853-3010 Fax: (713) 853-6061

Message 34 of 148

FW: Excel Spreadsheet

Sender tbelden@nwlink.com

Recipients ['louise.kitchen@enron.com']

File kitchen-l/_americas/ees/18.

Here is a summary of the EES hit from marking the new curves.

-----Original Message-----

From: Richter, Jeff [mailto:Jeff.Richter@enron.com] Sent: Wednesday, July 18, 2001 5:49 AM To: tbelden@nwlink.com
Subject: Excel Spreadsheet

Tim,

I verified the PVMWH for the Retail Generation deals we have done in the spreadsheet. I need to look at the URM side once again. We have two deals closed that are not in the systems yet, I will add them when I get the executable.

I am off to the meeting.

<<Reserves.xls>>

Jeff Richter 503.464.3917 (w-pdx) Enron North America 503.701.6488 (c) West Power Services 503.464.3740 (fax) 121
SW Salmon Street 3WTC0306 jeff.richter@enron.com Portland, Oregon 97204

- Reserves.xls

Message 35 of 148

Couple of things

Sender	tammie.schoppe@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/tammie/1.

Kevin Presto wants to know if it's okay to take the office next to John's-06102?

I received a call from a Candice Karpakis with Williams Company and she wanted a list of our trading group. She has done business with Enron for 15 years and has worked closely with Steve South on transportation on the Northwestern pipelines. She would like the list so she knows who she should contact to do business. I told her I would need to get approval before I could send anything. What are your thoughts on this?

I did an expense report for you but it's only \$314 so I thought I would wait and see if you had any additional expense I could add.

I packed your files and sent them to Don Miller. I put a list of the files that were sent on your wall behind your monitor.

I will have my cell phone with me so please do not hesitate to call me.

Tammie Schoppe Enron Americas-Office of the Chair Assistant to Louise Kitchen 713.853.4220 office 713.646.8562 fax 713.253.2131 mobile

Message 36 of 148

FW: TEXACO GRAND PRIX TICKETS

Sender	barry.tycholiz@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/mrha/ooc/88.

FYI, I have invited a couple of my marketers and their customers to go to this on Sunday.. ENA (my RC) will not be charged back.

Who is paying the bills.... and how much are they? You would have to believe it is a lot.

-----Original Message-----

From: Hitchcock, Dorie Sent: Thursday, September 27, 2001 2:51 PM To: Tycholiz, Barry Subject: TEXACO GRAND PRIX TICKETS

This is to confirm that I have reserved 6 tickets for you to attend the Texaco/Havoline Grand Prix on Sunday, October 7. I will be distributing the tickets no later than Monday, October 1. (No charge will be allocated to your CO and RC.) The main race begins at 1:00 pm on Sunday.

Attached, please find the Program of Events and various pictures of the hospitality area. Complete information on the race can be found at <http://www.texacogp.com>.

Dorie Hitchcock Event Manager Enron 1400 Smith Street Suite 3640a Houston, TX 77002 Telephone: (713) 853-6978 Fax: (713) 646-5800 Cell: (713) 594-7093 E-Mail: dorie.hitchcock@enron.com

Message 37 of 148

Electronic Pay Stubs

Sender	enron.payroll@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/hr/65.

Get ready. Beginning in November, electronic pay stubs will be available to all employees who have their paychecks direct deposited into their bank account. Electronic pay stubs are an easy, fast, and efficient way for you to get your payroll information. They will also help Enron to realize a considerable savings in time and dollars spent over traditional printed pay stubs.

If you prefer to receive a hardcopy of your pay stub, click on the link below to complete a request form. This form must be submitted to Payroll by October 15, 2001. Unless you submit a form your pay stub information will default to electronic viewing.

Please click on the link below.

Name: LOUISE KITCHEN Personnel number: P00566127 Phone: +1 713 853 3488

If you have questions about electronic pay stubs, please contact Janice Priddy (Payroll) 713-853-7839 or Marie Newhouse (ClickAtHome) at 713-345-4185 or send an email to Enron.Payroll@enron.com (Enron Payroll in Outlook).

Stay tuned for more details in the coming weeks.

<http://etcsurvey.corp.enron.com/wi/p0810709/i.asp?r=17356&s=ZHIKXTXE&l=9>

Message 38 of 148

FW: EWS Q3 2001 experience ENRON Report

Sender	john.lavorato@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/mrha/ooc/45.

there are still ena people using experience enron. -----Original Message----- From: Robert, Carrie Sent: Tuesday, October 16, 2001 5:43 PM To: McConnell, Mike; Shankman, Jeffrey A.; McMahon, Jeffrey; Bowen Jr., Raymond; Piper, Greg; Beck, Sally; Lavorato, John; Kitchen, Louise Subject: EWS Q3 2001 experience ENRON Report

Attached is a summary report of the EWS tactical (revenue driven) and strategic (educational) visits to Enron supported by experience ENRON in third quarter 2001.

At experience ENRON, our goal is to support the EWS deal development teams by creating powerful Enron experiences that result in greater favorability and familiarity of Enron while differentiating us from the competition.

Our role is to: Reduce time and labor costs associated with planning and execution of customer visits Coordinate BU subject matter experts (SME's) to tell the Enron story, i.e. EOL, trading, etc. Customize agendas aligned with Enron and customer objectives Shorten sales cycles

We are here to support your team in reaching your goals. Please call with questions or changes.

Carrie Robert Manager, Enron Corporate Marketing 1400 Smith St. EB 4703B Houston, TX 77002 713-853-3522 Office 713-853-6790 Fax 713-416-2945 Cell carrie.a.robert@enron.com

Message 39 of 148

BEAVER CREEK BIKING

Sender	dorie.hitchcock@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/ooc/145.

Per our conversation this morning, attached is the revised rooming list. Also, below is the description of the mountain biking. Please let me know if you have any questions. Thanks.

SATURDAY ACTIVITY MOUNTAIN BIKING (10:00 am - 2:00 pm) Each guest will be provided with a mountain bike (equipped with full front and rear suspension), helmet and a trail map. Pedal toe clips are available upon request. Included in this activity is a full day pass on the Centennial Chair Lift (a four person detachable quad) located at the main base of Beaver Creek Mountain. Trails are clearly marked and are categorized in the following manner: Green - Beginner Blue - Intermediate Black Diamond - Advanced The green and blue trails are wide dirt roads. The black diamond routes are single track trails. It takes approximately 25 minutes to complete an intermediate trail; 15 minutes for the chair lift and 10 minutes for the bike trail. Guests are at their leisure to tackle as many trails as they wish. Guides will be provided along the various routes for assistance and bike maintenance.

Dorie Hitchcock Event Manager Enron 1400 Smith Street Suite 3640a Houston, TX 77002 Telephone: (713) 853-6978
Fax: (713) 646-5800 Cell: (713) 594-7093 E-Mail: dorie.hitchcock@enron.com

Message 40 of 148

NY CANCELLATION

Sender	dorie.hitchcock@enron.com
Recipients	['louise.kitchen@enron.com', 'david.duran@enron.com', 'w.vickers@enron.com']
File	kitchen-l/_americas/ooc/67.

I have been working with my national sales representative from the Four Seasons Hotel to minimize our contract obligations from our cancellation of the New York Customer Holiday Event dated November 30 - December 2, 2001.

The contract states that if Enron should cancel the entire event within 90 days - 61 days prior to the scheduled commencement date of the event, Enron would be liable for 50% of the hotels liquidated damages, which is estimated at \$28,218.

After numerous conversations with the hotel, they have agreed to accept our initial deposit of \$15,000 as full payment for the cancellation of this event. No additional costs will be charged to Enron. I believe that this is a fair offer and hope that all parties involved find this acceptable.

In the meantime, I received a call from Laura Luce this morning and she is interested in continuing this event on a much reduced scale. The Four Seasons is willing to hold our initial reservation, with no additional penalties, until we can confirm if we would like to proceed.

Please let me know if you have any questions. Thanks.

Dorie Hitchcock Event Manager Enron 1400 Smith Street Suite 3640a Houston, TX 77002 Telephone: (713) 853-6978
Fax: (713) 646-5800 Cell: (713) 594-7093 E-Mail: dorie.hitchcock@enron.com

Message 41 of 148

FW: MEETING INFO

Sender	dorie.hitchcock@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/ooc/180.

Good morning, Below is the preliminary information for the August meeting that I sent to John last week. There are some time sensitive issues with deposits for some of the venues. Would you please review the information and if I could have a few minutes of your time, I would really appreciate it. Thanks. Dorie

-----Original Message-----

From: Hitchcock, Dorie Sent: Thursday, July 12, 2001 1:37 PM To: Lavorato, John Subject: MEETING INFO

Attached is a file containing the following information for your management meeting in Beaver Creek (August 16-19, 2001): Preliminary Agenda Cost Estimate Outside Speaker Options I am holding 3 Enron aircraft for this event and have included that price in the cost estimate. I have reviewed all the video tapes for the outside speakers with the exception of the political humorists. The only one that I would not recommend is Joe Malarkey. I thought his material was 'pure malarkey' - but that is just my opinion. I have bios if you would like to see them. We are not limited to this list - I can check pricing and availability for anyone that you would like to suggest. Please let me know if you have any questions or comments. Thanks.

Dorie Hitchcock Event Manager Enron 1400 Smith Street Suite 3640a Houston, TX 77002 Telephone: (713) 853-6978
Fax: (713) 646-5800 Cell: (713) 594-7093 E-Mail: dorie.hitchcock@enron.com

Message 42 of 148

FW: EWS Q3 2001 experience ENRON Report

Sender	louise.kitchen@enron.com
Recipients	['carrie.robert@enron.com']
File	kitchen-l/sent_items/692.

When people request an understanding of gas or power - does this mean you ask people from ENA to give tours or speak or something? Is there any role we play in hosting the event?

-----Original Message-----

From: Robert, Carrie Sent: Tuesday, October 16, 2001 5:43 PM To: Mcconnell, Mike; Shankman, Jeffrey A.; McMahon, Jeffrey; Bowen Jr., Raymond; Piper, Greg; Beck, Sally; Lavorato, John; Kitchen, Louise Subject: EWS Q3 2001 experience ENRON Report

Attached is a summary report of the EWS tactical (revenue driven) and strategic (educational) visits to Enron supported by experience ENRON in third quarter 2001.

At experience ENRON, our goal is to support the EWS deal development teams by creating powerful Enron experiences that result in greater favorability and familiarity of Enron while differentiating us from the competition.

Our role is to: Reduce time and labor costs associated with planning and execution of customer visits Coordinate BU subject matter experts (SME's) to tell the Enron story, i.e. EOL, trading, etc. Customize agendas aligned with Enron and customer objectives Shorten sales cycles

We are here to support your team in reaching your goals. Please call with questions or changes.

Carrie Rob?rt Manager, Enron Corporate Marketing 1400 Smith St. EB 4703B Houston, TX 77002 713-853-3522 Office
713-853-6790 Fax 713-416-2945 Cell carrie.a.robert@enron.com

Message 43 of 148

FW: Memo re: Quantum Meruit Claim

Sender	angela.davis@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/east_power/156.

This is the memo referred to in my prior e-mail.

Angela D. Davis Enron North America Corp. 1400 Smith Street, EB3817 Houston, Texas 77019 Tel: (713) 345-8347 Fax: (713) 646-3393 e-mail: angela.davis@enron.com

-----Original Message-----

From: "Young, Mark" <markyoung@akllp.com>@ENRON

[mailto:IMCEANOTES--+22Young+2C+20Mark+22+20+3Cmarkyoung+40akllp+2Ecom+3E+40ENRON@ENRON.com]

Sent: Tuesday, July 03, 2001 8:42 AM To: Davis, Angela Cc: Kline, Thomas R. Subject: Memo re: Quantum Meruit Claim

Angela,

Attached is a memo Tom Kline had one of our attorneys prepare analyzing the likelihood of any reinstatement of the QM claim. It supports the conclusions we reached on our conference call yesterday. It is in WordPerfect. Let me know if you'd like for us to convert it to Word.

Regards, Mark Young Andrews & Kurth L.L.P. 713-220-4323

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<<Memo re BNYP litigation - quantum meruit.wpd>> - Memo re BNYP litigation - quantum meruit.wpd

Message 44 of 148

FW: Meeting Friday

Sender	louise.kitchen@enron.com
Recipients	['liz.taylor@enron.com']
File	kitchen-l/sent_items/515.

-----Original Message-----

From: "Burden, Bill M" <BurdenBM@bp.com>@ENRON Sent: Thursday, December 27, 2001 1:01 PM To: 'Louise@Enron.com' Subject: Meeting Friday

Louise, It was good talking with you today. Please find attached a map giving general directions to our office complex. Note that there are several buildings in the Westlake Complex, so best directions to find us at the right building are:

Exit I-10 west at Eldridge Parkway Left on Eldridge under I-10, following Eldridge to first light (Memorial Drive) Right on Memoria to first light (Westlake Park Blvd.) [do NOT turn left before the light at a BP building..that is a different office than ours] Right on Westlake Park and right again at the first entrance into the greyish building complex (Westlake One)....go under breezeway and park in visitors' area. Go to reception just under the breezeway, and ask for me...we will have to come and get you. They may have trouble reaching me at my office extension, so in case either they or you may have to call my cell number below. <<mqmapgend[5].gif>>

From BP, it will be the following: Bill Burden, Mgr. Business Dev. N.A. Jim Dewar, CFO N.A. Alan Haywood, VP Structures Desk N.A. Justin Stuhldreher, inside counsel

We look forward to seeing you at 9 a.m. tomorrow. Can you confirm you've successfully received this email by reply? thanks.

Bill Burden Manager Business Development BP Energy 501 Westlake Park Blvd. Houston Tx 77079 (W) 281 366 0962 (Fax) 281 366 5027 (Cell) 832 282 0962 burdenbm@bp.com

- mqmapgend[5].gif

Message 45 of 148

TEXACO/HAVOLINE GRAND PRIX

Sender	dorie.hitchcock@enron.com
Recipients	['tammie.schoppe@enron.com', 'mike.mcconnell@enron.com', 'louise.kitchen@enron.com', 'john.lavorato@enron.com']...
File	kitchen-l/_americas/ooc/82.

The Texaco/Havoline Grand Prix of Houston will take place downtown on October 5-7, 2001. Enron has developed a relationship with the PacWest Racing Team, a member of the CART FedEx Championship Series featuring drivers Scott Dixon and Mauricio Gugelmin, which will enable us to offer our customers and executives a one of a kind hospitality package that will include the following features:

Gourmet hospitality including breakfast and lunch prepared for Enron guests by an on-site chef at the race track in PacWest's Summit (mobile hospitality and business suites) Paddock passes allowing Enron guests to visit the garage areas where race car preparation takes place and providing a "behind the scenes" look at the business of motor sports Sunday race event tickets located in Grandstand C, just before turn one and adjacent to the PacWest Summit Special PacWest driver autograph and "meet and greet" sessions for Enron guests Guided tours of PacWest's transporters and garage areas for Enron guests thereby providing a hands-on look at how the race cars are prepared for the weekend's on-track activities Opportunity to network with companies that support PacWest including but not limited to: NEXTEL, JP Morgan Chase, Gemstar, Pennzoil, PPG, Tully's Coffee, Snap-On, Bosch, Freightliner, Toyota, Panasonic, 3D Village

I currently have the following tickets available for this event: Friday, October 5 - 4 Tickets Saturday, October 6 - 15 Tickets Sunday, October 7 - 20 Tickets (No cost will be allocated back to Company and RC numbers)

Please let me know how many tickets you would like to reserve for this event by Tuesday, September 25. On Wednesday, I would like to offer the remaining tickets to all Managing Directors and VPs within EA, EGM and EIM. If there are specific individuals within your area that you would like to have this information distributed to, please advise.

Attached, please find the Program of Events and various pictures of the hospitality area. Complete information on the race can be found at <http://www.texacogp.com>.

Dorie Hitchcock Event Manager Enron 1400 Smith Street Suite 3640a Houston, TX 77002 Telephone: (713) 853-6978 Fax: (713) 646-5800 Cell: (713) 594-7093 E-Mail: dorie.hitchcock@enron.com

Message 46 of 148

RE: Integration Meeting

Sender	kimberly.hillis@enron.com
Recipients	['jeff.golden@enron.com', 'georgeanne.hodges@enron.com', 'tammie.schoppe@enron.com', 'louise.kitchen@enron.com...]
File	kitchen-l/_americas/esvl/194.

I have arranged for the meeting to take place in the large conference room here on the sixth floor - 06980. I have confirmed that the A/V equipment is working so if you would like to use powerpoint in the conference room, it is available. Also, if you would like to send me your presentations I will be more than happy to test run them for you or have them ready to go. I will be here at 7:00 - 7:30 am tomorrow morning.

Sandwiches have been ordered for lunch and will be served in conference room 06984.

k

-----Original Message-----

From: Kitchen, Louise Sent: Wednesday, December 26, 2001 10:10 AM To: Kitchen, Louise; Colwell, Wes; Hodges, Georgeanne; Webb, Jay; MEYERS, Thomas; Hillier, Bob; McAuliffe, Bob; Rub, Jenny; Hall Jr., Robert L.; Donovan, Bill; Brackett, Debbie R.; Oxley, David; Bradford, William S.; Schultea, Kathryn Cc: Golden, Jeff; Lavorato, John; Schoppe, Tammie; Hillis, Kimberly Subject: RE: Integration Meeting

We will have a networked pc in the room - so choose if you want handouts or a powerpoint.

Kim will forward details of the room today.

Thanks

Louise

-----Original Message-----

From: Kitchen, Louise Sent: Friday, December 21, 2001 4:03 PM To: Kitchen, Louise; Colwell, Wes; Hodges, Georgeanne; Webb, Jay; MEYERS, Thomas; Hillier, Bob; McAuliffe, Bob; Rub, Jenny; Hall Jr., Robert L.; Donovan, Bill; Brackett, Debbie R.; Oxley, David; Bradford, William S. Cc: Muller, Mark S.; Golden, Jeff; Lavorato, John; Schoppe, Tammie; Hillis, Kimberly Subject: RE: Integration Meeting

The meeting has been confirmed.

They told me that they want to essentially gain an understanding of what our plan is to get up and running as quickly as possible which does I think differ slightly from integration.

Have I missed any critical group?

9 am Introduction 9:15 am Infrastructure Rub 9:45am IT - Development & Ops Webb 10:15 am Mid Office Start-up Overview Hall 10:45 Credit Start-up Overview Brackett 11:15 noon Accounting, cash etc Integration Overview Colwell/Georges/Meyers

11am Tour of the building/infrastructure Donovan

Thanks

Louise -----Original Message----- From: Kitchen, Louise Sent: Friday, December 21, 2001 1:06 PM To: Colwell, Wes; Hodges, Georgeanne; Webb, Jay; MEYERS, Thomas; Hillier, Bob; McAuliffe, Bob; Rub, Jenny; Hall Jr., Robert L.; Donovan, Bill Cc: Muller, Mark S.; Golden, Jeff; Lavorato, John; Schoppe, Tammie; Hillis, Kimberly Subject: Integration Meeting

One of our potential buyers will be here at 9am on Thursday. The scope of the meeting is to run through the integration schedule. This is a very broad agenda and will probably be very interactive. I tried to put Ops first but it really doesn't make sense.

This really is a really rough agenda for you guys to decide upon but I wanted to set out the areas they wish to cover.

9 am Introduction 9:15 am Infrastructure Rub 10 am IT - Development & Ops Webb 11 am Mid Office Intergration Overview Hall 12 noon Accounting, cash etc Integration Overview Colwell/Georges/Meyers

11am Tour of the building/infrastructure Donovan

Wes - they want to cover bank accounts and cash in detail.

Some time during the morning they want a tour of the facilities - I am arranging with Bill Donovan.

Louise Kitchen Chief Operating Officer Enron Americas Tel: 713 853 3488 Fax: 713 646 2308

Message 47 of 148

RE: Service Bureau Prohibitions

Sender	jay.webb@enron.com
Recipients	['Jay; Kitchen', 'Louise', 'bob.hillier@enron.com', 'Webb']
File	kitchen-l/_americas/esvl/91.

Hi Ursula,

I'll ask Bob Hillier to find out who our Legato contact is. Clearly, we need this backup software on day 1. We will also look into the Rational relationship. It is not as critical as it is used for development (we have licenses for Rose and for ClearCase and ClearQuest).

--jay

-----Original Message-----

From: Ursula.Mills@ubsw.com [mailto:Ursula.Mills@ubsw.com] Sent: Sat 1/5/2002 5:31 PM To: Webb, Jay; Kitchen, Louise Cc: Subject: FW: Service Bureau Prohibitions

Hi Louise / Jay

If you can help shed any light on your vendor relationship with Legato and Rational, and whether you believe there is scope for reviewing these licenses with a view to changing the relevant license agreements, that would be extremely helpful. We understand that both these products would be critical components to running the Netco systems.

Thx Ursula

-----Original Message-----

From: Roger.Ross Sent: 05 January 2002 18:07 To: bwells Cc: Roger.Ross; stephen.kahn; Mills, Ursula Subject: RE: Service Bureau Prohibitions

Thanks Bert. As promised, I am following up with E Company on the various assigned agreements that prohibit providing service to a third party. Feel free to have Ursula pursue the question simultaneously. I am also looking into what services the parties intend Fire to provide for transition as this is not a part of the transaction that I have been following closely to date.

Roger

"Wells, Bert" <bwells@cov.com> on 01/05/2002 01:46:31 PM cc: "ursula.mills@ubsw.com" <ursula.mills@ubsw.com> Subject: RE: Service Bureau Prohibitions

This message is from a law firm and may contain information that is confidential or legally privileged. If you are not the intended recipient, please immediately advise the sender by reply e-mail that this message has been inadvertently transmitted to you and delete this e-mail from your system. Thank you for your cooperation. Steve and Roger, We are reviewing a sampling of third party software licenses E Company entered and seem to have found two licenses not previously noted by E Company as containing an express prohibition on use as part of a service bureau. As I discussed with Roger briefly yesterday, this we

assume is as much an issue for you as it would be for us because operation of the IT on a service bureau basis initially is a key mutual expectation. Both licenses are listed on your draft Schedule 2.1(f)(i) to the Contribution Agreement so I'm guessing they are material to the Business and the relevant software would have to be operated for U Company's benefit. U Company hasn't spoken to any E Company IT personnel to learn the significance of the affected software, but Ursula Mills is planning to raise the question with Jay Webb or another appropriate person.

The two licenses are:

1. Enterprise Software License Agreement between Legato Systems, Inc. and [E] Corp, dated as of Sept. 27, 2001, respecting numerous software products generally branded with the names NetWorker, GEMS, Celestra, Octopus and others. Section 2.2 provides: "Restrictions on Use. Licensee shall not, and shall not aid, abet or permit any third party to: . . . (iii) . . . use for timesharing or service bureau purposes or otherwise use . . . the Software . . . for the benefit of third parties"

2. Products License Agreement #3185 Modified for [E] Corp, issued by Ration Software Corp., dated as of Feb. 17, 1998, respecting various software products branded Clearcase, Rational, Purify, and Quantify and others. Section 1.1 provides: "General Grant of License. . . . You may not rent, lease or use the Product in a service bureau capacity. . . ."

We continue to review the agreements for the Service Bureau issue as it is the most pressing from a time perspective. We have already found several ambiguous licenses and will bring those to your attention as a group later.

If other express provisions such as the above turn up, I will let you know on a case by case basis as this issue is one our IT personnel are taking seriously.

Bert

..... Bert Wells Covington & Burling 1330 Avenue of the Americas New York, New York 10019
(212) 841-1074 (voice) (212) 841-1010 (fax) bwells@cov.com

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Message 48 of 148

UBS docs as signed and filed with the court

Sender	eddy.daniels@enron.com
Recipients	['wes.colwell@enron.com', 'michelle.cash@enron.com', 'angela.davis@enron.com']
File	kitchen-I/_americas/netco_legal/33.

Please find attached the signed Master Agreement (with schedules at the back), the form of Comprehensive License Agreement (to be signed at closing), and the schedules to the Comprehensive License Agreement.

These have been filed with the bankruptcy court in New York and are available to 3d parties via the court's web site.

EDD

-----Original Message-----

From: White, Bonnie Sent: Tuesday, January 15, 2002 10:32 AM To: Daniels, Eddy Subject: UBS documents you requested

Bonnie J. White Enron Litigation Unit 1400 Smith Street, Suite 4824 Houston, TX 77002 Ph: 713-853-7244 Fax: 713-853-6576 bonnie.white@enron.com

*Message 49 of 148***Master Netting Status**

Sender	angela.davis@enron.com
Recipients	['s..bradford@enron.com', 'tanya.rohauer@enron.com', 'louise.kitchen@enron.com']
File	kitchen-I/_americas/esvl/656.

With respect to my assignments JP Morgan and Dominion -

There is apparently some confusion regarding whether a Master Netting Agreement should be prepared for the J.P. Morgan group or for the Morgan Stanley group. We have been unable to obtain confirmation regarding the correct entities.

For Dominion, I await the Master Physical agreements from Canada and the credit information from Credit. Other agreements have been reviewed and the form of Master Netting Agreement marked up with the information available.

Angela D. Davis Enron North America Corp. 1400 Smith Street, EB3817 Houston, Texas 77019 Tel: (713) 345-8347 Fax: (713) 646-3393 e-mail: angela.davis@enron.com

*Message 50 of 148***Follow Up on Transport PV Quantities**

Sender	mark.breese@enron.com
Recipients	['louise.kitchen@enron.com', 'david.marks@enron.com', 'william.keeney@enron.com']
File	kitchen-I/_americas/east_power/140.

The following table summarizes the PV quantities associated with the three transportation contracts owned by the Navy Yard. You may use this number to look at the impact of a 1 cent change in demand rates (unitized) on the value of the transaction. Because pipeline demand charges do not flow as part of the sales price, an increase in the demand charge will result in a loss to the deal.

As a reminder, the base valuation makes very reasonable (and conservative) assumptions regarding increases in pipeline demand charges over the term of the deal.

Transcanada Iroquois Transco MDQ 25,508 25,253 30,303 PV Volumes 93,598,193 92,662,505 115,211,782

Mark S. Breese Director, Gas Structuring Enron North America P.O. Box 1188 Houston, TX 77251-1188

Phone: (713) 853-6751 Cell: (713) 419-1038

*Message 51 of 148***EOL Gas Documents**

Sender	mary.cook@enron.com
Recipients	['david.forster@enron.com', 'carol.st.@enron.com', 's..bradford@enron.com', 'carl.carter@enron.com', 'louise.k...']
File	kitchen-I/_americas/netco_legal/36.

We have determined (Vickers and Tycholiz and Hodge) that no interruptible gas is transacted on line, but certain firm gas descriptions excuse performance on the basis of normal pipeline constraints (without liability). Therefore, for Phase 1 rollout no EOL interruptible/spot GTC is needed. In Phase 3 they may consider adding some interruptible products on line. They do want an over the counter interruptible GTC, which will be prepared. In any event, all EOL physical gas will be sold online in Phase 1 under the Firm GTC (until masters are signed). The Phase 1 EOL decision tree will then be if GISB master signed, up to 30 day firm gas under GISB, over 30 under Firm GTC. If Firm master signed, all gas under Firm

master.

Any questions, please call.

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (713) 646-3393 (fax) mary.cook@enron.com

Message 52 of 148

FW: HBS Case Study

Sender	rahil.jafry@enron.com
Recipients	['louise.kitchen@enron.com', 'kal.shah@enron.com']
File	kitchen-l/_americas/mrha/ooc/263.

FYI -

-----Original Message-----

From: Meg Wozny <mwozny@hbs.edu> Sent: Tuesday, April 03, 2001 10:00 AM To: Jafry, Rahil Subject: Re: HBS Case Study

Hi Rahil,

I'm attaching two EnronOnline cases that were put into our system couple of weeks ago. The second, short case, is a classroom handout that summarizes EOL's success and signals new challenges. Just FYI--we are now developing a multimedia EOL case, which will be released on CD ROM. It will have links to video interviews with Jeff, Ken and Louise.

We are very happy with our Enron cases; they will most likely become bestsellers. It was a great learning experience for me and Prof. Bartlett, and you were a big part of that experience. Thank you so much for all your help! Please feel free to call me if you have any questions or need anything else. Regards, Meg - 301085.doc - 301102.doc

Meg Glinska Wozny Research Associate Harvard Business School Gallatin Lounge C Soldiers Field Boston, MA 02163
voicemail: (617) 496-0802 facsimile: (617) 496-6943 email: mwozny@hbs.edu

Message 53 of 148

Re: Texas eComm Ten Awards- Question

Sender	eric.thode@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/mrha/ooc/285.

FYI: We found out how Jeff got nominated. Paul Hobby, one of the group's Advisory board members, did it.

Eric

----- Forwarded by Karen Denne/Corp/Enron on 03/21/2001 09:53 PM -----

Gary Thompson <gary@texasecomm.org> on 03/21/2001 11:47:54 AM To: <Karen.Denne@enron.com> cc:

Subject: Re: Texas eComm Ten Awards- Question

Karen,

Thanks so much; I will touch base with Greg before Saturday to provide him with additional details and logistics.

Actually, one of our Advisory Board members at Genesis Park, Paul Hobby, submitted his name as a nominee. Obviously, Jeff is one of those leaders that comes to everyone's mind when you think of the power of eCommerce and the Internet!

We appreciate your support and will get you copies of photos from the event as well as press coverage that is received.

Best regards,

Gary

-- Gary L. Thompson Chairman and President Texas Electronic Commerce Association

3925 W. Braker Lane, Suite 300 Austin, TX 78759

(512) 305-0430 garyt@texasecomm.org (512) 305-0432 Fax www.texasecomm.org

Message 54 of 148

FW: Redline

Sender	travis.mccullough@enron.com
Recipients	['louise.kitchen@enron.com', 'marcello.romano@enron.com', 'jay.webb@enron.com']
File	kitchen-l/_americas/legal/3.

Travis C. McCullough Enron North America Corp. 1400 Smith Street EB 3882A Houston, Texas 77002 Phone: (713) 853-1575 Fax: (713) 646-3393/3490

-----Original Message-----

From: "Hodgson, Stephen" <shodgson@velaw.com>@ENRON [mailto:IMCEANOTES-+22Hodgson+2C+20Stephen+22+20+3Cshodgson+40velaw+2Ecom+3E+40ENRON@ENRON.com] Sent: Tuesday, June 26, 2001 8:31 PM To: Mccullough, Travis Subject: Redline

<<Redline.rtf>> The following files have been attached to this email by DeltaView...

Redline.rtf (Rich Text Format) ++++++CONFIDENTIALITY NOTICE+++++ The information in this email may be confidential and/or privileged. This email is intended to be reviewed by only the individual or organization named above. If you are not the intended recipient or an authorized representative of the intended recipient, you are hereby notified that any review, dissemination or copying of this email and its attachments, if any, or the information contained herein is prohibited. If you have received this email in error, please immediately notify the sender by return email and delete this email from your system. Thank You

- Redline.rtf

Message 55 of 148

FW: FIRM EOL GAS GTCS

Sender	mary.cook@enron.com
Recipients	['louise.kitchen@enron.com', 'peter.keohane@enron.com']
File	kitchen-l/_americas/netco_legal/34.

Peter, here are the US forms for gas physical firm EOL. We will need Canadian too. Let's try to be as consistent as possible.

Louise, please note, the forms I am working are for US. Peter to do Canadian gas physical.

-----Original Message-----

From: Cook, Mary Sent: Friday, January 11, 2002 1:27 PM To: Kitchen, Louise; Taylor, Mark E (Legal); Hodge, Jeffrey T.; Van Hooser, Steve; Vickers, Frank; Carter, Carl; Calger, Christopher F.; Lagrasta, Fred; Redmond, Brian; Luce, Laura; Tycholiz, Barry; Bradford, William S. Cc: Nemec, Gerald; St. Clair, Carol; Hansen, Leslie; Sager, Elizabeth Subject: FIRM

EOL GAS GTCS Importance: High

Attached are the EOL Firm Gas GTC, EOL Firm Gas GTC with Collateral Support, and a redline of the two. For those of you who reviewed the last version and provided comments, thank you. Please take a fresh read as material changes were made to Force Majeure. Any further comments, please advise.

Carol, will you please completely "fresh read" both of them as a check for me. Thank you.

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (713) 646-3393 (fax) mary.cook@enron.com

Message 56 of 148

Highstar/ENA Closing

Sender	jsonnenberg@bracepatt.com
Recipients	['steve.van.hooser@enron.com', 'don.stevens@enron.com', 'joseph.deffner@enron.com', 'joseph.wagner@enron.com']
File	kitchen-l/_americas/east_power/164.

The email below was distributed to most of the people on the "Knowledge List" in the ENA-Highstar SPA. However, I just received your email addresses, so please excuse this late notice.

As you may be aware, the closing date for Highstar's purchase of North Carolina Power Holdings, LLC has been scheduled for July 12. Pursuant to Section 7.4 of the attached Securities Purchase Agreement, if any factual circumstances are inconsistent with the representations, warranties and covenants made by ENA as of May 16, 2001, ENA must supplement or amend the Schedules (and provide Highstar with supporting documentation regarding such changes) at least 5 business days prior to closing.

Please review Section 4.1 and Section 7.1 of the Securities Purchase Agreement, together with the information on the companion Schedules referenced in these Sections, and notify me (with a CC to Steve Van Hooser) by 10:00 am on July 3 if you are aware of any misstatements or errors concerning these representations, warranties, covenants, or Schedules.

Please call or email me to discuss or if you have any questions.

Best regards,

Jay

Jay Sonnenberg Bracewell & Patterson, L.L.P. 711 Louisiana St., Suite 2900 Houston, TX 77002-2781 (713) 221-1417 (Ph) (713) 221-2158 (Fax)

- #1269388 v17 - SECURITIES PURCHASE AGREEMENT (AIG).doc - #1270266 v10 - EXHIBITS+SCHEDULES TO AIG SPA.doc

Message 57 of 148

FW: BNYCP Litigation Analysis:PRIVILEGED AND CONFIDENTIAL

Sender	angela.davis@enron.com
Recipients	['Haedicke', 'Angela', 'Mark E.; Schuler', 'louise.kitchen@enron.com', 'Lance; Davis']
File	kitchen-l/_americas/east_power/157.

Here are the most recent memos. A second e-mail will provide another memo.

Angela D. Davis Enron North America Corp. 1400 Smith Street, EB3817 Houston, Texas 77019 Tel: (713) 345-8347 Fax: (713) 646-3393 e-mail: angela.davis@enron.com

-----Original Message-----

From: Brownfeld, Gail Sent: Wednesday, July 11, 2001 9:23 AM To: Marks, David; Keeney, William Cc: Haedicke, Mark E.; Schuler, Lance; Davis, Angela Subject: BNYCP Litigation Analysis:PRIVILEGED AND CONFIDENTIAL

Attached are the memoranda prepared by outside counsel assessing the BNYCP litigation. To avoid as much confusion as possible, I suggest reading the Andrews & Kurth memo first, the Bernstein memo second and the risk matrix last. In a nutshell, all agree that this is a very fact intensive case and that there has been little factual discovery to date. It is also agreed that we have been denied the benefit of some of the evidence available as a result of the confidentiality obligations in place. Accordingly, much of the analysis provided is really counsel's "best guess" based on the information available. That being said, there seems to be a general agreement that, based on the facts currently available and the "quick and dirty" analysis that we have been able to do, the exposure ranges from approximately \$20 to \$50 million. Interest and attorney fees could also prove significant. I am available to discuss this further if you think that would be helpful. Thanks for your patience.

Message 58 of 148

FW: READ: Master Netting Status Request

Sender	t..hodge@enron.com
Recipients	['louise.kitchen@enron.com', 'n..gray@enron.com', 'mary.cook@enron.com', 'tanya.rohauer@enron.com']
File	kitchen-l/_americas/esvl/653.

With respect to the master netting agreements, Aquila does not want to enter into one. We have forwarded Aquila a new Master Firm Purchase/Sale Agreement with revised collateral provisions which is the way they want to go.

I hope this meets your current needs.

Jeff

-----Original Message-----

From: Cook, Mary Sent: Thursday, November 01, 2001 4:40 PM To: Antonoff, Rick; Aronowitz, Alan; Clark, Morris; Davis, Angela; Del vecchio, Peter; Douglas, Stephen H.; Evans, Mark (London Legal); Gray, Barbara N.; Hansen, Leslie; Heard, Marie; Hendry, Brent; Hodge, Jeffrey T.; Jones, Tana; Kalembka, Lech; Keohane, Peter; Koehler, Anne C.; Leite, Francisco Pinto; McCullough, Travis; Mellencamp, Lisa; Murphy, Harlan; Murray, Julia; Nemec, Gerald; Portz, David; Rohauer, Tanya; Sager, Elizabeth; Sayre, Frank; Shackleton, Sara; Simons, Paul; St. Clair, Carol; Van Hooser, Steve; Viverito, John; Von Bock Und Polach, Marcus; Williams, Jason R (Credit) Cc: Bradford, William S.; Kitchen, Louise; Rohauer, Tanya Subject: READ: Master Netting Status Request Importance: High

Before you leave today or first thing in the morning, please advise Bradford, Rohauer and Kitchen by email of the status of the particular master netting agreements on which you are working. Barbara Gray is coordinating the release of the gas receivable financing so that we can execute the netting agreements and she will advise as and when finalized. As previously noted today, the power receivable financing will be released as we sign the netting agreements on a counterparty-by-counterparty basis.

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (713) 646-3393 (fax) mary.cook@enron.com

Message 59 of 148

FW: CFC's authorization

Sender	no.address@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/asset_marketing/16.

Louise,

Unofficial approval from CFC was received today. See details below.

Thought you might be interested.

Don

-----Original Message-----

From: George, Robert H. Sent: Thursday, September 13, 2001 5:01 PM To: "'Carlos Ramos Miranda" <crm@bstl.com.mx>@ENRON' Cc: Miller, Don (Asset Mktg); Irvin, Steve Subject: RE: CFC's authorization

I was about to decide it would never happen. That is good news. Thanks

Robert H. George Enron North America Corp. 1400 Smith Street EB 3832 Houston Texas 77002-7361 Phone: (713) 345-4159 Fax: (713) 646-3490 Email: robert.h.george@enron.com

-----Original Message-----

From: "Carlos Ramos Miranda" <crm@bstl.com.mx>@ENRON [mailto:IMCEANOTES-+22Carlos+20Ramos+20Miranda+22+20+3Ccrm+40bstl+2Ecom+2Emx+3E+40ENRON@ENRON.com] Sent: Thursday, September 13, 2001 4:52 PM To: Garcia, Maria E.; George, Robert H.; Adriana.Astivia-Caraza; Raymundo Enriquez Cc: est@bstl.com.mx; sfp@bstl.com.mx Subject: CFC's authorization

Dear all:

I am pleased to inform you that we have been unofficially informed that the CFC has granted its authorization to the transaction. We will probably be officially notified either tomorrow or Monday.

You can verify this information at the following web page of the CFC:

<http://www.cfc.gob.mx/cfc99e/novedades/acuerdosresueltos/13-SEPT-01.htm>

Sincerely, -- Carlos Ramos Miranda Barrera, Siqueiros y Torres Landa, S.C.

This e-mail is private and confidential and contains information intended only for the use of the person named above. If the recipient of this message is not the one intended, you are hereby notified that any dissemination, distribution or copying of this communication is strictly prohibited. If you have received this document in error, please send it to postmaster@bstl.com.mx immediately. Thank you.

Message 60 of 148

RE: Netco memo

Sender	louise.kitchen@enron.com
Recipients	['s..muller@enron.com', 'lance.shuler@enron.com', 'john.lavorato@enron.com', 'elizabeth.sager@enron.com']
File	kitchen-l/sent_items/530.

This will slow us if we go this route. I think the idea of an option to purchase is the best choice for us but probably difficult for you.

-----Original Message-----

From: Nicolay, Christi L. Sent: Friday, December 21, 2001 4:35 PM To: Shuler, Lance; Henry, Joe; Sager, Elizabeth; Steffes, James D.; Shapiro, Richard; Novosel, Sarah; Presto, Kevin M.; Herndon, Rogers; Belden, Tim; Nettelton, Marcus; Novosel, Sarah; Lavorato, John; Kitchen, Louise Subject: Netco memo

See attached draft memo that outlines certain FERC issues for Netco, if Enron retains an interest. -- Regarding the portion about the new Supply Margin Assessment (SMA) test: I heard that FERC is reviewing whether to use this test, but I have not seen the order yet.

-----Original Message-----

From: Yvonne Coviello [mailto:YMCOVIEL@LLGM.COM] Sent: Wednesday, December 19, 2001 5:12 PM To: Nicolay, Christi L. Cc: Samuel Behrends Subject: Revised Newco memo

Please see attached document.

Yvonne M. Coviello LeBoeuf, Lamb, Greene & MacRae, L.L.P. 1875 Connecticut Avenue, N.W. Washington, D.C. 20009-5728 Direct Dial: (202) 986-8044 Fax: (202) 986-8102 Email: ymcoviel@llgm.com

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Message 61 of 148

FW: extension of time period

Sender	c.koehler@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/esvl/526.

Here is the email I received from Doug Eyberg and my response. I haven't heard back from him yet. -----Original Message----- From: Koehler, Anne C. Sent: Thursday, November 15, 2001 10:52 AM To: "Douglas Eyberg" <Doug.Eyberg@LLGM.COM <mailto:Doug.Eyberg@LLGM.COM>>@ENRON' Cc: Redmond, Brian; Coffey Jr., Jim Subject: RE: extension of time period

Doug,

I believe that we should also extend the time period for the reference of disputed items on the Working Capital Statement since we may not resolve everything by the 4th of December (given the holidays), which by my calculations would be the date for referral of disputed working capital items to the independent auditors. Perhaps we could go ahead and build in an extension period for the working capital items that would coincide with the extension for the inventory. Let me know what you think. Thanks, Anne -----Original Message----- From: "Douglas Eyberg" <Doug.Eyberg@LLGM.COM <mailto:Doug.Eyberg@LLGM.COM>>@ENRON Sent: Thursday, November 15, 2001 10:09 AM To: Koehler, Anne C. Subject: extension of time period

anne, here is the draft for your review regards, doug

Douglas K. Eyberg LeBoeuf, Lamb, Greene & MacRae, L.L.P. 1000 Louisiana, Suite 1400 Houston, Texas 77002 713-287-2010 phone 713-287-2100 fax doug.eyberg@llgm.com <mailto:doug.eyberg@llgm.com>

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and may be unlawful.

- 50518V2A.doc << File: 50518V2A.doc >>

Message 62 of 148

RE: End of quarter origination numbers

Sender	louise.kitchen@enron.com
Recipients	['f..calger@enron.com']
File	kitchen-l/sent_items/752.

Feels better now

-----Original Message-----

From: Calger, Christopher F. Sent: Tuesday, October 16, 2001 11:15 AM To: Kitchen, Louise Subject: RE: End of quarter origination numbers

I'm up to \$21.6MM. I'll get changes to Faith. I now feel more valuable!

Chris Calger 503-464-3735

-----Original Message-----

From: Kitchen, Louise Sent: Tuesday, October 16, 2001 5:34 AM To: Calger, Christopher F. Subject: RE: End of quarter origination numbers

Nope

-----Original Message-----

From: Calger, Christopher F. Sent: Monday, October 15, 2001 6:24 PM To: Kitchen, Louise Subject: RE: End of quarter origination numbers

\$6.7MM is not enough?

Chris Calger 503-464-3735

-----Original Message-----

From: Kitchen, Louise Sent: Monday, October 15, 2001 3:47 PM To: Calger, Christopher F. Subject: FW: End of quarter origination numbers

You need to give yourself some!

-----Original Message-----

From: Kitchen, Louise Sent: Friday, October 12, 2001 5:13 PM To: Calger, Christopher F.; Milnthorp, Rob; Tycholiz, Barry; Lagrasta, Fred; Curry, Mike; Jacoby, Ben; Luce, Laura; Vickers, Frank W.; Llodra, John; Kroll, Heather; Redmond, Brian; Forster, David; Williams, Jaime; Miller, Don (Asset Mktg); Josey, Scott; Mrha, Jean; Baughman, Edward D. Cc: Killen, Faith Subject: End of quarter origination numbers

Q3 now over, you will each be receiving in the internal mail a copy of the origination numbers associated with each of your groups. Please could you ensure the numbers are both;

(i) Correct, and (ii) Correctly allocated

Should employees have left the group or company please do not allocate the amount to another originator as this will distort the numbers, just leave the name of the employee and number in place although they have left. These numbers will be used as a (obviously only one component) component of performance review. As you know we also monitor the soft targets so please ensure these are correct too. If you want to check your progress on soft targets - these are available from Faith.

Please send all alterations to Faith Killen or call her on 30352.

Thanks

Louise

Message 63 of 148

FW: Confidential Attorney Client Work Product

Sender	no.address@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-I/_americas/esvl/220.

I hope you have seen this. Obviously since you are a director you have a keen interest in this.

-----Original Message-----

From: Leite, Francisco Pinto Sent: Tuesday, December 18, 2001 6:23 PM To: Lagrasta, Fred; Miller, Don (Asset Mktg) Cc: Mellencamp, Lisa Subject: Confidential Attorney Client Work Product

With respect to the segregation of funds in Mexico to pay for potential labor liabilities as requested by John Lavorato, below is my proposed plan.

- 1 - We obtain a legal opinion from Mexican counsel explaining the legal obligation of any Mexican company to pay for labor liabilities and summarizing the possible liabilities for directors in case such liabilities are not paid for.
- 2- The shareholders of Enron Servicios pass a resolution memorializing the desire to comply with Mexican law and resolving to open a segregated bank account to pay for any and all possible labor liabilities. This bank account can only be accessed by any two directors of Enron Servicios signing jointly (this is my suggestion and can obviously be different).
- 3 - Our lawyers in Mexico will open the account and funds will be transferred forthwith.
- 4 - The resolution and the bank account will not be public record and no employee should know about these funds (we need to see how we can send funds to this bank account without any Mexico employee's signature)

Purpose: (i) Document our legal obligations in accordance with mexican law and the reason why the shareholders of the company wish to segregate funds and (ii) make sure nobody besides the directors can access these funds. If the segregation of funds is ever challenged by ENE or ENA's creditors, we will have the legal background and justification for the segregation.

If this is okay with you, I will have the various resolutions and proxies ready for signature tomorrow and the account could probably be open and funded by Thursday.

Please let me know if you have any questions or comments. Thanks

Note: Lisa, I will fill you in tomorrow

Francisco Pinto-Leite Enron Americas 1400 Smith Street, EB 3888 Houston, TX 77002-7361

Tel: 713-345-7942 Fax:713-646-3490 fleite@enron.com

Message 64 of 148

Master Netting Status Request

Sender	john.viverito@enron.com
Recipients	['tanya.rohauer@enron.com', 'mary.cook@enron.com', 'carol.st.@enron.com', 's..bradford@enron.com', 'louise.kit...]
File	kitchen-l/_americas/esvl/664.

All-

As requested by Mary Cook, I am providing the list of counterparties with whom I am working on netting arrangements. They are as follows:

ConAgra- Under review by credit (margining and netting requested in their draft) Conoco- Verbally agreed, awaiting hard copy from Conoco (only payment netting) Crown Central- Under review by legal (only payment netting requested in their draft) Morgan Stanley- Executed via facsimile (only close-out netting) Sunoco- Under review by legal (only payment netting requested in their draft) Valero- Under review by legal (only for payment netting requested in their draft)

Please let me know if you have any comments or questions.

John

-----Original Message-----

From: Cook, Mary Sent: Thursday, November 01, 2001 4:40 PM To: Antonoff, Rick; Aronowitz, Alan; Clark, Morris; Davis, Angela; Del vecchio, Peter; Douglas, Stephen H.; Evans, Mark (London Legal); Gray, Barbara N.; Hansen, Leslie; Heard, Marie; Hendry, Brent; Hodge, Jeffrey T.; Jones, Tana; Kalembka, Lech; Keohane, Peter; Koehler, Anne C.; Leite, Francisco Pinto; McCullough, Travis; Mellencamp, Lisa; Murphy, Harlan; Murray, Julia; Nemec, Gerald; Portz, David; Rohauer, Tanya; Sager, Elizabeth; Sayre, Frank; Shackleton, Sara; Simons, Paul; St. Clair, Carol; Van Hooser, Steve; Viverito, John; Von Bock Und Polach, Marcus; Williams, Jason R (Credit) Cc: Bradford, William S.; Kitchen, Louise; Rohauer, Tanya Subject: READ: Master Netting Status Request Importance: High

Before you leave today or first thing in the morning, please advise Bradford, Rohauer and Kitchen by email of the status of the particular master netting agreements on which you are working. Barbara Gray is coordinating the release of the gas receivable financing so that we can execute the netting agreements and she will advise as and when finalized. As previously noted today, the power receivable financing will be released as we sign the netting agreements on a counterparty-by-counterparty basis.

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (713) 646-3393 (fax) mary.cook@enron.com

Message 65 of 148

FW: Cities Aggregation Power Project Visit - Monday, October 1

Sender	louise.kitchen@enron.com
Recipients	['john.lavorato@enron.com']
File	kitchen-l/sent_items/961.

-----Original Message-----

From: Forster, David Sent: Friday, September 28, 2001 12:58 PM To: Kitchen, Louise Subject: FW: Cities Aggregation Power Project Visit - Monday, October 1

Louise,

Attached is the email I spoke about.

I have had several informal comments from various Originators regarding running into EES at utilities and municipalities. This morning, BPUB informed me that EES is talking to them about sales to their customers under BPUB's label.

Dave -----Original Message----- From: Curry, Mike Sent: Friday, September 28, 2001 12:14 PM To: Duran, W. David; Forster, David Subject: FW: Cities Aggregation Power Project Visit - Monday, October 1

EES is now fully stepping into the Texas wholesale market with this. Talking to 70 municipals for aggregated power is ridiculous for EES to be doing. This has to be stopped along with EES providing the "Whitepaper" products where they are providing wholesale products to San Antonio and others. They are making Enron look stupid in not communicating what they are doing with the wholesale desk when we are constantly finding out they are talking to customers in our SIC Codes that we have been working with toward a deal.

I think a meeting needs to be setup between Lavorato and Delainey or at your level to get this fixed. I have tried working with my peers at EES and they continue to lie to me and keep working customers in our SIC code and even worse with IOU's and municipals.

-----Original Message-----

From: Presto, Kevin M. Sent: Friday, September 28, 2001 11:50 AM To: Curry, Mike; Gilbert-smith, Doug Subject: FW: Cities Aggregation Power Project Visit - Monday, October 1

Looks like Ader & Co. at work in ERCOT. I view this as a big problem. These customers need to be covered by wholesale. Both of you should take this as a slap in the face.

-----Original Message-----

From: Brockwell, Jennifer Sent: Friday, September 28, 2001 10:31 AM To: May, Tom Cc: Presto, Kevin M.; Black, Tamara Jae Subject: Cities Aggregation Power Project Visit - Monday, October 1

Tom, Will you be available for the following visit? This is another large group... In order to keep this from being disruptive, we were thinking of dividing the group into two for two separate overviews. These overviews should only be 10 minutes in length. One would be at 11:00 am and the other at 11:15 am.

Let me know if this is a possibility.

Thanks. Jennifer

Date: Monday, October 1 Time: 11:00 am Visitor: Cities Aggregation Power Project (17 of them) Enron Host: Michelle Robichaux, Representative National Energy Sales

Value Prop: EES is looking to provide electric commodity savings off the PTB for an aggregated load of 70 Texas municipals.

Objectives: I would like CAPP to leave knowing just how different Enron is from its competitors. This would include Enron's risk management expertise and size and scope of marketing of gas power and other commodities.

Jennifer Brockwell Enron Corporate Marketing 1400 Smith Street Houston, TX 77002 713-345-7358 713-853-6790 fax jennifer.brockwell@enron.com

Message 66 of 148

nan	
Sender	david.forster@enron.com
Recipients	['carl.carter@enron.com', 'louise.kitchen@enron.com', 'bob.shults@enron.com', 'rahil.jafry@enron.com']
File	kitchen-l/_americas/netco_eol/22.

Following is the text of an email announcing the simulation, which I intend to send out first thing in the morning to all UBS Warburg Energy employees (i.e. Houston-based UBS employees), as per John Lavorato's request. If you have any comments, please email me by 8:00 am CST.

Thanks,

Dave

We are continuing work to ensure our new online trading system, UBSWenergy, is ready for launch on the week of Feb. 11, which is the week following the anticipated Enron/UBS Closing Date of Friday, Feb. 8.

To assist in this process, we are planning an online trading simulation for Thursday, February 7 from 0900 to 1100 (CST). It is planned to include all traders, originators, mid/back-office staff and IT teams who would normally be involved with electronic trading.

Purpose of the simulation - The simulation will test our "live" trading environment (restricted to internal access only) and will:

Test the integrity and functionality of the system and related processes (including credit, risk, legal, operations, etc.)
Provide an opportunity for traders to verify their products and product setup Demonstrate how the trading system and processes work to UBS staff visiting next week

Nature of the simulation - The simulation will include testing of all processes related to trading and mid/back-office functions:

Credit, Legal, Risk, Operations, and other groups: Profile tests for "external" customers (role-played by Originators) Profile tests for internal users (traders, back-office, etc.) Data and Process checking as completed transactions flow through Mid/back-Office systems

Traders and Originators: Traders will be managing their individual books and associated products. Although we may be restricted to certain financial products on launch day, both physical and financial will be available during the simulation. Each trader will be asked to manage their individual position and profitability goals for the simulation. Originators and others will be asked to play the roles of counterparties. Credit limits, etc. will be tested during the simulation.

Information Technology: Will assist in preparing data on the system for the simulation. After the simulation is over, will work with the relevant groups to test the trade-data in various systems and risk books Will ensure all simulation data is removed from the system after the simulation is complete.

Next steps

Traders and Originators will be contacted prior to simulation day to ensure they have appropriate access to the system. Originators will be assigned specific roles. You should expect to receive an email and/or handout on or before Wednesday, Feb. 6. UBSWenergy personnel will be meeting with back office personnel over the next several days to ensure everything is in place for the simulation.

Summary

This simulation is an important step towards re-launching our trading business. We appreciate the participation of everyone involved as we prepare for the public launch of UBS Warburg Energy and the UBSWenergy trading platform.

If you have any questions, comments, suggestions, or ideas regarding this simulation, please feel free to contact Bob Shults (30397) or myself (31861).

Regards, Dave Forster 713.853.1861 E-Mail: David.Forster@enron.com

Message 67 of 148

ELECTRIC POWER Early Registration Deadline is Here

Sender	r-5-731851-4290882-2-28619-us1-9c942741@xmr3.com
Recipients	['lkitchen@enron.com']
File	kitchen-l/deleted_items/4.

In a couple of days - February 8 to be exact - - the registration fee for the ELECTRIC POWER 2002 Conference (March 19 - 21 in St Louis) increases from \$445 to \$525 - an \$80 savings if you register now! Don't pay more to take advantage of the most comprehensive conference of the year (350+ speakers/panelists) to address the concerns of operating management from operating companies. You've seen the advertising and the promotional material and if you have not yet decided to attend, you may wish to view the latest on our web site. The links below will take you to the section of the program of most interest to you. You have access to all of these strategic tracks and tactical meetings with your registration fee:

STRATEGIC TRACKS

Risky Business: The 21st Century Energy Company (more relevant today then ever) Generating Asset Portfolio Management (Your key to a healthy bottom line) Environmental Issues & Strategies (How to stay in compliance and anticipate new curves) New Technologies in Plant Concepts (What will your next power plants look like?) Stealth Capacity - Leveraging your Assets (How to make your O&M practices pay) Moving Power to Market - Transmission & Interface Issues (It's no use if you can't get your product to market) TACTICAL MEETINGS

PRB Coal Users' Group Annual Meeting (A must if you have western coal in your present or future) Bituminous Coal Users' Group Meeting (Get in on the ground floor of this new industry group) HRSG Users' Group Annual Meeting (10th annual meeting where HRSG operators discuss it all - candidly and without reserve) Natural Gas Infrastructure Forum (Just how secure is the price and delivery of this increasingly important fuel?) Nuclear Renaissance Forum (Is the technology that our industry once claimed would produce power too cheap to meter back?) Alternative Power Forum (DG, wind, solar, storage - to what extent will they be a part of our future?) e-ProCom (What is the future of integrating e-Commerce into your activities and what will be the impact?) EPC Solutions (Boom or Bust - a strong EPC industry is needed for our future!)

In addition there are hard-hitting interactive plenary sessions and two pre-conference workshops: Plant Manager's Roundtable Gas Turbine O&M Council Workshop as well as a Technical Tour to Labadie Power Station

Meet with your peers and get updated on the impact of the latest industry trends and developments while obtaining valuable information to make you more valuable to your company - and your company more efficient in our ever-changing industry. [IMAGE] The ELECTRIC POWER 2002 Guarantee provides you with a full registration refund if the conference, for any reason, does not meet your expectation. For additional details, please call 713-463-9595 or go to our secure registration site by clicking below. If you have more than five colleagues from your company attending, discounted group plans will provide even greater savings. Click Here to Register Now!

The Trade Fair Group 713-463-9595

If you would prefer not to receive further messages from this sender: 1. Click on the Reply button. 2. Replace the Subject field with the word REMOVE. 3. Click the Send button. You will receive one additional e-mail message confirming your removal.

Message 68 of 148

Securities Purchase Agreement (ENA-Highstar)

Sender	steve.hooser@enron.com
Recipients	['jsonnenberg@bracepatt.com', 'tom.chapman@enron.com', 'scott.churbock@enron.com', 'cthompson@bracepatt.com', ...]
File	kitchen-l/_americas/finance/59.

As promised in my e:mail to you of yesterday regarding the Alamac/NCPH/AIG-Highstar due diligence review meeting to be held today in Conference Room M03 on the 50th floor (see below), attached are the latest versions of the Disclosure Schedules and the Securities Purchase Agreement containing Representations and Warranties.

Please read and focus on the Seller (ENA) Representations and Warranties contained in Section 4.1 [especially those that pertain to your area of expertise/involvement in the various Alamac/Cogentrix/NCPH/AIG transactions] and review the corresponding Schedules of disclosed exceptions, in preparation for this afternoon's meeting.

Because Enron North America Corp. will be signing the Securities Purchase Agreement tomorrow, Friday, May 11, 2001, IT IS CRITICAL THAT WE RECEIVE YOUR INPUT AT TODAY'S 3:00 MEETING. If you are out of town or will be unable to attend the meeting for any other reason, please conference in per the instructions contained below, or call me before 3:00 today at 3-7238 with you input. If your input is simply that the representations and warranties are fine as currently written, please let me know. If you note any inaccuracies or omissions or if you have any questions regarding the wording of any representations/warranties or disclosures, please call to let me know.

Look forward to seeing you at 3:00. Thanks,

Steve Van Hooser EB3877 713-853-7238 ----- Forwarded by Steve Van Hooser/HOU/ECT on 05/10/2001 07:59 AM -----

"Jay Sonnenberg" <jsonnenberg@bracepatt.com> 05/10/2001 01:55 AM To: <Bob.Percopo@AIG.com>, <christopher.lee@AIG.com>, <Michael.Walsh@AIG.com>, <Jgrushkin@milbank.com>, <wbice@milbank.com> cc: "Clark Thompson" <cthompson@bracepatt.com>, <Heather.Kroll@enron.com>, <ozzie.pagan@enron.com>, <steve.van.hooser@enron.com>, <Stuart.Zisman@enron.com> Subject: Securities Purchase Agreement (ENA-Highstar)

Attached please find clean and black-lined versions of (1) the SPA (marked to show changes against our draft of 5/3/01) and (2) the Exhibits and Schedules to the SPA (marked to show changes against the previously circulated draft). Please note that I am forwarding these attachments without the benefit of review by some of the ENA participants. Accordingly, they remain subject to their final approval. Best regards, Jay - #1270266 vRED - SCHEDULES TO AIG SPA.doc - #1270266 v2 - SCHEDULES TO AIG SPA.doc - #1269388 v11 - SECURITIES PURCHASE AGREEMENT (AIG).doc - #1269388 vRED - SECURITIES PURCHASE AGREEMENT (AIG).doc

Rae Meadows/ENRON@enronXgate 05/09/2001 01:55 PM To: Tom Chapman/HOU/ECT@ECT, Scott Churbock/NA/Enron@ENRON, Dave Kellermeyer/HOU/ECT@ECT, Heather Kroll/ENRON@enronXgate, David Marshall/ENRON@enronXgate, Gerald Nemec/HOU/ECT@ECT, Christi L Nicolay/HOU/ECT@ECT, Ozzie Pagan/HOU/EES@EES, Reagan Rorschach/ENRON@enronXgate, Don Stevens/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Gail Tholen/ENRON@enronXgate, Steve Van Hooser/HOU/ECT@ECT, Robert P Virgo/HOU/ECT@ECT, Joseph Wagner/NA/Enron@Enron, Lloyd Will/HOU/ECT@ECT, Glenn Wright/ENRON@enronXgate, Cris Sherman/ENRON@enronXgate, Stuart Zisman/HOU/ECT@ECT, cthompson@bracepatt.com@SMTP@enronXgate, jsonnenberg@bracepatt.com@SMTP@enronXgate Subject: ON BEHALF OF STEVE VAN HOOSER

As a person having Knowledge regarding the Alamac/NCPH/AIG-Highstar Transaction, please attend a due diligence meeting on the North Carolina Power Holdings/AIG Transaction tomorrow, May 10, 2001 at 3:00 p.m. in Conference Room M03 on the 50th floor. If you are unable to attend the due diligence meeting, please call in (1-888-285-4585, Host Code 243106, Participant Code 175041) and join us via teleconference. Please RSVP to my assistant, Rae Meadows via phone (39282) or via e-mail. Please review the attached exhibits together with the representations and warranties which we will forward to you later today in preparation for tomorrow's meeting.

Steve Van Hooser

Message 69 of 148

FW: A/S Line Agreement	
Sender	brian.redmond@enron.com
Recipients	['louise.kitchen@enron.com', 'anne.koehler@enron.com']
File	kitchen-l/_americas/hpl/10.

Louise, - Hello=20

I have attached the draft of the indemnity Anne sent to AEP last week. This is still under discussion as AEP has not yet commented on this draft. We expect to get their initial comments tomorrow after AEP arrives and meet with their counsel.

$$= 20$$

Message 70 of 148

Sender	mlbray@aol.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/hr/182.

Manager, Storage and Asset Management 1998 to 1999 Columbia Energy Group, Houston, Texas Reporting to Senior Vice President - Trading, hired to manage group with \$7 million/year in earnings responsible for optimizing natural gas storage and pipeline capacity leased throughout North America. ? Coordinated with physical, financial, retail trading groups and asset management customers to fully maximize storage and pipeline assets ? Developed and implemented financial and marketing strategies for joint venture with \$12 million/year in revenues with Louisiana local distribution company ? Managed gas supply and storage operations for 8 municipalities located in Tennessee Valley region ? Identified and negotiated major pipeline and storage asset acquisitions ? Utilized financial instruments including futures,

options and swaps to mitigate commodity price risk

Power Trader 1997 Koch Energy Trading, Inc., Houston, Texas ? Performed hourly and next day power trading activities in WSCC, ERCOT, SPP, ECAR, MAIN and SERC regions ? Reserved and confirmed transmission capacity to capitalize on arbitrage opportunities ? Analyze domestic power generation requirements to develop short and long-term trading strategy ? Developed and maintained key business relationships with utilities and power marketers Matthew L. Bray - Page 2

Texaco Natural Gas Inc. 1994 to 1998 Possessed various management positions in Texaco's natural gas trading, business development and natural gas pipeline subsidiaries.

Manager, Gulf Coast Marketing, Houston, Texas July 1997 to June 1998 Managed group with \$4 million/year in earnings providing natural gas trading and marketing services in the Gulf Coast region. Accomplishments included assisting with successful joint venture negotiation with electronic trading company, drafting business plan to develop marketing, financial and risk strategy for three year period and managed successful development and implementation of new natural gas scheduling system. Responsibilities also included negotiating long-term storage contracts with natural gas storage facilities in the Gulf Coast region.

Marketing Representative, Calgary, Alberta, Canada May 1996 to March 1997 International relocation to open satellite marketing office for new \$40 million natural gas storage facility in Canada. Responsible for employee staffing, system implementation, marketing storage services and initiating customer relationships. Negotiated long and short-term storage agreements with producers, marketers and utilities and pursued joint venture/strategic alliance opportunities in Western Canada.

Business Development Representative, Houston, Texas Jan 1994 to May 1996 Position responsibilities included increasing physical capacity and utilization of company owned natural gas pipeline assets. Negotiated completion of three pipeline interconnects, development of natural gas compressor facility and successful acquisition of natural gas gathering system. Served as primary customer contact on natural gas pipeline transportation rates and operational issues. Negotiated long-term firm natural gas pipeline transportation agreements with estimated revenue of \$12 million.

PERSONAL PROFILE

EDUCATION: UNIVERSITY OF HOUSTON, Master of Business Administration -1999 UNIVERSITY OF TEXAS AT AUSTIN, Bachelor of Business Administration Management - 1993

ACTIVITIES: Founding Member - Americas Development Group Fall 1996 Texaco Outstanding Contributor Award Downtown Houston Association - Emerging Leaders Committee National Energy Services Association Houston Energy Association Delta Tau Delta Fraternity Gulf Coast United Way Volunteer Central Texas Alzheimer's Association Certified Scuba Diver Golf, Racquetball, Tennis

Message 71 of 148

FW: Hello

Sender	rahil.jafry@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/mrha/ooc/261.

FYI -

-----Original Message-----

From: Geoffrey_Colvin@fortunemail.com@ENRON

[mailto:IMCEANOTES-Geoffrey+5FColvin+40fortunemail+2Ecom+40ENRON@ENRON.com] Sent: Tuesday, April 03, 2001 7:02 PM To: Jafry, Rahil Subject: Re: Hello Importance: High

Rahil -- Many thanks for the note. Larry Selden and I will be working on this article for the next four weeks or so, and we may well want to take you up on your offer. I greatly appreciate it. --Geoff

Subject: Hello From: "Jafry, Rahil" <Rahil.Jafry@ENRON.com> at TIME_INC Date: 04/03/2001 5:02 PM

Importance: High

Geoff,

It was nice meeting and chatting with you (albeit briefly) about EnronOnline and other markets in which Enron participates (not to mention our li'l chat about English clothes :-)

Just wanted to send you a note reiterating the offer to answer any questions you may have regarding EnronOnline or Enron. Having gone through the development process of EnronOnline and some of the other initiatives within Enron, Louise and/or I should be able to provide you with insights in case you have questions.

Regards, Rahil

W: 713.853.3206 rahil.jafry@enron.com 1400 Smith Street, Houston, Texas 77002

Message 72 of 148

FW: creditex , LoanX, Enron Introductions

Sender	andrew.fastow@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/finance/60.

Louise:

Do you have any interest in attending this? Buy and Kopper are scheduled to attend. Wednesday, 10:45 am.

-----Original Message-----

From: "Michael Rushmore" <michael.rushmore@loanx.com>@ENRON Sent: Monday, April 23, 2001 11:01 AM To: Fastow, Andrew S. Cc: Sunil Hirani; Dik Blewitt Subject: creditex , LoanX, Enron Introductions

Hello Andy.

It's been a long time since we talked, but I trust that things are well with you and Lea.

The reason for my email is that my business partners Sunil Hirani and Dik Blewitt are going to be in Houston visiting with Ken Lay at 10:30 A.M. on Wednesday. I think that you would find their business (trading credit risk) to be of interest, and I know they would like to meet you.

Would you have any time on your calendar for lunch or for an introduction during the afternoon?

Briefly, Sunil is the co-founder of creditex, a the credit derivatives trading platform that the market has adopted as the e-market for credit derivatives. Dik is Chief Strategic Officer of creditex.

My relationship with Dik and Sunil comes from our shared interest in trading syndicated loans. creditex and I have co-founded LoanX, Inc., to do for the loan market what creditex has done for the credit derivatives market.

Sorry for the out-of-the blue email, but I look forward to catching up with you in the future.

I've copied Sunil and Dik to facilitate any schedule coordination that might be possible.

My best to Lea.

Mike michael.rushmore@loanx.com 312-282-7777 (cell) LoanX, Inc. 125 S. Wacker STE 1150 Chicago, IL 60606

*Message 73 of 148***FW: Confirmation - Ticket purchase**

Sender	louise.kitchen@enron.com
Recipients	['tammie.schoppe@enron.com']
File	kitchen-l/sent_items/539.

Tammie

They know you are picking up the tickets - you will need a photo id too. You need to be in your seats 30 minutes before the show - get a cocktail to take in - I recommend the 'O'. You probably should pick up your tickets at an earlier time than the show as the queues are horrible just before showtime. Louise

Thank you for purchasing your tickets through the Bellagio Web site.

This message confirms your purchase, as follows: Performance: "O" BY CIRQUE DU SOLEIL-MON Venue: "O" THEATRE AT BELLAGIO Date: February 4, 2002 Time: 7:30 PM Number of tickets: 2 Seat: Level ORCH, Section 202, Row W, Seat 1-2 Your Delivery Choice (see note below): Pick up at the Bellagio Ticket Office Confirmation number: 96-16376

A printed version of this page, along with a photo ID and the credit card used to make this purchase must be presented to obtain your tickets.

Only the credit card holder may pick up tickets. Third-party billing will not be accepted.

Tickets may be picked up at the Bellagio Ticket Office at your earliest convenience, but no later than one hour prior to showtime. Otherwise, your reservation is subject to cancellation.

Ticket office hours are 9am to 11pm Friday through Tuesday; 9am to 9pm Wednesday and Thursday.

Theatre doors open one hour prior to showtime. Please be seated 30 minutes prior to the performance. Late arrivals will be seated at the proper

interval during the performance.

No cameras or recording devices are permitted inside the Theatre.

If you need more information on your purchase, please contact the Bellagio Ticket Office by calling (888) 488-7111.

Reserve a room online at Bellagio:

<http://mirage.roomsexpress.com/cgi-bin/ConvHouz.exe?RequestCode=100&VendorFrom=RBG>

Explore the world of Cirque du Soleil and take a virtual backstage tour of "O" at <http://www.cirquedusoleil.com>

*Message 74 of 148***RE: "50 Key Women in Energy" - rsvp**

Sender	louise.kitchen@enron.com
Recipients	['linda.rader@jacobsconsultancy.com']
File	kitchen-l/sent_items/171.

Dear Linda

I apologize for not having responded earlier but I do not think I received the invitation, which is quite possible bearing in mind the difficulties here at the moment. We have recently received approval from the bankruptcy judge to sell the portion of the business I jointly manage to UBS Warburg and in fact I am planning to relaunch enrononline (under our new entity) and we hope to be up and running around the time you are in Germany.

I am sure you understand that it is going to be a busy time for me in February combining the integration with UBS and restarting the gas and power trading operation under our new owner.

I appreciate your comments and thank you for your invitation but I do not feel able to accept.

I hope you all have a safe and enjoyable trip to Germany.

Regards

Louise Kitchen

-----Original Message-----

From: "Rader, Linda" <Linda.Rader@jacobsconsultancy.com>@ENRON Sent: Tuesday, January 22, 2002 6:58 PM To: Kitchen, Louise Subject: "50 Key Women in Energy" - rsvp

I have an important question, so I'll e-mail it to you so you have time to respond accordingly. I'm creating the final list of which of the "Key Women in Energy" will be attending the awards ceremony in Essen, Germany on 14 February, and don't have a response from you yet. If you'd like to attend, we'd love to have you. At the same time, I understand your world is changing daily. All the same, it might be nice for you to meet the other women and for the other women to meet you. Please do let me know if you plan to attend, or, given your schedule, if there is the possibility you could attend.

So far, I think there are 15 women who have committed to attend - from as far away as Australia, the US, the UK, Bulgaria and Germany. We're all gathering for dinner on Feb. 13, and many of us are meeting earlier than that to explore the German countryside. I've been taking German lessons all winter so hopefully we'll get by. I'd be glad to help better understand the conference setting and details if you'd like. Several of us are gathering in Essen over that weekend and early that week to meet one another, share a meal, and get to exchange stories. You've personally done much for the energy industry and might be surprised what a warm welcome you could receive for your extensive efforts to lead the team that built EnronOnline.

Please do let me know so I may complete reservations, etc. Many of us are staying at the same hotel, so it should be interesting. Linda K. Rader Group Manager Jacobs Consultancy 5995 Rogerdale Road Houston, Texas 77072 USA linda.rader@jacobs.com +1 (832) 351-7813

Message 75 of 148

RE: NETCo - HR Arrangements for the weekend

Sender	louise.kitchen@enron.com
Recipients	[david.oxley@enron.com]
File	kitchen-l/sent_items/199.

David

please make sure all team leaders have this or a smaller version.

-----Original Message-----

From: Oxley, David Sent: Friday, January 18, 2002 6:17 PM To: Lavorato, John; Kitchen, Louise; Milnthorp, Rob; Calger, Christopher F.; Belden, Tim; Presto, Kevin M.; Shively, Hunter S.; Whalley, Greg Cc: Haedicke, Mark E.; Colwell, Wes; Cash, Michelle; 'anthony.brown@ubsw.com'; 'audrey.martin@ubsw.com'; Davies, Neil; Slone, Jeanie; Fitzpatrick, Amy; Jarrett, Anthony Subject: NETCo - HR Arrangements for the weekend

Appreciate there will be a great deal of activity over the 3 day weekend in relation to the contracts and offer letters we just distributed. Here are arrangements for the weekend to ensure you know how to get things done:

Contract or offer letter Changes UBS will be keeping a team in Houston (at the Houstonian) to continue to produce contracts in the event we find errors or we need changes. Any changes to compensation terms, title or alteration to contract wording (ie not errors), need to be discussed and approved by Louise, John and Greg. In the event of their

agreement or the need for simple correction, please contact following:

Enron HR Rep UBS Contacts Houston Commercial Jeanie Slone 713-553-7049 (cell) see attached. Portland (all) Amy Fitzpatrick 713-859-6266 (cell) Calgary (all) Either of above Houston Support Mandy Curless 713-516-0324 (cell) Neil Davies 713-857-4507 (cell) << File: ubsscontacts.xls >> They will complete attached form and shepherd the changes through Anthony Brown (UBS HR - cell phone 1-646-244-6311) and keep you in loop on any issues arising and the ETA of the revised document. << File: CONTRACT CHANGE FORM.doc >> Where any discussion takes place around whether we should change the wording of agreements, I will work with Michelle Cash and the UBS HR and legal team to agree and propose solutions. In this regard please contact me (713-922-2991) or Michelle (713-302-5522).

Questions about offer letter or contract wording Where aspects of the contract appear unclear or requiring explanation but not necessarily a change, please DO NOT refer the individuals directly in the first instance. But Michelle will again be on point to address these.

Questions about benefits or Comp or other HR issues referred to in above Many individuals may want to discuss UBS compensation, benefits, policies or procedures. Below is the contact list for people to call to get answers to their questions:

KEY SPECIALIST CONTACTS WEEKEND OF JANUARY 19/20 Position Home Work Cell Other Raman, Kumar Immigration 212-891-7515 Digiacomio, Larry Relocation/Int'l Assignees 203-248-4560 203-719-4686 203-696-8646 Hart, Tracy Compensation Policies 203-358-9687 203-719-4688 Raimondi, Vince Benefits 203-563-0535 203-719-0656 203-563-0535

Enron Estate Issues including Non-Competes and Benefits Many people have asked for confirmation of being released from their existing Enron contracts. If people have questions about this they should call me or Michelle. In relation to Enron pension, savings or general benefits matters, please call Tony Jarrett on 713-853-7829 (he will be in the office).

Return of signed contracts and completed application forms Please contact Jeanie or Amy to arrange collection for anyone who wants to hand in their signed CONTRACTS over the weekend. They will keep a register. They will then pass on to UBS.

Signed offer letters Please return these as follows:

Houston directly to the Houstonian. The Magnolia Room on the 3rd floor. Calgary via fax (Anthony will supply) to above or return in person Tuesday to the local UBS HR representatives. Portland as above.

David

Message 76 of 148

RE: Balance Sheet Review

Sender	scott.josey@enron.com
Recipients	['louise.kitchen@enron.com', 'jesus.melendrez@enron.com', 'c.thompson@enron.com']
File	kitchen-l/_americas/regulatory/140.

Louise,

A detailed discussion of all of the assets currently under management by EC= R is being prepared by Jesus Melendrez and is near completion. I am meeting= with Pam Becton in the morning to review the various off balance sheet veh= icles. The assets that are in active divestiture process are CGAS and Juni= per. An agent has been engaged for the Juniper assets. We are in discussi= on with a group on CGAS. We expect both of these transactions to close by = year end but hopefully in the 3rd quarter. The Preston I & II VPPs were sy= ndicated into Brazos in December '00 and January '01, respectively. The Cr= escendo (\$7.5 MM) VPP was syndicated into Brazos in December '00. The rema= nder of the Crescendo VPPs should be moved into Brazos by year end or 1Q'0= 2 once a second VPP transaction occurs. The KCS VPP (\$159 MM) is set to cl= ose and fund no later than 6/27 according to Tim Proffitt. Hanson is an acc= rual and may be sold by year end if no other drilling occurs. Ameritex, Cyp= ress, Sam Gary/Bonne Terre, Vastar, Texland are assets that are still in de= velopment. Crescendo, Westwin, Nutech and Preston Equity are recent transac= tions (< 1yr old). Several

options are being reviewed on Mariner - (i) sale or merger with another company, (ii) IPO, provided Enron gets its debt repaid and 75% of its equity sold at an enterprise valuation of \$500 MM or greater (the MEGS pipeline asset would be included in this option), or (iii) continue to develop the asset. We will make our recommendation on Mariner once Allan Keel completes his analysis.

I recognize that this explanation is brief. Let me know if you need additional information or would like to meet to discuss further. =20

Scott =20 -----Original Message----- From: =09Kitchen, Louise =20 Sent:=09Thursday, June 21, 2001 9:08 AM
To:=09Josey, Scott Subject:=09Balance Sheet Review

I am trying to get a grip on the projected balance sheet (including any off-balance sheet items JEDI, Trutta, Condor, Hawaii) for end of year.

You have the following on the balance sheet - which ones are you working on removing?

Those I am looking at are:-

=09 Ameritex =09=09\$4.4 =09Crescendo=09 =09 3.2 =09Crescendo=09 =09450,00 =20 Crescendo=09 =096.0
=09Crescendo VVP =09200,000 =09Crescendo VVP =09 500,000 =09Cypress=09 =0921.7 =09Cypress=09 =09 4.8
=09Hanson=09=09 =09 1.7 =09Hanson=09=09 =09400,000 =09Juniper=09=09 =098.6 =09Juniper=09=09 =0912.9
=09KCS VPP=09 =09159.0 =09Mariner=09=09 =09130.0 =09Mariner=09Common=09363.0 =09Mariner
Warrants=0924.5 =09McGarett K/CGAS=0930.0 =09Nutech Energy=09=094.2 =09Preston I Equity=09=09569,000
=09Preston II Equity=09=09350,000 =09Sam Gary/Bonne Terre=097.2 =09Sam Gary/Bonne Terre=094.7 =09Sam
Gary/Bonne Terre=09209,000 =09Texland(R)=09=095.7 =09Texland(R)=09=093.8 =09Vastar(R)=09=09980,000
=09Westwin Energy=095.0 =09Westwin Energy=092.5 =09Crescendo VPP=097.5 =09Preston I VPP=09=0936.7
=09Preston II VPP=09=0922.8 =09Crescendo VPP=09500,000

Message 77 of 148

CORRECTION-- CONFERENCE CALL ON TUESDAY, FEBRUARY 13 (800-229-028)

Sender	ray.niles@ssmb.com
Recipients	
File	kitchen-l/_americas/regulatory/237.

SSB Conference Call Tuesday, February 13, 2001 2:00 PM EST

Beyond California: The Power & Merchant Energy Outlook for 2001

Recent Publication: The Power Curve and Merchant Energy Monthly

We see continued strong fundamentals in the wholesale power markets as we move into 2001.

Forward markets show average U.S. power prices 92% higher in 2001 than in 2000.

The western hubs have seen the most staggering increases; however, the markets foretell stronger prices across the country in 2001.

We continue to recommend the Power Producers, based on both our power price and spark spread analyses, which show strengthening spark spreads in the United States, despite the record highs recently seen in the natural gas markets. We highlight Calpine, NRG Energy, and Mirant.

Our volatility indices demonstrate a dramatic shift in historical volatility to the western hubs and away from the Midwestern markets of 1998-99. We expect volatility to persist in the West, likely accompanied by higher volatility in the remainder of the country in 2001. This benefits Energy Merchants, and we highlight Enron, Dynegy, Duke, and El Paso.

Dial In 800-229-0281 US 706-645-9237 Intl

Replay 800-642-1687 US 706-645-9291 Intl Reservation 735670 (replay until 2/15)

hosted by:

Raymond Niles Director Power & Natural Gas Research Salomon Smith Barney 212-816-2086

Raymond C. Niles Power/Natural Gas Research Salomon Smith Barney (212) 816-2807 ray.niles@ssmb.com

s

Message 78 of 148

RE: Better send the four boxes of Fastow's deal toys up to legal

Sender	tammie.schoppe@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/tammie/8.

This is completed.

Tammie Schoppe Enron Americas-Office of the Chair Assistant to Louise Kitchen 713.853.4220 office 713.646.8562 fax 713.253.2131 mobile

-----Original Message-----

From: Kitchen, Louise Sent: Wednesday, January 23, 2002 10:37 PM To: Schoppe, Tammie Subject: Better send the four boxes of Fastow's deal toys up to legal

Have them delivered to Jim Derrick and explain that they are Fastow's deal mementoes which were left in his office. I don't think his picture will have reference so we'll keep it for now. Thanks

Louise Kitchen Chief Operating Officer Enron Americas Tel: 713 853 3488 Fax: 713 646 2308

Message 79 of 148

RE:

Sender	tammie.schoppe@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/tammie/16.

I checked with Vitol and they have issued the credit but they said it takes at least two billing cycles for the credit to appear on your amex statement.

Tammie Schoppe Enron Americas-Office of the Chair Assistant to Louise Kitchen 713.853.4220 office 713.646.8562 fax 713.253.2131 mobile

-----Original Message-----

From: Kitchen, Louise Sent: Tuesday, January 22, 2002 9:04 AM To: Schoppe, Tammie Subject:

Need all those docs printing today.

Also can you please check on why I have not being reimbursed by Continental for the flights at Christmas.

Also - expenses - what is the situation.

Louise Kitchen Chief Operating Officer Enron Americas Tel: 713 853 3488 Fax: 713 646 2308

Message 80 of 148

RE:	
Sender	tammie.schoppe@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/tammie/18.

The docs are printed just need to make one copy and put in a binder. Should I make any tabs?

I will check with Continental.

Expenses-I have not heard anything-will follow up.

Tammie Schoppe Enron Americas-Office of the Chair Assistant to Louise Kitchen 713.853.4220 office 713.646.8562 fax 713.253.2131 mobile

-----Original Message-----

From: Kitchen, Louise Sent: Tuesday, January 22, 2002 9:04 AM To: Schoppe, Tammie Subject:

Need all those docs printing today.

Also can you please check on why I have not being reimbursed by Continental for the flights at Christmas.

Also - expenses - what is the situation.

Louise Kitchen Chief Operating Officer Enron Americas Tel: 713 853 3488 Fax: 713 646 2308

Message 81 of 148

Buzzwords	
Sender	jean.mrha@enron.com
Recipients	['roberto.deleon@enron.com', 'brian.redmond@enron.com', 'louise.kitchen@enron.com', 'andrew.edison@enron.com',...]
File	kitchen-l/_americas/mrha/80.

As I promised from our meeting earlier today:

By Business Names Firms Projects/ Acreage Relevant Numbers

Upstream Products Mrha Aker Devil's Tower 713-430-1283 Production Offshore Byargeon Convergent Crazy Horse 713-430-1284 double lease structure Fowler AEP Triton 281-588-7500 FASB 125 sell-down Haynes Pioneer 504-593-7308 IDC tax benefits O'Sullivan Mariner corridor Herasimchuk Dominion tieback Spartech 1p 2p 3p FPSO floating production facility SPAR or spar

I think this list is exhaustive. Please include the phone numbers given by Brian Redmond from our meeting earlier.

If you have any further questions, please contact me or Brian Redmond. I will be leaving for Calgary this evening and returning Friday morning. I will be checking voicemail and my mobile is 713-302-4187.

Regards, Jean

Message 82 of 148

Perspective on FERC Regulatory Action Client Conf Call Today, June e

Sender	ray.niles@ssmb.com
Recipients	[]
File	kitchen-l/_americas/portland/92.

Perspective on FERC Regulatory Action Client Conference Call TODAY, Tuesday, June 19th 2:00pm EDT

Host: Ray Niles, Power/Natural Gas Analyst Speaker: Steve Bergstrom, President & COO of Dynegy

Steve Bergstrom, President and Chief Operating Officer of Dynegy, will join us at 2:00 p.m. today for a conference call discussion of the recent FERC action imposing price controls in the West. The discussion will be followed by Q&A.

Questions to be explored include:

What are the implications of the FERC action, for DYN and the industry as a whole? What is the earnings impact? What are the risks of further re-regulation?

and whatever else is on your minds

We attach two recent notes on the FERC action for your reference.

Call In Replay Reservation 800-229-0281 US 800-642-1687 US 1073259 706-645-9237 Int'l 706-645-9291 Int'l replay until 6/22, 11:59pm

Raymond C. Niles Power/Natural Gas Research Salomon Smith Barney (212) 816-2807 ray.niles@ssmb.com

S

Message 83 of 148

FERC Price Cap Order Client Conf. Call @ 11:30 AM EDT TODAY!!!

Sender	ray.niles@ssmb.com
Recipients	[]
File	kitchen-l/_americas/regulatory/186.

FERC Price Cap Order Client Conference Call Today, Thursday, April 26th at 11:30am EDT Host: Ray Niles

Late last night the Federal Energy Regulatory Commission ("FERC") acted to impose "temporary" wholesale power price caps in the western United States. * The cap affects the "real-time" market, which we estimate is only 5% of the total wholesale market; it is set to expire in one year from May 1 * This is a near-term negative for Power Producers and Energy Merchants, a dramatic example of "headline risk". The political risk of re-regulation has stepped up, in our view, reducing the multiple investors will pay for earnings * In terms of earnings, ironically, the effect may be somewhat positive, albeit small (only 5% of market is affected). Caps are likely to increase volatility, benefitting Energy Merchants, and sustain high power prices for a longer period of time, benefitting Power Producers, by reducing the incentive to build new plants.

Call In Replay Reservation 800-229-0281 US 800-642-1687 US 758540 706-645-9237 Int'l 706-645-9291 Int'l replay until 4/30, 11:59pm

Raymond C. Niles Power/Natural Gas Research Salomon Smith Barney (212) 816-2807 ray.niles@ssmb.com

S

Message 84 of 148

Re: Final Collateral Annexes

Sender	john.magovern@ubsw.com
Recipients	['carol.st.@enron.com', 'angela.davis@enron.com', 'e..haedicke@enron.com', 'louise.kitchen@enron.com']
File	kitchen-l/inbox/65.

- ARPA1.txt I have no further comment, from UBS Legal standpoint, on either the one-way or two-way ISDA Credit Support Annex Paragraph 13, pending the text to come defining "Material Adverse Change".

Will have comments on the Gas Annex tomorrow and the Power Annex as soon as possible after I receive it.

I will be in Stamford tomorrow at 203.719.8958.

Best regards.

 Reply Separator
 Subject: Final Collateral Annexes Author: Carol.St.Clair (Carol.St.Clair@ENRON.com) at unix,mime Date: 2/4/02 5:30 PM

Enclosed are final versions of the Physical Gas Collateral Annex and the One Way and Two way Schedules to the ISDA Credit support Annex. Elizabeth Sager will be e-mailing the Power Collateral Annex.

<<UBS Credit Support Annex Version 3 One Way FINAL 2-4.doc>> <<UBS Credit Support Annex Version 5 Two Way FINAL 2-4.doc>> <<NETCO Gas Master Credit Support Annex Version 3 FINAL 2-4.doc>>

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-3393 (fax) 281-382-1943 (cell phone) 8774545506 (pager) 281-890-8862 (home fax) carol.st.clair@enron.com

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- UBS-Credit-Support-Annex-Version-3-One-Way-FINAL-2-4.doc -
 UBS-Credit-Support-Annex-Version-5-Two-Way-FINAL-2-4.doc -
 NETCO-Gas-Master-Credit-Support-Annex-Version-3-FINAL-2-4.doc

Visit our website at <http://www.ubswarburg.com>

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Message 85 of 148

FW: Power Documents (Final)

Sender	david.forster@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/netco_eol/5.

Louise,

Did you ultimately agree with legal that we would proceed with using the EEI as the GTC?

The GTC provided below is the EEI.

Dave

-----Original Message-----

From: Sager, Elizabeth Sent: Monday, February 04, 2002 4:53 PM To: St. Clair, Carol; Cook, Mary; Davis, Angela; Hall, Steve C. (Legal); Hansen, Leslie; Hodge, Jeffrey T.; Keohane, Peter; Koehler, Anne C.; Leite, Francisco Pinto; Nemec, Gerald; Nettelton, Marcus; Portz, David; Taylor, Mark E (Legal); Yoder, Christian; Bryan Murtagh (E-mail); Sanjeev Karkhanis (E-mail); Fitzgerald, Genia; Jones, Tana; Heard, Marie Cc: Presto, Kevin M.; Calger, Christopher F.; Belden, Tim; Kitchen, Louise; Forster, David; Haedicke, Mark E. Subject: Power Documents (Final)

Attached are final forms of certain Power Trading documents:

1. Master Agreement EEI (full blown), with all credit terms left blank, for negotiation with counterparties (CP);
2. EEI Collateral Annex, including paragraph 10, for use with the Master Agreement EEI;
3. GTC EEI, Online with credit terms (unilateral right to call for collateral at any time for any reason), for use as the default GTCs Online when dealing with CPs with whom there will be a credit requirement (but could also be used for trades entered into orally assuming we secure the CP consent to the form of agreement, including cover page, prior to entering into trade);
4. GTC EEI, Online without credit terms, for use as the default GTCs Online when dealing with CPs with whom there will not be a credit requirement (but could also be used for trades entered into orally assuming we secure the CP consent to the form of agreement, including cover page, prior to entering into trade).

While these documents have been discussed generally with UBS, UBS has not yet had an opportunity to review the actual final version.

100 copies of the first two documents (which will be combined as one for distribution) will be delivered by Genia to Dave shortly.

Please call with any questions/comments.

Elizabeth Sager 713-853-6349

-----Original Message-----

From: St. Clair, Carol Sent: Sunday, February 03, 2002 2:57 PM To: Cook, Mary; Davis, Angela; Hall, Steve C. (Legal); Hansen, Leslie; Hodge, Jeffrey T.; Keohane, Peter; Koehler, Anne C.; Leite, Francisco Pinto; Nemec, Gerald; Nettelton, Marcus; Portz, David; Sager, Elizabeth; Taylor, Mark E (Legal); Yoder, Christian; Bryan Murtagh (E-mail); Jeffrey Stewart (E-mail); Jennifer Gabrielson (E-mail); John Magovern (E-mail); Sanjeev Karkhanis (E-mail) Cc: Haedicke, Mark E.; Kitchen, Louise; Fitzgerald, Genia; 'llmagovern@aol.com' Subject: Power Collateral Support Annex Importance: High

Enclosed are clean and mark revised (hopefully close to final) drafts of the EEI Collateral Annex and Cover Sheet. Most of the changes were made to add Securities as Eligible Collateral. This has not yet been done on the Cover Sheet since it is in a special format that I couldn't figure out. It will be done tomorrow. Please call or e-mail me with any remaining comments as we need to finalize this as early as possible tomorrow. Thanks.

<< File: NETCO EEI Collateral Annex Cover Sheet Version 2.doc >> << File: NETCO EEI COLLATERAL ANNEX COVER SHEET RED.DOC >> << File: NETCO EEI Collateral Annex Version 2.doc >> << File: NETCO EEI COLLATERAL ANNEX RED.DOC >>

Genia: I left the cover sheet in your chair with the changes that need to be made. Can you please make those changes?
Thanks.

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-3393 (fax) 281-382-1943 (cell phone) 8774545506 (pager)
281-890-8862 (home fax) carol.st.clair@enron.com

Message 86 of 148

Market Transparency Ruling and Bingaman Bill

Sender	geriann.warner@enron.com
Recipients	['linda.robertson@enron.com', 'nicki.daw@enron.com', 'louise.kitchen@enron.com', 'richard.shapiro@enron.com', ...]
File	kitchen-l/_americas/regulatory/61.

Per Lisa Yoho and Linda Robertson's request, I've scheduled a conference call for Tuesday, September 11 at 3:00 p.m. CST to discuss MTR and the Bingaman Bill.

The toll free numbers are listed below. Please let me know if you will not be able to participate.

DATE: Tuesday, September 11 TIME: 3:00 P.M. CST (9:00 P.M. London time)

TOLL FREE: 1-800-998-2462 for Houston and Washington participants 703-736-7230 for London participant PASS
CODE: 5522210

Gerianne Warner Global Government Affairs EB 4740C 713.853.5036 - Phone 713.853.7297- Fax

Message 87 of 148

ISDA Credit Support Annexes

Sender	carol.st.@enron.com
Recipients	['mary.cook@enron.com', 'angela.davis@enron.com', 'tana.jones@enron.com', 'louise.kitchen@enron.com']
File	kitchen-l/_americas/netco_legal/17.

Enclosed is a revised draft of the Two Way ISDA Credit Support Annex, clean and marked. Also enclosed is a draft of the One Way ISDA Credit Support Annex and a version marked against the Two way version. Please forward to me your final comments by early tomorrow, by e-mail, voice mail or call me at home or in the office (I will come in around 11 or so). Changes to the existing gas and power collateral annexes will follow once this has been finalized.

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-3393 (fax) 281-382-1943 (cell phone) 8774545506 (pager)
281-890-8862 (home fax) carol.st.clair@enron.com

Message 88 of 148

Thank you for the memories

Sender	zal.masani@enron.com
Recipients	['ben.freeman@enron.com', 'zal.masani@enron.com', 'roger.estrada@enron.com', 'shalesh.ganjoo@enron.com']
File	kitchen-l/_americas/esvl/430.

Dear All:

The last 3 yrs. that I have spent at Enron have been extremely enjoyable, challenging and interesting. I would like to thank you all for contributing to making the time I spent here memorable. I have made some really good friends and I would like to stay in touch with all of you.

Because I am not sure what the the future holds I have attached my lifetime e-mail address below.

zalmasani@alumni.utexas.net + 1-713-874-1156 Home

Please send me your contact info.

Best of luck to everyone.

Zal Masani Associate Global Trading & Risk Management Enron Broadband Services + 1-713-853-4788 Office + 1-713-646-8795 Fax + 1-713-412-4369 Mobile

Message 89 of 148

HR rep information

Sender	kim.melodick@enron.com
Recipients	['louise.kitchen@enron.com', 'tammie.schoppe@enron.com']
File	kitchen-l/_americas/hr/270.

Hi Louise, My name is Kim Melodick. I am the HR Manager for the East Power Team. I wanted to supply you with a way to contact me should you need assistance. I am currently working on projects related to partnering with the team to assist in meeting their business goals. I will follow up next week to see if we might have a chance to sit down and discuss your key objectives for Power and specific expectations. I will also share with you what I am currently working on. In the meantime, here are some numbers to reach me:

Kim Melodick work# 713-345-7273 pager# 888-635-7054 cell# 713-598-8203 home# 281-364-0424 EB locations: 3667B and 3106C

Message 90 of 148

Power and Gas CSA'S

Sender	carol.st.@enron.com
Recipients	['sanjeev.karkhanis@ubsw.com', 'jjmagovern@aol.com', 's..bradford@enron.com', 'legal <taylor@enron.com', 'eli...
File	kitchen-l/_americas/netco_legal/16.

John and Sanjeev: I am retransmitting the current drafts of the Power and Gas Collateral Annexes that we plan to use. I am also sending the EEI Master that goes with the Power CSA. the gas Master has not yet been prepared. Once we sign off on the ISDA CSA, I plan to make conforming changes to these collateral annexes (mainly to address John's comments to the ISDA CSA) and also add as a form of collateral to each "securities". Please let me know if any other changes need to be made. Thanks.

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-3393 (fax) 281-382-1943 (cell phone) 8774545506 (pager) 281-890-8862 (home fax) carol.st.clair@enron.com

Message 91 of 148

Out of Office - Mark Haedicke

Sender	e..haedicke@enron.com
Recipients	['james.derrick@enron.com', 'j.harris@enron.com', 'raymond.bowen@enron.com', 'sue.ford@enron.com', 'jim.fallon...]
File	kitchen-l/_americas/esvl/43.

I am having surgery on my upper lip on January 14 and required reconstructive surgery the following day, January 15. I am told by my doctors that I may not be able to talk for several days following the surgery. When necessary, we may need to communicate by e-mail. I will definitely be out of the office January 14 and 15. I plan to take my recovery day-by-day and will return to the office as soon as I am able.

My home telephone number is (281) 496-5276 and my cell number is (713) 582-2367.

Janette Elbertson on behalf of Mark Haedicke Enron Wholesale Services Legal Department Telephone: (713) 853-7906
Fax: (713) 646-2600 e-mail: janette.elbertson@enron.com

Message 92 of 148

FW: EPMI/AEP/Allegheny Ring Transaction Confirms

Sender	s..bradford@enron.com
Recipients	['fhilton@aep.com', 'torr@aeglobalmarkets.com', 'ctmoran@aep.com', 'elizabeth.sager@enron.com', 'legal <.hall@...]
File	kitchen-l/_americas/esvl/658.

Below please find proposed confirms for the proposed ring transactions among EPMI, AEP and Allegheny.

These confirms are for discussion purposes only and do not represent a commitment on the part of Enron or EPMI until fully agreed and executed by all commercial and credit authorities of each counter-party. These confirms are being distributed internally within Enron at this time and remain subject to review by Enron commercial and counsel.

Please provide comments on this transaction as soon as possible and preferably no later than Noon on Friday, November 2, 2001.

EPMI Contacts:

Bill Bradford 713-853-3831(O), 713-857-7739(Cell) Chip Schneider 713-853-1789(O), 713-306-1184(Cell)

Message 93 of 148

Tax Review of California Senate Bill No. 1

Sender	matthew.gockerman@enron.com
Recipients	['jeff.dasovich@enron.com', 'mark.haedicke@enron.com', 'edward.coats@enron.com', 'stephen.douglas@enron.com', ...]
File	kitchen-l/_americas/regulatory/168.

Attached please find a Tax Review of California Senate Bill No. 1 ("SB 1X"). The Tax Review sets out the practical implication (likely cessation of electricity sales and curtailment of investment in new generation assets) and constitutional deficiencies of SB 1X. Please note, SB 1X will not apply to sales of electricity made pursuant to binding written contracts executed on or before the date SB 1X is signed into law (if ever).

The California Senate has passed SB 1X. The California Assembly has drafted their own version, Assembly Bill No. 128 ("AB 128X"), which the Assembly is presently debating. A Tax Review of AB 128X is also attached.

We will keep you advised regarding the progress of both SB 1X and AB 128X. Please advise if you have questions and/or comments. Thanks.

Ed Coats - 713.853.6369 Steve Douglas - 713.853.0938 Gavin Russo - 713.853.6296 Matt Gockerman - 713.853.3979

Message 94 of 148

FW: dynegy letter re sithe

Sender	carol.st.@enron.com
Recipients	['s..bradford@enron.com', 'tanya.rohauer@enron.com', 'louise.kitchen@enron.com']
File	kitchen-l/_americas/esvl/530.

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-8537 (fax) 281-382-1943 (cell phone) 8774545506 (pager) 281-890-8862 (home fax) carol.st.clair@enron.com

-----Original Message-----

From: Mellencamp, Lisa Sent: Thursday, November 15, 2001 10:18 AM To: Murphy, Harlan Cc: St. Clair, Carol; Tweed, Sheila; Sager, Elizabeth Subject: dynegy letter re sithe

harlan: for forwarding to dynegy

the framework re the sithe letter: 1.added cross default to master netting agreement. 2.added acceleration of ena's payment obligations in the event of default by enron parties under the master and close-out by the dynegy parties. 3.added set off right to dynegy parties if they end up owing under the master to the remaining payment obligations of ena.

re the master netting agreement which you will send: 1. added cross default to ena's payment obligations under the sithe letter. 2. added set off right to dynegy parties like in 3. above.

Message 95 of 148

Relaunch of EnronOnline

Sender	louise.kitchen@enron.com
Recipients	['pat.odonnell@ubs.com', 'legal <.taylor@enron.com>', 'jay.webb@enron.com', 'david.forster@enron.com']
File	kitchen-l/sent_items/433.

Pat - please pass to the appropriate person - thanks

I thought it may be helpful to introduce Dave Forster, Dave is the Vice President in charge of the commercial/operational aspects of EnronOnline (that was!). We do have a relaunch plan in place which highlights critical timings which need to be met over the next weeks. I hope this will assist you. The attached document is a high level outline of what needs to be done between ourselves and the buyer.

Should UBS be the winning bidder, we are currently planning to use the website name "ubsenergy.com". If you intend to give us one of your own doamine names please let us know.

If you have any questions on the timetable, please do not hesitate to contact Dave or myself, or on the form of the agreements Mark Taylor.

Dave Forster 713 853 1861 Mark Taylor 713 853 7459

Thanks

Louise

Louise Kitchen Chief Operating Officer Enron Americas Tel: 713 853 3488 Fax: 713 646 2308

Message 96 of 148

Americas 3Q Presentation

Sender	david.leboe@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/mrha/ooc/52.

Please find the latest draft of the Wholesale pitch included below as an attachment.

I have included front portion, Americas and Europe sections.

The only data point I am lacking at this point relates to our East Power slide regarding # of Term MW's. I am working with Leslie Reeves on obtaining this information. I expect the wording on the RTO's slide may change a bit once Gov. Affairs provides their final comments; however, this draft includes most of the content.

Following our discussion this morning, you may have some comments on Slide 14 (Recent Structured Transactions). This slide was modeled after your Board presentation. We can add/delete information as you desire.

I am working on modifying the conference call script language and will forward to you shortly.

Thanks again for your help.

Regards.

David T. Leboe Director, Investor Relations Enron Corp.

Office 713.853.4785 Cell 713.562.2160 Fax 713.646.3002 Pager 877.237.7732 david.leboe@enron.com

Message 97 of 148

RE: Gas Master

Sender	carol.st.@enron.com
Recipients	['s.bradford@enron.com', 'f.calger@enron.com', 't.hodge@enron.com']
File	kitchen-l/_americas/netco_legal/8.

Jeff Please delete from the definition of Event of Default causes (ii) and (x) as these are dealt with in the Collateral Annex which has its own Events of Default section. Thanks.

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-3393 (fax) 281-382-1943 (cell phone) 8774545506 (pager) 281-890-8862 (home fax) carol.st.clair@enron.com

-----Original Message-----

From: Hodge, Jeffrey T. Sent: Monday, February 4, 2002 2:17 PM To: Bradford, William S.; Calger, Christopher F.; Cook, Mary; Davis, Angela; Haedicke, Mark E.; Keohane, Peter; Kitchen, Louise; Nemec, Gerald; Sager, Elizabeth; St. Clair, Carol; Taylor, Mark E (Legal); Vickers, Frank; 'bryan.murtagh@usbw.com' Subject: Gas Master

All:

Attached you will find a clean and marked version of the Master Firm Gas Purchase/Sale Agreement. Your thoughts would be appreciated as this is somewhat of a departure from the previous approach. I will continue to review as this was thrown together fairly quickly and I have not had the opportunity to carefully put all the pieces together.

Jeff << File: 3102sf form rev 2 .DOC >> << File: COMPARITE 2 >>

Message 98 of 148

RE: Enron Online Counterparties

Sender	legal <taylor@enron.com>
Recipients	['louise.kitchen@enron.com', 'savita.puthigai@enron.com', 'carol.st.@enron.com', 'tana.jones@enron.com']
File	kitchen-l/_americas/esvl/380.

We will NOT be deactivating counterparties at this point. This issue may be revisited but for now leave things as they are.

-----Original Message-----

From: Kitchen, Louise Sent: Sunday, December 02, 2001 7:31 PM To: St. Clair, Carol; Puthigai, Savita Cc: Taylor, Mark E (Legal); Jones, Tana Subject: RE: Enron Online Counterparties

This is very unclear - does Savita understand it. This has to be live tomorrow morning - who implemented it?

-----Original Message-----

From: St. Clair, Carol Sent: Sunday, December 02, 2001 4:16 PM To: Puthigai, Savita Cc: Kitchen, Louise; Taylor, Mark E (Legal); Jones, Tana Subject: Enron Online Counterparties

savita: Mark left me a voice mail that Louise wished to turn off those counterparties that have terminated their contracts with us. Enclosed is an excel spreadsheet that lists those counterparties that we have received termination notices from (click on the "terminations" category). Please call Tana and/or I to discuss.

<< File: Letter Log.xls >>

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-8537 (fax) 281-382-1943 (cell phone) 8774545506 (pager) 281-890-8862 (home fax) carol.st.clair@enron.com

Message 99 of 148

RE:

Sender	f.calger@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/hr/127.

Yes. Azurix caused us a big headache, because the contract they did in 2000 was weak, but Mike stuck it out, did what we asked him to do to get it done in the end.

Professional Integrity Relationship-Oriented Understands big deal processes - legal, relationship, negotiations, politics, etc. Would need some hard-core junior commercial people around him - to id the value/risk/arbs in deals

Chris Calger 503-464-3735

-----Original Message-----

From: Kitchen, Louise Sent: Tuesday, July 24, 2001 3:35 PM To: Calger, Christopher F. Subject: RE:

Would you hire him (to run Mexico) if you were me?

-----Original Message-----

From: Calger, Christopher F. Sent: Tuesday, July 24, 2001 5:19 PM To: Kitchen, Louise Subject: RE:

Yes. Mike was the senior Azurix guy on the deal. He was on the conf calls a lot. He spent a lot of time in CA throughout that deal.

Chris Calger 503-464-3735

-----Original Message-----

From: Kitchen, Louise Sent: Tuesday, July 24, 2001 3:10 PM To: Calger, Christopher F. Subject:

Cast your mind back.....

Did you work with Mike Wood from Azurix on Pastoria?

Louise Kitchen Chief Operating Officer Enron Americas Tel: 713 853 3488 Fax: 713 646 2308

Message 100 of 148

FW: Power Collateral Support Annex

Sender	louise.kitchen@enron.com
Recipients	['david.forster@enron.com']
File	kitchen-l/sent_items/43.

-----Original Message-----

From: St. Clair, Carol Sent: Sunday, February 03, 2002 2:57 PM To: Cook, Mary; Davis, Angela; Hall, Steve C. (Legal); Hansen, Leslie; Hodge, Jeffrey T.; Keohane, Peter; Koehler, Anne C.; Leite, Francisco Pinto; Nemec, Gerald; Nettelton, Marcus; Portz, David; Sager, Elizabeth; Taylor, Mark E (Legal); Yoder, Christian; Bryan Murtagh (E-mail); Jeffrey Stewart (E-mail); Jennifer Gabrielson (E-mail); John Magovern (E-mail); Sanjeev Karkhanis (E-mail) Cc: Haedicke, Mark E.; Kitchen, Louise; Fitzgerald, Genia; 'limgovern@aol.com' Subject: Power Collateral Support Annex Importance: High

Enclosed are clean and mark revised (hopefully close to final) drafts of the EEI Collateral Annex and Cover Sheet. Most of the changes were made to add Securities as Eligible Collateral. This has not yet been done on the Cover Sheet since it is in a special format that I couldn't figure out. It will be done tomorrow. Please call or e-mail me with any remaining comments as we need to finalize this as early as possible tomorrow. Thanks.

Genia: I left the cover sheet in your chair with the changes that need to be made. Can you please make those changes? Thanks.

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-3393 (fax) 281-382-1943 (cell phone) 8774545506 (pager) 281-890-8862 (home fax) carol.st.clair@enron.com

Message 101 of 148

nan

Sender	louise.kitchen@enron.com
Recipients	['paul.kitchen@txu-europe.com']
File	kitchen-l/sent_items/15.

Nettelton Agenda Premier Home Rentals 476-6677 cell 376-2579 Richard and Kristen Nye Arrival Day- Sat Feb 9, 2002

4:00 pm - Vail Limo 970-949-4900 4ppl Denver to BC- BA2019 - Bruce Kitchen Check in to 157 Beaver Creek Drive- door will be open for arrival Deliver 3 boxes from Premier office to house Baby's Away's to deliver: Crib w/bumper, high chair, monitor, musical crib gym, toy bucket. Deliver lift tickets to house Deliver groceries and beer to house- list received Dinner table for 9+ high chair Make twin beds to king size

7:00 pm - Cuisine Catering to drop Minestrone Soup, cheese & cracker, chip & salsa, veggie & dip, jalapeno jelly cream cheese & crackers. 926-4986

8:00 pm - Ski Rental Fitting - All Mountain Sports- 845-7329 - Please call once you have arrived to confirm 8pm

Tues Feb. 12, 2002 3:00 pm -pick up at house- Snowmobile Tour- Nova Guides 970-827-4232- 7 people on 6 machines - Tigiwon Tour- must cancel outside 48hrs for refund. Gratuity is included.

Wed Feb. 13, 2002 6:30 pm -10 ppl Grouse Mountain Grill - 949-0600

Departure Day- Sat Feb. 16, 2002 12:30 pm - p/u Bruce + 3 to return to Denver

Beaver Creek Medical Center 1280 Village Road- Take Dial A Ride 970-949-0800

Take and Bake to be delivered each evening at 7:00 pm by Cuisine Catering 926-4986 *Sunday Feb 10 - Lasagna * Monday Feb 11 - Roast Chicken * Tuesday Feb 12 - Chili * Wednesday Feb 13 - no order * Thursday Feb 14 - Beef Stroganoff * Friday Feb 15 - Chicken Curry

Dial A Ride- free chauffeur service throughout Beaver Creek 970-949-1938

Vail Taxi- paid transportation for outside Beaver Creek 970-476-TAXI (8299)

Message 102 of 148

FW: Master Netting Agreement

Sender	mark.frevert@enron.com
Recipients	['s..bradford@enron.com', 'louise.kitchen@enron.com']
File	kitchen-l/_americas/esvl/420.

F.Y.I. Mark

-----Original Message-----

From: Kevin_T_Howell@dom.com [mailto:Kevin_T_Howell@dom.com] Sent: 29 November 2001 08:43 To: Frevert, Mark
Subject: Master Netting Agreement

Kevin T Howell Dominion Energy Clearinghouse Ph: (804) 273-4848 Fax: (804) 273-4445

Mark

My phone message this morning relates to the Master Netting Agreement that we have been negotiating with your team for the past several days. It is my understanding that the language on both the ISDA and the Master Netting Agreement have been agreed to but Enron is unwilling to sign either under the current circumstances. While we would like to get the ISDA signed and have offered a margin holiday as an incentive, I also see your side of the issue. I would however ask you and your team to separate the two issues and at least sign the Master Netting Agreement.

Based on Enron's stated goal to protect its core energy trading business, Dominion is still transacting with Enron. The Master Netting Agreement should be in both of our interest by providing needed liquidity for additional transactions. I believe that everyone in this industry would like to see Enron's energy trading emerge intact and Dominion would like to provide whatever reasonable support we can towards that goal. The Master Netting Agreement is a critical issue for us and represents the centerpiece of our ongoing relationship with Enron.

Mark, I realize that your plate is extremely full right now and this issue is not at the top of your list. I would simply ask that you ask the Enron team that has worked on this the past days to remain engaged with our team and bring this to finality.

Kevin T Howell Dominion Energy Clearinghouse Ph: (804) 273-4848 Fax: (804) 273-4445

Message 103 of 148

RE: green card process

Sender	bobbi.tessandori@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/hr/52.

Louise,

I can't tell you how excited I am to do it. I also get the great pleasure of saying who I am working on it for along with working for you at work. It is taking a long time, as we bought a travel trailer and have been working on getting it ready for the deer lease. I've decided (like that authority) when its finally complete that's when we'll have y'all over for dinner and present it to you then. Tell me who your framer is, as I will have more items to frame down the road.

P. S. I showed you my son's Christmas stocking it took me a year to complete it and I was traveling a lot and used many flights as stitching time.

Thanks again for being #17! I am very excited for you.

Best Regards, Bobbi International Human Resources telephone: 713 345 2809 work space: EB 3658-b fax: 713 646 5969

-----Original Message-----

From: Kitchen, Louise Sent: Thursday, October 18, 2001 8:23 PM To: Tessandori, Bobbi; Nettelton, Marcus Subject: RE: green card process

Thanks

Wow - still on blue, we all (me,Marcus and Scott) appreciate the work.

Louise

-----Original Message-----

From: Tessandori, Bobbi Sent: Thursday, October 18, 2001 2:44 PM To: Kitchen, Louise; Nettelton, Marcus Subject: green card process

Louise and Marcus: I received confirmation from Tindall & Foster today, that there is no new news to report at this time.

Louise: Congratulations!!! One of the Most Powerful Women in Business! What a complement to you and to women as a whole. Thank you for the great inspiration to all the young women and girls! I am proud to work for you. (P. S. Almost done with the blue.)

Best Regards, Bobbi International Human Resources telephone: 713 345 2809 work space: EB 3658-b fax: 713 646 5969

Message 104 of 148

RE: 9:00 AM EST Call on 1/4/02

Sender	louis.eber@ubsw.com
Recipients	['gilbergd@sullcrom.com', 'Chase+', 'Stock', 'davye@sullcrom.com', 'louise@enron.com', 'Stock', 'Chase+']
File	kitchen-l/_americas/esvl/106.

Louise,

Attached as we discussed is a draft of the wording that could be used in the master purchase agreements to designate a third party to take title in the event of physical settlement. We would be happy to discuss this wording on tomorrow morning's call.

Regards, Lou Eber 212-821-3578

-----Original Message-----

From: Stock, Chase+ Sent: Thursday, January 03, 2002 6:44 PM To: Eber, Louis; Hunt, Jim+; Meisner, Joseph+; Schleimer, Andrew+; louise; wisemanm; gilbergd; davye Cc: Stock, Chase+; Stock, Chase+ Subject: 9:00 AM EST Call on 1/4/02

The information for the 9:00 AM EST call on 1/4/02 is

1-888-446-5348 Ask for UBS Warburg call Moderator: Joseph Meisner.

If you have any problems, please call me.

Chase Stock Mergers & Acquisitions UBS Warburg LLC Tel 212 821-3977 Fax 212 821-4178

- netco-phys.doc

Visit our website at <http://www.ubswarburg.com>

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Message 105 of 148

RE: FW: Enrico Bauli

Sender	marcello.romano@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/hr/82.

Hello Louise,

Enrico worked for me for 1 year as an new associate. He was weak when he started but got better with time. When I finally lost him I was disappointed but then he was focused on the Italian market and had become very pro-active after I gave him a consistent hard time. I rate him mid range and solid. Not a superstar - so it depends what you need.

I take it Suarez took the Presto job. He is bright and should do well.

Call me when you get in, I'd like a chat.

Later, M

-----Original Message-----

From: Kitchen, Louise Sent: 16 September 2001 01:47 To: Romano, Marcello Subject: FW: FW: Enrico Bauli

Can you snoop quietly for me - is he any good?

-----Original Message-----

From: Suarez, John Sent: Saturday, September 15, 2001 6:56 PM To: Presto, Kevin M.; Kitchen, Louise Subject: Re: FW: Enrico Bauli

I will follow up on monday morning.

John D. Suarez Enron Broadband Services (713) 853-5267 (713) 443-5267 mobile (877) 597-0646 pager

-----Original Message-----

From: Presto, Kevin M. <Kevin.M.Presto@ENRON.com> To: Kitchen, Louise <Louise.Kitchen@ENRON.com> CC: Suarez, John <John_Suarez@ENRON.net> Sent: Sat Sep 15 18:51:20 2001 Subject: FW: Enrico Bauli

Louise - Do you know this gentleman from your days in London? His resume looks good and he is interested in moving to Houston and working in East Power.

John Suarez - You are going to need at least one and probably two solid cash/term traders for the SE region. Talk to Seresh about this guy.

-----Original Message-----

From: Bauli, Enrico Sent: Thu 9/13/2001 6:42 AM To: Presto, Kevin M. Cc: Subject: Enrico Bauli

Kevin, thanks for taking a look at this. I will talk to you in the next days to see if you think I will make enough money for you.

Best Regards, Enrico +44 207 783 6560

<<CV194.doc>>

Message 106 of 148

RE: FW: Enrico Bauli

Sender	john.suarez@enron.com
Recipients	['louise.kitchen@enron.com', 'm..presto@enron.com']
File	kitchen-l/_americas/hr/81.

You beat me to the punch. I spoke to Suresh Vasan who briefly worked Enrico and he suggested that I call Marcello.

Thank you for the feedback.

John

-----Original Message-----

From: Kitchen, Louise Sent: Monday, September 17, 2001 10:29 AM To: Suarez, John; Presto, Kevin M. Subject: RE: FW: Enrico Bauli

So the scoop is He is Average.

He recently moved out of Bandwidth 6 weeks ago and back into Continental Power trading - why he is moving again after 6 weeks. Is it a problem with the business or him?

He worked for Marcello Romano (Head of Bandwidth Trading in Europe) as John knows. Marcello says he is a solid hard worker who has no edge. If Marcello were to run UK Gas again he wouldn't take him - as he is not sharp. So he wouldn't bother to move him across the Atlantic if it costs a lot.

Your call. Ring Marcello for more information.

Louise

-----Original Message-----

From: Suarez, John Sent: Saturday, September 15, 2001 6:56 PM To: Presto, Kevin M.; Kitchen, Louise Subject: Re: FW: Enrico Bauli

I will follow up on monday morning.

John D. Suarez Enron Broadband Services (713) 853-5267 (713) 443-5267 mobile (877) 597-0646 pager

-----Original Message-----

From: Presto, Kevin M. <Kevin.M.Presto@ENRON.com> To: Kitchen, Louise <Louise.Kitchen@ENRON.com> CC: Suarez, John <John_Suarez@ENRON.net> Sent: Sat Sep 15 18:51:20 2001 Subject: FW: Enrico Bauli

Louise - Do you know this gentleman from your days in London? His resume looks good and he is interested in moving to Houston and working in East Power.

John Suarez - You are going to need at least one and probably two solid cash/term traders for the SE region. Talk to Seresh about this guy.

-----Original Message-----

From: Bauli, Enrico Sent: Thu 9/13/2001 6:42 AM To: Presto, Kevin M. Cc: Subject: Enrico Bauli

Kevin, thanks for taking a look at this. I will talk to you in the next days to see if you think I will make enough money for you.

Best Regards, Enrico +44 207 783 6560

<<CV194.doc>>

Message 107 of 148

FW: Enron All-Employee Meeting Notice

Sender	louise.kitchen@enron.com
Recipients	['tammie.schoppe@enron.com']
File	kitchen-l/sent_items/783.

For diary

By the way was I invited to a PRC committee meeting last week. I don't seem to have heard of it but LAvo said it was on Wednesday or Thursday

-----Original Message-----

From: Office of the Chairman, [mailto:OfficeoftheChairman2@ENRON.com] Sent: Monday, October 15, 2001 10:06 AM
To: All Enron Worldwide@ENRON Subject: Enron All-Employee Meeting Notice

To: All Enron Employees:

Please join us at an all-employee meeting at 10 a.m. Houston time, Tuesday, October 23, in the Hyatt Regency Houston's Imperial Ballroom. We will review third quarter financial and operating highlights and action steps we're taking based on the results of the Lay It On the Line survey. We welcome your questions. Please send them to Courtney Votaw by e-mail (Courtney.votaw@enron.com), fax (713-853-6790), or interoffice mail (EB 4704B). We look forward to seeing you there.

Ken, Greg and Mark

Accessing the Meeting via Streaming Video/Audio

If you are a Houston-based employee and can't attend the meeting, or if you are located in London, Calgary, Toronto, Omaha, New York or Portland (ENA), you can access the live event at <http://home.enron.com/employeemeeting>. Enron Europe employees will receive a follow-up message from their Public Relations team concerning online access to the meeting.

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United States: (888) 400-7918

International: +1 (952) 556-2844

If you encounter technical difficulties, please contact your IT help desk.

Message 108 of 148

RE: Americas 3Q Presentation

Sender	david.leboe@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/ooc/36.

Thanks, I really appreciate the feedback.

In the narrative discussion accompanying the presentation we will articulate the timeframe.

The Rockies pre-build transaction refers to the Fountain Valley Project (PSCO taking MW's; Equity Flip to Black Hills).

We are still working on the Americas section of the conference call script. I will forward to you as soon as it becomes available.

Kind Regards.

-----Original Message-----

From: Kitchen, Louise Sent: Monday, October 15, 2001 1:07 PM To: Leboe, David Subject: RE: Americas 3Q Presentation

The only comment on the structures transaction slide is that

(i) They are not from this quarter (ii) the Rockies Power - prebuild, I am not entirely sure what this deal is - but there was one in Washington. (iii) REmove MidWest Gas Utility Outsourcing as we haven't completed this yet - hopefully you can have it for Q4. (iv) Price Risk Management is your call - its really just trading.

Louise

-----Original Message-----

From: Leboe, David Sent: Monday, October 15, 2001 9:49 AM To: Kitchen, Louise Subject: Americas 3Q Presentation

Please find the latest draft of the Wholesale pitch included below as an attachment.

I have included front portion, Americas and Europe sections.

The only data point I am lacking at this point relates to our East Power slide regarding # of Term MW's. I am working with Leslie Reeves on obtaining this information. I expect the wording on the RTO's slide may change a bit once Gov. Affairs provides their final comments; however, this draft includes most of the content.

Following our discussion this morning, you may have some comments on Slide 14 (Recent Structured Transactions). This slide was modeled after your Board presentation. We can add/delete information as you desire.

I am working on modifying the conference call script language and will forward to you shortly.

Thanks again for your help.

Regards.

<< File: 3Q_Americas_Kitchen.ppt >>

David T. Leboe Director, Investor Relations Enron Corp.

Office 713.853.4785 Cell 713.562.2160 Fax 713.646.3002 Pager 877.237.7732 david.leboe@enron.com

Message 109 of 148

RE: UBS Warburg Energy - New Business Group Presentation

Sender	louise.kitchen@enron.com
Recipients	['colette.dow@ubsw.com', 'alexander.fusco@ubsw.com', 'joel.forbes@ubsw.com']
File	kitchen-l/sent_items/27.

No questions - nice to emeet you.

We will probably start with Alex at 2:30pm

-----Original Message-----

From: Joel.Forbes@ubsw.com@ENRON Sent: Monday, February 04, 2002 6:32 PM To: Kitchen, Louise Cc: colette.dow@ubsw.com; alexander.fusco@ubsw.com; Joel.Forbes@ubsw.com Subject: UBS Warburg Energy - New Business Group Presentation

Louise,

I am the Global Head of the UBS Warburg New Business Group with a joint reporting line into Mark Wallace - UBSW CRO and Ian Drew UBSW CCO. The groups primary focus is risk identification via the New Business and the Transactions Requiring Pre-Approval process.

Alex Fusco - Head of New Business for the America's will be presenting (see attached presentation) at Thursday's session with the UBS Warburg Energy business. The presentation will be high level and take approximately 10 - 15 minutes. Alex will be arriving in Houston on Wednesday and can be reached on 203 509-8287 (mobile) if you would like to meet with him prior to the presentation.

Please contact me if you should have any questions.

Regards,

Joel

Office 203 719-5978 Mobile 203 912-8066 Asst. 203 719-6728

- ENRONnb.ppt << File: ENRONnb.ppt >>

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Message 110 of 148

FW: Liquidity Proposal

Sender	louise.kitchen@enron.com
Recipients	[s..bradford@enron.com']
File	kitchen-l/sent_items/1551.

These guys tried the Ken Lay route. Now they are part of your working group.

-----Original Message-----

From: Lavorato, John Sent: Monday, November 26, 2001 11:31 AM To: Kitchen, Louise Subject: FW: Liquidity Proposal
Importance: High

-----Original Message-----

From: "Ackermann, Hilary" <hilary.ackermann@gs.com>@ENRON Sent: Wednesday, November 21, 2001 10:46 AM To: 'Lavorato@enron.com' Subject: Liquidity Proposal Importance: High

Hilary E. Ackermann Goldman Sachs Credit Risk Management & Advisory Phone: 212-902-3724 Fax: 212-428-1181
E-Mail: hilary.ackermann@gs.com Dear Mr. Lavorato:

Following up on your and Ken Lay's conversation with Gary Cohn, I would like to forward the following proposal, acting for each of Goldman Sachs Capital Markets and J.Aron.

In order to provide Enron North America with additional liquidity, J. Aron and GSCM have discussed entering into the following series of transactions on terms to be agreed between each of the relevant parties: 1. Enron Corp./J. Aron - FX Option sold by Enron Corp. to J. Aron with a settlement date of Dec 11, 01 would be settled on Nov 21, 01. 2. Enron NA/GSCM - Interest Rate Swap Portfolio - At Enron NA's option, we would either (a) close out and portfolio on Nov 21, 01, resulting in a payment from GSCM to Enron NA or (b) bilaterally reduce applicable margin trigger from \$10mm to zero, which based on current MTM would result in \$10mm of additional margin being paid by GSCM to Enron NA. Weather Derivative Transaction - Applicable margin trigger would be reduced from \$50mm to \$5mm, which based on current MTM would result in ~\$18mm of margin being paid by GSCM to Enron NA. 3. Enron NA/J. Aron - Financial Derivative Portfolio - At Enron NA's option, we would either (a) close out and portfolio on Nov 21, 01, resulting in a payment from J. Aron to Enron NA or (b) bilaterally reduce applicable margin trigger from \$10mm to zero, which based on current MTM would result in \$10mm of additional margin being paid by J. Aron to Enron NA. Physical Natural Gas Receivable - In consideration of the foregoing, Enron NA would settle \$10.5mm physical natural gas receivable for value Nov 21, 01.

Please call me at the number below at your soonest convenience to discuss further. Thank you.

Hilary E. Ackermann Goldman Sachs Credit Risk Management & Advisory Phone: 212-902-3724 Fax: 212-428-1181
E-Mail: hilary.ackermann@gs.com

Message 111 of 148

RE: Transmission Line Project-ABB Agreement

Sender	louise.kitchen@enron.com
Recipients	[f..calger@enron.com']
File	kitchen-l/sent_items/928.

I'm ok

-----Original Message-----

From: Calger, Christopher F. Sent: Monday, October 01, 2001 5:22 PM To: Kitchen, Louise Subject: FW: Transmission Line Project-ABB Agreement

FYI Jeff Donohue is OK with the ABB exclusivity agreement

I was serious about Parquet and McDonald

Chris Calger 503-464-3735

-----Original Message-----

From: Donahue, Jeff Sent: Monday, October 01, 2001 3:15 PM To: Calger, Christopher F. Subject: RE: Transmission Line Project-ABB Agreement

Chris:

Looks fine to me - particularly if Lance has OK'ed it.

Hope all's going well.

Jeff

-----Original Message-----

From: Calger, Christopher F. Sent: Friday, September 28, 2001 2:19 PM To: Donahue, Jeff Subject: FW: Transmission Line Project-ABB Agreement

Jeff,

Per my voicemail.

Regards,

Chris Calger 503-464-3735

-----Original Message-----

From: Rasmussen, Dale Sent: Friday, September 28, 2001 10:42 AM To: Mays, Wayne; Parquet, David; Etringer, Michael Cc: Tweed, Sheila; Calger, Christopher F.; Schuler, Lance (Legal) Subject: Transmission Line Project-ABB Agreement

Re-sending with minor changes to the prior documents. A clean copy is now provided.

Lance Schuler advised me that it is now Jeff Donahue, rather than Mark Metz, that needs to sign off on Corp's behalf, and that either Tim Detmering, Louise Kitchen or John Lavorato can approve on behalf of ENA.

<< File: 092701 ABB Power T&D Co. Inc. Confid Agr-No Separate Agreement.doc >> << File: 092701 ABB Power T&D Co. Inc. Confid Agr-No Separate Agreement-Clean.doc >>

A redraft of the ABB confidentiality/exclusive dealings agreement is attached for review and comment.

This document is based on the form ABB provided and for which ABB has expressed a strong preference.

This draft calls for bilateral exclusivity for the Term (2 years). As several of us have discussed, this will prevent ENA from choosing an alternative technology or supplier during that time should it choose to construct a DC transmission line within a 15-mile radius of San Francisco. As I understand it, we are prepared to link arms with ABB to do this project because ABB is the premier supplier of this type of equipment.

Based on recent discussions between Wayne and ABB, the language necessary for creating the exclusivity arrangement has been added to the form of confidentiality agreement that we had been working on with ABB earlier. The added language is somewhat lengthy, but was necessary to establish the relationship and at the same time protect ENA against arguments that we are obligated to proceed with the potential transaction.

Because this transaction does commit ENA to exclusivity obligations I understand that we will need to talk with Tim Detmering and Mark Metz about the transaction.

Please let me know of comments.

Dale Rasmussen Tel: (503) 464-8863 Fax: (503) 464-8058

Message 112 of 148

WHS/Retail Systems Integration Analysis - would like to discuss

Sender	debra.bailey@enron.com
Recipients	['louise.kitchen@enron.com', 'lloyd.will@enron.com', 'm..presto@enron.com', 'tim.belden@enron.com']
File	kitchen-l/_americas/it/12.

Louise,

Lloyd and I believe there are significant cost savings and efficiencies to be gained in the following recommendations. We would like to present our final results Monday and would like to talk with you if possible prior to the meeting.

With project Spark Gap, we have identified and are managing our top systems gaps and priorities for the next year. We are setting up SAP codes for these efforts in order to more closely monitor IT progress and spending. We have coordinated and are combining our systems requirements with the West and Canada desks in order to present a global power strategic systems vision.

The following WHS/Retail Systems Analysis effort has made it clear that we should integrate our wholesale and retail trading systems, however, we believe organizational changes will be required in IT and Trading Support to achieve the benefits and savings.

Please let us know if we can spend a few minutes with you prior to Monday's meeting.

Debra

Debra Bailey East Power Desk wk: 713-853-1657 cell: 713-569-4650

-----Original Message-----

From: Bailey, Debra Sent: Friday, November 09, 2001 6:04 PM To: Fink, Mike; Rao, Ramesh; Frazier, Michael; Gorny, Vladimir; Misra, Narsimha; Jenkins, Beth; Kumar, Madhup; Avs, Mallik; Day, Smith L.; Albrecht, Kristin; Woulfe, Greg; Richter, Jeff; Allen, Thresa A.; O'Neil, Murray P.; Nat, Steve; Herndon, Rogers; Rodriguez, Andy; Bentley, Corry; White, Stacey W.; Allen, Thresa A.; Simpson, Stephen Cc: Hall, Bob M; Kelly, Fred; Presto, Kevin M.; Busby, Todd; Will, Lloyd; Belden, Tim; Dayao, Anthony; Perlman, Beth; Pickering, Mark; Stock, Stephen; Apollo, Beth; Reeves, Leslie; Pagan, Ozzie; Hotte, Steve Subject: WHS/Retail Systems Integration Analysis - Results/Recommendations

Under the direction of Tim Belden, Kevin Presto, Lloyd Will, Anthony Dayao and Beth Perlman, Todd Busby and I have completed the 3 week analysis of wholesale and retail power systems integration. Enclosed are the preliminary executive summary presentation and the detailed information/process flow diagrams.

In summary, we identified at a high level commonality and critical dependencies across all main trading functions within retail and wholesale. In order to ensure successful integration of systems and processes, the team has identified the following recommendations:

1. Consider aligning the wholesale and retail support organizations with the Gas and Power Trading.
2. Manage business systems requirements for power globally with a program management team sponsored by the business owners. Consider program managers responsible for the following three areas:

Trading - Top priority to provide wholesale and retail positions and booking of shaped deals

Billing/Settlements & Volume Management - Top priority to provide retail solutions and develop global strategic systems (gas & power)

Risk - Top priority to provide retail valuation and liquidation

We will schedule a meeting next week to review the results of our analysis. I look forward to receiving your inputs.

Thank you for your support on this effort.

Debra

Debra Bailey East Power Desk wk: 713-853-1657 cell: 713-569-4650

Message 113 of 148

RE: Please Register to Attend the Enron Management Conference

Sender	louise.kitchen@enron.com
Recipients	['louise.kitchen@enron.com', 'tammie.schoppe@enron.com']
File	kitchen-l/sent_items/832.

Sorry make that a pedicure

-----Original Message-----

From: Kitchen, Louise Sent: Tuesday, October 09, 2001 5:06 PM To: Schoppe, Tammie Subject: RE: Please Register to Attend the Enron Management Conference

Manicure too please

-----Original Message-----

From: Schoppe, Tammie Sent: Tuesday, October 09, 2001 4:58 PM To: Kitchen, Louise Subject: RE: Please Register to Attend the Enron Management Conference

I registered you for a facial on Thursday. But here are your choices in case you would like something different.

Golf Fishing Road Rally Skeet Shooting Tennis Antiquing San Marcos Spa Services-facials, massage, manicures and pedicures Gourmet cooking class

Let me know if you would like to change your activity.

I spoke to Liz and Joannie Williamson is the person organizing everything and she said she already has enough people. But I want to thank you very much for suggesting it.

Tammie Schoppe Enron Americas-Office of the Chair Assistant to Louise Kitchen 713.853.4220 office 713.646.8562 fax 713.253.2131 mobile

-----Original Message-----

From: Kitchen, Louise Sent: Tuesday, October 09, 2001 7:56 AM To: Schoppe, Tammie Subject: FW: Please Register to Attend the Enron Management Conference

Please register

Talk to Liz/Nicki to see if they want you to attend to help - only if you want to

-----Original Message-----

From: Enron Announcements/Corp/Enron@ENRON On Behalf Of Ken Lay- Chairman of the Board@ENRON Sent: Monday, October 08, 2001 10:39 PM To: VP's and Above- Enron Management Conference List@ENRON Subject: Please Register to Attend the Enron Management Conference

As you know, the Enron Management Conference will be held Wednesday through Friday, November 14-16, 2001, at the Westin La Cantera Resort in San Antonio, Texas.

This has been an eventful and challenging year for Enron. Now, more than ever, it is fitting to bring Enron's leaders together. After all, it is up to our management team to lead our company through these challenging times. Together, we will define Enron's character and determine Enron's destiny.

We have a great program planned for this year's conference. I'm delighted that General Norman Schwarzkopf will join us as a keynote speaker on leadership. I'm equally pleased to welcome back Gary Hamel, who will help us process the past year and prepare for future success. As I've said before, we are a company that continues to look to the future, and there are many exciting things in store for us.

I look forward to seeing you at this very important meeting.

Regards, Ken Lay

NOTE: This year, registration for the Management Conference will be conducted electronically. Below is a link to the online registration website along with instructions for navigating the site. Everyone must register by Friday, November 2.

<http://www.mplanners.com/enron>

When you access the Management Conference online registration website, enter your eMail Address and Password (password: enron) in the specified boxes. The first time you access the site, you will be prompted to enter your First Name and Last Name. Once completed, click Submit.

On the next page, click Sign Up Now to register. You will be prompted to enter your basic information and make selections for your hotel room, travel and preferred activity. In the scroll box to the right, you can review and print the conference agenda, a list of activities, as well as travel arrangements and other general information.

After you have entered the necessary information, you can Review Your Registration or simply Log Out. Your registration information will be automatically submitted.

Once registered, you can reaccess the site at any time to review or change previous elections. When reentering the site, you only need to enter your eMail Address and Password.

If you experience any problems accessing the site, please contact Marge Nadasky at 713-853-6631.

Message 114 of 148

Couple of things

Sender	tammie.schoppe@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/tammie/13.

Is it okay if I get Jesse(our clerk) to pack your files? I want to confirm what you wanted packed. All files except your EOL files. Does this mean all binders in bookcases as well in your cabinets?

Is it okay to tell people that are calling for you that you are in London? I told Pat O'Donnell you were in London but reachable.

Also, do you want someone to sit in for me while I'm out? I talked to Liz and she thought she would be fine but I wanted to check with you.

Tammie Schoppe Enron Americas-Office of the Chair Assistant to Louise Kitchen 713.853.4220 office 713.646.8562 fax 713.253.2131 mobile

Message 115 of 148

London apartment

Sender	tammie.schoppe@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/tammie/32.

The original apartment you were interested in is available as well as the one at Sloane Club. The rate per night is 229.13(pounds).

Here are your choices:

Sloane Apartments, Chelsea(original choice) Located in Sloane Gardens Nearest Underground Station: Sloane Square
Each apartment is served by a lift 2 bedroom

Sloane Club 52 Lower Sloane Street Nearest Underground Station: Sloane Square 2 bedroom

Just let me know which one you want and which credit card to put it on.

Tammie Schoppe Enron Americas-Office of the Chair Assistant to Louise Kitchen 713.853.4220 office 713.646.8562 fax
713.253.2131 mobile

Message 116 of 148

RE: Org Charts

Sender	tammie.schoppe@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/tammie/37.

I have received a couple of revised charts I will get them to you very shortly

Tammie Schoppe Enron Americas-Office of the Chair Assistant to Louise Kitchen 713.853.4220 office 713.646.8562 fax
713.253.2131 mobile

-----Original Message-----

From: Kitchen, Louise Sent: Monday, January 07, 2002 9:56 AM To: Schoppe, Tammie Subject: FW: Org Charts

Can I see them first?

-----Original Message-----

From: Oxley, David Sent: Monday, January 07, 2002 9:52 AM To: Kitchen, Louise Cc: Schoppe, Tammie Subject: Org Charts

Louise,

Did you get all the Org Charts that Umbrella asked for? Do I need to send them?

David

Message 117 of 148

Revised schedule

Sender	tammie.schoppe@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/esvl/152.

Wed. 1/2 Thur. 1/3 Fri. 1/4 Allen, Phillip in out out Arnold, John in in in Belden, Tim in in in Black, Don in in in Calger, Chris in in in Davis, Dana in in in Duran, Dave in ? ? Grigsby, Mike in in in Lagrasta, Fred in in in Luce, Laura in in in Martin, Tom in in in Milnthorp, Rob out in in Neal, Scott in in in Presto, Kevin in out out Redmond, Brian in out out Shively, Hunter in in in Sturm, Fletch in in in Tycholiz, Barry in in in Vickers, Frank out ? ? Zufferli, John in in in

Tammie Schoppe Enron Americas-Office of the Chair Assistant to Louise Kitchen 713.853.4220 office 713.646.8562 fax
713.253.2131 mobile

Message 118 of 148

RE: EES ENA

Sender	f..calger@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/portland/66.

fyi "done" means that I talked with Forster about the industrial split and sent him the Lavo/Delainey memo. I did not talk to him about the gray areas re utilities, generators, etc. - my understanding is that that is not resolved/clear.

Chris Calger 503-464-3735

-----Original Message-----

From: Kitchen, Louise Sent: Friday, July 20, 2001 11:35 AM To: Calger, Christopher F. Subject: EES ENA

Could you spend some time explaining the whole split (customers) to Dave Forster. Duran and Ader have given up and Dave has taken over from Duran to sort it out.

Louise Kitchen Chief Operating Officer Enron Americas Tel: 713 853 3488 Fax: 713 646 2308

Message 119 of 148

RE: Couple of things

Sender	louise.kitchen@enron.com
Recipients	['tammie.schoppe@enron.com']
File	kitchen-l/sent_items/687.

Yes - cancel Power origination

Yes - cancel them going forward - John doesn't need them either at the moment

-----Original Message-----

From: Schoppe, Tammie Sent: Friday, October 19, 2001 3:04 PM To: Kitchen, Louise Subject: Couple of things

Are you attending the Employee Mtg. on Tues. at the Hyatt? If so, should I reschedule the weekly Power Origination mtg. or cancel it?

Also, the weekly Wed. Power Mtgs. w/Presto and others-should all of these be cancelled or should John be meeting with these guys instead of you?

Thanks!

Tammie Schoppe Enron Americas-Office of the Chair Assistant to Louise Kitchen 713.853.4220 office 713.646.8562 fax 713.253.2131 mobile

Message 120 of 148

RE: Couple of things

Sender	louise.kitchen@enron.com
Recipients	['tammie.schoppe@enron.com']
File	kitchen-l/sent_items/281.

No

No -----Original Message----- From: Schoppe, Tammie Sent: Thursday, January 10, 2002 10:50 AM To: Kitchen, Louise
Subject: Couple of things

Did you ever receive a refund check from ADT Security?

Expenses: They have informed me your \$5,000 payment was issued on 1/4/01 and it takes 10 business days to arrive. It was mailed here so I will keep an eye out for it. They also said all of your expense reports have been processed but they can not pay the remaining balances until they get approval from Enron. I will keep on top of it. Have you heard anything else about us getting paid our remaining balances?

Tammie Schoppe Enron Americas-Office of the Chair Assistant to Louise Kitchen 713.853.4220 office 713.646.8562 fax 713.253.2131 mobile

Message 121 of 148

RE: URGENT

Sender	louise.kitchen@enron.com
Recipients	['tammie.schoppe@enron.com']
File	kitchen-l/sent_items/688.

Can you invite Breslau and LaGrasta and Luce,

-----Original Message-----

From: Schoppe, Tammie Sent: Friday, October 19, 2001 2:58 PM To: Kitchen, Louise Subject: RE: URGENT

It's scheduled for Tues. at 4:30

Tammie Schoppe Enron Americas-Office of the Chair Assistant to Louise Kitchen 713.853.4220 office 713.646.8562 fax 713.253.2131 mobile

-----Original Message-----

From: Kitchen, Louise Sent: Thursday, October 18, 2001 8:05 AM To: Schoppe, Tammie Subject: URGENT

Please arrange a meeting between ENA and EES asap.

Title: Coverage Attendees from ENA: Frank Vickers, Chris Calger, Louise Kitchen, John Lavorato, David Forster, Dave Duran, Barry Tycholiz Attendees from EES: Ring Kay Chapman to find out.

Early next week or end of this week.

Message 122 of 148

FW: This week's schedule

Sender	louise.kitchen@enron.com
Recipients	['john.lavorato@enron.com']
File	kitchen-l/sent_items/465.

FYI

-----Original Message-----

From: Schoppe, Tammie Sent: Wednesday, January 02, 2002 10:32 AM To: Kitchen, Louise Subject: This week's schedule

Wed. 1/2 Thur. 1/3 Fri. 1/4 Allen, Phillip in out out Arnold, John in in in Belden, Tim Black, Don in in in Calger, Chris in in in Davis, Dana in in in Duran, Dave in ? ? Grigsby, Mike in in in Lagrasta, Fred in in in Luce, Laura in in in Martin, Tom in in in

Milnthorp, Rob out in in Neal, Scott in in in Presto, Kevin in out out Redmond, Brian in out out Shively, Hunter in in in Sturm, Fletch in in in Tychoiz, Barry in in in Vickers, Frank out ? ? Zufferli, John in in in

Tammie Schoppe Enron Americas-Office of the Chair Assistant to Louise Kitchen 713.853.4220 office 713.646.8562 fax 713.253.2131 mobile

Message 123 of 148

Follow up conversation with Carlos Alatorre

Sender	heriberto.murillo@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/mexico/13.

Louise,

I want to ask you for 15 minutes of your time to talk to you about career opportunities with the Mexico Group. I understand that this is a tough time but I believe that that my experience and career can be useful to help in the developing of business in Mexico. I worked for almost 10 year in mergers & acquisition and investment banking in Mexico before joining Enron's Mergers & Acquisition and finance Origination Group headed by Frank Stabler in the former EI / CALME. Currently, I am a Manager at the Enron Xcelerator group leading a business development project in the transportation industry. However, given the current environment at Enron, the project will unlikely be funded. I am attaching my resume for your review and I would like to ask you for 15 minutes of your time to discuss about a potential career opportunities in your group.

Thanks.

Heriberto Murillo o. 713-853-6325 c. 713-962-9625 f. 713-646-4735

Message 124 of 148

FW: ABB GT11N Turbines

Sender	nella.cappelletto@enron.com
Recipients	['louise.kitchen@enron.com', 'tammie.schoppe@enron.com']
File	kitchen-l/_americas/turbines/63.

MESSAGE FROM ROB MILNTHORP:

Attached please find information for your reference with respect to our telephone conference scheduled for today at 2:00 pm Calgary time, 3:00 pm Houston Time.

Regards, Rob

-----Original Message-----

From: Savidant, Michael Sent: Monday, June 25, 2001 12:04 PM To: Milnthorp, Rob Cc: Le dain, Eric; Kitagawa, Kyle; Croasdale, Duncan Subject:

(Forwarded on behalf of Duncan Croasdale due to computer mishaps - if there are issues with this message please let Duncan know)

Rob,

For our teleconference with Louise Kitchen this afternoon.

We have updated the summary of the 11N sale effort document which is attached below, it details the hot list of 8 potential buyers in the West and Brazil.

The document below is a historical list of 90 potential buyers that we have offered the equipment to.

The "turbine sale summary ver 2.doc" is the standard document that we have been emailing potential buyers at the initial expression of interest.

Duncan Croasdale

ENRON CANADA CORP. Suite 3500, Canterra Tower 400-3rd Ave SW Calgary, Alberta T2P 4H2

tel. 403.974.6718 fax. 403.974.6991 cel. 403.819.5851

Message 125 of 148

RE: URGENT REQUIRES IMMEDIATE ACTION : Welcome to UBS meeting

Sender	tammie.schoppe@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/tammie/11.

I have everything scheduled but I wanted to clarify something before I sent out the emails. I will give you a call first thing in the morning.

Also, there will be another status update meeting tomorrow morning at 11:00 a.m. (Houston time). I will give you the dial-in information when I speak to you in the morning.

I hope you are having a good time.

Tammie Schoppe Enron Americas-Office of the Chair Assistant to Louise Kitchen 713.853.4220 office 713.646.8562 fax 713.253.2131 mobile

-----Original Message-----

From: Kitchen, Louise Sent: Monday, January 28, 2002 7:10 AM To: Schoppe, Tammie Subject: RE: URGENT REQUIRES IMMEDIATE ACTION : Welcome to UBS meeting tomorrow 10.15 am @ the Houstonian

Tammie

Please could you set up the meetings (apart from the Thursday one which UBS already has arranged. Contact Dave Forster and co-ordinate with him. I couldn't forward you the email I sent but it was just to the 8 commercial MDs in UBSWEnergy.

Can you send the attachment to all of the people (ex Enron only) on the lists (see in attachment) and copy to Par Odonnell and Mark Bridges - Dave Forster has their emails.

Thanks

Louise

Message 126 of 148

RE:

Sender	louise.kitchen@enron.com
Recipients	['f..calger@enron.com']
File	kitchen-l/sent_items/700.

I would be - it was an email with Scott on my lap. John's conversation with you today is what I am talking about. If so - I have a hole, do I not in Portland. So I know this chap MS who won't move to Portland but its worht you talking to him. Should you decide to pursue John's conversation further.

Let's talk tomorrow.

Lousie

-----Original Message-----

From: Calger, Christopher F. Sent: Thursday, October 18, 2001 7:15 PM To: Kitchen, Louise Subject: RE:

I am confused

Chris Calger 503-464-3735

-----Original Message-----

From: Kitchen, Louise Sent: Thursday, October 18, 2001 4:57 PM To: Kitchen, Louise; Calger, Christopher F. Subject: RE:

Scott just sent you the message before I'd finished.

So I have a real long shot for you to talk to at some point. Matthew Scrimshaw - I don't think he'll move to Portland but he might.

So an ideas yourself?

-----Original Message-----

From: Kitchen, Louise Sent: Thursday, October 18, 2001 6:54 PM To: Calger, Christopher F. Subject:

well - what do you think of that!

I have someone who is a suplong

Louise Kitchen Chief Operating Officer Enron Americas Tel: 713 853 3488 Fax: 713 646 2308

Message 127 of 148

ice #s	
Sender	justin.rostant@enron.com
Recipients	['louise.kitchen@enron.com', 'andy.zipper@enron.com', 'david.forster@enron.com']
File	kitchen-l/_americas/gas/44.

In its first year of operation, products traded on IntercontinentalExchange's over-the-counter markets reached the following volume levels:

- Crude oil and refined products: 1.8 billion barrels - Natural gas: 28 trillion cubic feet - Power: 1.1 billion megawatt hours - Precious metals: 83 million gold-equivalent ounces

The total notional value of transactions on the Exchange in its first year was over \$400 billion.

During the same period, volumes on the IPE, acquired by Intercontinental the past summer, reached the following levels:

- Brent crude futures and options: 18,157,500 lots - Gas oil futures and options: 7,229,403 lots - Natural gas futures: 513,655 lots

The total notional value of the 25.9 million lots traded on IPE over the last twelve months was in excess of \$500 billion.

Market participation on the Exchange continues to expand at a rapid rate and currently includes over 365 of the world's largest energy and financial commodity firms making it one of the most widely distributed online professional marketplaces in the world. Moreover, over 300 customers in over 30 countries use IPE's markets on a regular basis.

Justin Rostant Enron Financial Trading Desk. Phone: 713-853-6460 Mobile: 832-264-6333 Fax: 713-646-3239

Message 128 of 148

RE: Reliant meeting

Sender	louise.kitchen@enron.com
Recipients	['s..bradford@enron.com', 'raymond.bowen@enron.com']
File	kitchen-l/sent_items/1546.

Ray

Essentially they are fishing its not a really good time for them to come in (but when is). Its a reassurance meeting please help if you can.

Joe Bob Perkins did a lot of damage in the market to us initially (one month ago) so assume everything you say get's made public.

The fact we are doing 3500 trades a day still is a thing you can tell him.

Thanks

:Louise -----Original Message----- From: Bradford, William S. Sent: Monday, November 26, 2001 6:41 PM To: Bowen Jr., Raymond Cc: Kitchen, Louise Subject: Reliant meeting

Ray,

Eddie Meche (CRO) and Jim Bob Perkins (President) from Reliant will be meeting with you and I in your offices at 8:00AM. The purpose of the meeting is to continue to educate Reliant on our current financial position. They have been supportive in the market until last week where they came out with a public announcement with concerns about Enron. Our hope is to give them further disclosure to get them comfortable with our near term and long term financial plans. They have \$100mm gross exposure (\$50mm net exposure) to Enron and have recently slowed trading volumes.

Feel free to give me a call if you need further breifings. I will be in the office about 7:00AM.

Thanks, Bill

713-857-7739 (cell) 713-853-3831 (office) 713-863-1884 (home)

Message 129 of 148

RE: Couple of things

Sender	louise.kitchen@enron.com
Recipients	['tammie.schoppe@enron.com']
File	kitchen-l/sent_items/108.

Really you need to do it. Pack everything apart from the ESVL files and SEC subpoena stuff. Pack on ly what is in the hanging files in the cupboards and my drawers. Anything outside of a hanging file leave for later. I would prefer you to do it as it needs indexing. STuff in my office hanging files goes to Don Miller and the rest goes to ? (ask legal).

Leave binders,etc for now. Did you get rid of the deal mementoes (4 boxes).

Tell them they can get me on my mobiles - no problem.

Liz can cover - have a great time. Pick up your tickets early in the day.

-----Original Message-----

From: Schoppe, Tammie Sent: Mon 1/28/2002 11:13 AM To: Kitchen, Louise Cc: Subject: Couple of things

Is it okay if I get Jesse(our clerk) to pack your files? I want to confirm what you wanted packed. All files except your EOL files. Does this mean all binders in bookcases as well in your cabinets?

Is it okay to tell people that are calling for you that you are in London? I told Pat O'Donnell you were in London but reachable.

Also, do you want someone to sit in for me while I'm out? I talked to Liz and she thought she would be fine but I wanted to check with you.

Tammie Schoppe Enron Americas-Office of the Chair Assistant to Louise Kitchen 713.853.4220 office 713.646.8562 fax 713.253.2131 mobile

Message 130 of 148

Congrats to Original EOL Team on 2yr EOL Anniversary

Sender	paul.goddard@enron.com
Recipients	['louise.kitchen@enron.com', 'rahil.jafry@enron.com', 'jay.webb@enron.com']
File	kitchen-l/_americas/eol/30.

Hi everyone - in spite of today's terrible news, Rahil reminded me that tomorrow is EOL's 2nd birthday so I wanted to take the opportunity to congratulate everyone from the 'original' skeleton crew (though I know I've missed many people - apologies). We are so incredibly close to 1 trillion in notional revs. -- \$944 bn or so last time I checked -- that it's even more frustrating to see the company going down the tubes when this should really be a time of massive celebration. In any event, congratulations to all of you, it's been a privilege working alongside all of you, and more importantly, becoming friends with you. I hope some of us get a chance to work together again going forward, but regardless, please stay in touch all of you whatever happens next, and make sure you track me down if you are planning to be in Toronto at any point as well.

PS Marcello - Happy Birthday !

Here are my home contact details:

Paul Goddard 233 Ellis Ave. Toronto, ON M6S 2X4 Canada

H: (416) 769 4246 E: goddard_paul@yahoo.com <mailto:goddard_paul@yahoo.com> or pauls_inbox@yahoo.com <mailto:pauls_inbox@yahoo.com>

All the best, - Paul

Paul Goddard Manager, Enron Canada Corp. 1100 - 70 York St. Toronto, ON M5J 1S9 T: 416 865 3725 F: 416 865 3765 E: paul.goddard@enron.com <mailto:paul.goddard@enron.com>

Message 131 of 148

FW: Final PA and ETA

Sender	david.forster@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/netco_eol/54.

Louise,

I was doing a last pass through these documents, when I noticed that the last sentence of the 2nd to last paragraph contains something similar to what you had removed from the ETA: "UBS may give Counterparty's name to potential product providers as a prospective counterparty". This wording was changed in the PA in Sept. so was not redlined in the

changes you and I reviewed earlier.

I'm OK with this staying in. Please let me know if you want it removed.

Dave

-----Original Message-----

From: Carter, Carl Sent: Tuesday, January 22, 2002 11:40 AM To: Taylor, Mark E (Legal); Forster, David; Shults, Bob Cc: Shah, Kal; Bess, Erica; Mandola, Teresa; Lees, Lisa Subject: Final PA and ETA

Please review the attached PA and ETA. These are the final versions of the documents that we plan on using. The PA might go out to the top 50 customer as early as this afternoon. We are preparing the UBSWenergy 'splash page' and will upload this version of the ETA unless otherwise advised. The entity is officially named UBS AG, London branch (collectively "UBS") and the Website is UBSWenergy.com. If you are not in agreement with this, please advise ASAP. I encourage everyone to read both of these documents very carefully. I have looked them over several times and everything looks to be in order but your 'fresh' review is appreciated. Thanks. Carl

Carl M. Carter EnronOnline LLC 713-345-3854 (Tel) 713-504-0963 (Cell) 713-646-2126 (Fax) carl.carter@enron.com

Message 132 of 148

FW: Re-Distribution of Flat Panels to Remote Trading Offices

Sender	mark.pickering@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-I/_americas/it/33.

fyi

Mark Pickering Chief Technology Officer

Enron Net Works, LLC

-----Original Message-----

From: Pickering, Mark Sent: 16 October 2001 15:10 To: Rub, Jenny Subject: RE: Re-Distribution of Flat Panels to Remote Trading Offices

Sounds good to me.

Mark Pickering Chief Technology Officer

Enron Net Works, LLC

-----Original Message-----

From: Rub, Jenny Sent: 16 October 2001 14:38 To: Pickering, Mark Subject: FW: Re-Distribution of Flat Panels to Remote Trading Offices Importance: High

Any issues with this? JR

-----Original Message-----

From: Harrington, Stephen R. Sent: Tuesday, October 16, 2001 1:56 PM To: Rub, Jenny; Harrelson, Mike; Dopson, LaMetric; Bucknell, Martin; Elliott, Clay; Cox, Paige Cc: Dietrich, Dan; Smith, Bruce Subject: Re-Distribution of Flat Panels to Remote Trading Offices Importance: High

After consulting with the personnel of the remote team, we have assessed their needs, and are prepared to begin the initial swap-out of CRTs for Flat Panels to the various locations.

Our first targets are Toronto (10 18" flats) and Calgary (25 15" flats).

As we receive more through additional moves, we will include Portland, New York, Chicago, and other locations as needed.

I just need to know that everyone's okay for us to begin this process. Thanks.

Regards,

Stephen R. Harrington Technical Project Manager, ECS Project Enron Net Works, LLC w: 713-853-7619 p: 877-651-7361
c: 713-444-7279 stephen.harrington@enron.com

Message 133 of 148

RE: Chris's letter

Sender	f..calger@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/esvl/126.

"Reasonable" works for me - my interpretation is what Enron has done in the past (and many other companies do) including but not limited to the following:

- actual moving and related costs - sales commission on house - a couple of moving trips - temp housing for a month or two - coverage on appraised value of house if can not sell quickly - gross up to cover taxes, where appropriate
- Not looking to gain, just to remain whole

Chris Calger 503-464-3735

-----Original Message-----

From: Kitchen, Louise Sent: Wednesday, January 02, 2002 4:07 PM To: Calger, Christopher F. Subject: FW: Chris's letter

-----Original Message-----

From: Oxley, David Sent: Wednesday, January 02, 2002 6:06 PM To: Kitchen, Louise Subject: RE: Chris's letter

Ummm. Don't see an issue with expenses, although I'm sure purchaser will have arrangements with their own shipping company etc., Everyone I've spoken too has a domestic relo program and Citi in particular have agreed to meet any obligations we have previously made so long as we tell them now.

I'll see what else I can find out. Only thing I'd add to Chris's note is an agreement that he will move to Houston if we meet all "reasonable" costs.

David -----Original Message----- From: Kitchen, Louise Sent: Wednesday, January 02, 2002 6:02 PM To: Oxley, David Subject: Chris's letter

Chris will obviously be relocating to Houston in the near future. We need to make sure we cover all of the expenses. How do you intend to do this under the proposed contract?

Louise Kitchen Chief Operating Officer Enron Americas Tel: 713 853 3488 Fax: 713 646 2308

Message 134 of 148

RE: Final PA and ETA

Sender	louise.kitchen@enron.com
Recipients	['legal <taylor@enron.com>', 'david.forster@enron.com']
File	kitchen-l/sent_items/175.

Did we get sign off from Jim Petrie?

-----Original Message-----

From: Forster, David Sent: Tuesday, January 22, 2002 1:33 PM To: Kitchen, Louise Subject: FW: Final PA and ETA

Louise,

I was doing a last pass through these documents, when I noticed that the last sentence of the 2nd to last paragraph contains something similar to what you had removed from the ETA: "UBS may give Counterparty's name to potential product providers as a prospective counterparty". This wording was changed in the PA in Sept. so was not redlined in the changes you and I reviewed earlier.

I'm OK with this staying in. Please let me know if you want it removed.

Dave

-----Original Message-----

From: Carter, Carl Sent: Tuesday, January 22, 2002 11:40 AM To: Taylor, Mark E (Legal); Forster, David; Shults, Bob Cc: Shah, Kal; Bess, Erica; Mandola, Teresa; Lees, Lisa Subject: Final PA and ETA

Please review the attached PA and ETA. These are the final versions of the documents that we plan on using. The PA might go out to the top 50 customer as early as this afternoon. We are preparing the UBSWenergy 'splash page' and will upload this version of the ETA unless otherwise advised. The entity is officially named UBS AG, London branch (collectively "UBS") and the Website is UBSWenergy.com. If you are not in agreement with this, please advise ASAP. I encourage everyone to read both of these documents very carefully. I have looked them over several times and everything looks to be in order but your 'fresh' review is appreciated. Thanks. Carl << File: UBS AG - PA.doc >> << File: UBS AG - ETA.doc >>

Carl M. Carter EnronOnline LLC 713-345-3854 (Tel) 713-504-0963 (Cell) 713-646-2126 (Fax) carl.carter@enron.com

Message 135 of 148

RE: Org chart for Louise and John

Sender	exec.jones@enron.com
Recipients	['amy.fitzpatrick@enron.com']
File	kitchen-l/_americas/hr/63.

Amy,

Thanks for the quick response. My answers to your questions are noted below in red.

Robert

-----Original Message-----

From: Fitzpatrick, Amy Sent: Tuesday, October 02, 2001 3:44 PM To: Jones, Robert W.- HR Exec Subject: RE: Org chart for Louise and John

Robert -

The following supervisors need to be updated - I will submit to HR Service Connection.

Mike Grigsby Don Black Tim Belden Kevin Presto Kim Hillis Barry Tycholiz Laura Luce Brian Redmond Steve Irvin Frank Vickers Bob Virgo Fred Lagrasta Joe Deffner Carlos Alatorre

Couple of questions.....

1. I am unable to find Jaime Williams - is he on SAP or do you know if he goes by a different name? [Jones, Robert W.- HR Exec] -He is not in the USA SAP. He needs to be changed in GIS. Ben B. can help make the change.

2. The following individuals have either Louise or John listed as their supv in SAP - do you know the correct supervisor?

Joseph Kishkill [Jones, Robert W.- HR Exec] - Termed James Schwieger [Jones, Robert W.- HR Exec] - Tom Martin
Colleen Sullivan-Shaklovitz [Jones, Robert W.- HR Exec] - Don Black John Zufferli [Jones, Robert W.- HR Exec] - John
Lavorato

Thanks for your help!

Amy

-----Original Message-----

From: Schoppe, Tammie Sent: Tuesday, October 02, 2001 2:12 PM To: Fitzpatrick, Amy; Jones, Robert W.- HR Exec
Subject: Org chart for Louise and John

Louise has asked me to send you the org chart for her and John Lavorato. She would like all systems to show their direct reports correctly.

Please let me know if you have any questions.

Thanks!

<< File: jldirectreports.ppt >>

Tammie Schoppe Enron Americas-Office of the Chair Assistant to Louise Kitchen 713.853.4220 office 713.646.8562 fax
713.253.2131 mobile

Message 136 of 148

FW: TODAY'S 4:30 CONFERENCE CALL W/ UBS

Sender	louise.kitchen@enron.com
Recipients	['s..shively@enron.com']
File	kitchen-l/sent_items/425.

I think its the same again - can you come over for it

-----Original Message-----

From: Garner, Joanne Sent: Thursday, January 03, 2002 1:29 PM To: Sager, Elizabeth; Lavorato, John; Kitchen, Louise;
Taylor, Mark E (Legal) Subject: TODAY'S 4:30 CONFERENCE CALL W/ UBS Importance: High

-----Original Message-----

From: "Schleimer, Andrew+" <Andrew.Schleimer@ubsw.com>@ENRON Sent: Thursday, January 03, 2002 1:01 PM To:
Schuler, Lance (Legal) Cc: Meisner, Joseph+; Schleimer, Andrew+ Subject: *FW: conf. Call Importance: High

Lance-

Following please find details for today's conference call. Please feel free to call either Joe (212.821.5215) or myself
(212.821.6364) with any questions.

Operator Assisted for 5:30PM Eastern Standard Time Dial 1-888-446-5348 - Ask for UBS Warburg call - Moderator:
Joseph Meisner.

Visit our website at <http://www.ubswarburg.com>

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Message 137 of 148

RE: UPDATE: Access to D&B

Sender	s..theriot@enron.com
Recipients	['danielle.marcinkowski@enron.com', 'r..brackett@enron.com', 'd..hare@enron.com', 'rahil.jafry@enron.com']
File	kitchen-l/inbox/26.

I have just spoken to Paul. I have asked him to verify the DNB number that we have in Global Counterparty for UBS AG to see if it is correct. He is additionally going to see if there is a DNB number for UBS Warburg Energy LLC. He will research and call me back.

Kim Theriot

-----Original Message-----

From: Jafry, Rahil Sent: Wednesday, February 06, 2002 3:00 PM To: Theriot, Kim S.; Hare, Bill D.; Brackett, Debbie R.
Cc: Marcinkowski, Danielle; Shults, Bob; Forster, David Subject: UPDATE: Access to D&B

Kim, Bill, Debbie,

Just received a call from Paul Paulumbo with D&B in NY. I've given him Kim's number. In case he doesn't follow-up, one of you should follow-up with him as well (201.291.4809).

Please let me know if you still don't have access to the D&B database after chatting with Paul and/or if Danielle, Dave, Bob, or I need to help with anything.

Regards, Rahil

-----Original Message-----

From: Jafry, Rahil Sent: Wednesday, February 06, 2002 11:34 AM To: Theriot, Kim S.; Hare, Bill D.; Brackett, Debbie R.
Cc: Marcinkowski, Danielle; Shults, Bob; Forster, David Subject: Access to D&B Importance: High

Kim and Bill,

I just spoke with Danielle Marcinkowski (Enron's point person for access to the outside databases) and she mentioned that she just helped Nicole from Canada with a similar request. It may be helpful for you guys to chat with Nicole about the process as well (we may need to rely on her access if there's a delay on our end).

Danielle (contact details below) will help coordinate our access to D&B. Danielle suggested that we also contact Enron's rep at D&B directly (Karen Marcom - contact details below), given our sense of urgency here. I have also left a message for Danielle, but you should as well.

Enron's DNB Rep in Houston = Karen Marcom 713.953.5406

Enron contact for access to D&B = Danielle Marcinkowski 713.853.7926

Please feel free to contact Bob Shults or myself with questions or concerns, as needed.

Regards, Rahil

Message 138 of 148

Competitive Analysis Report- US Terrorism Attacks

Sender	robert.johnston@enron.com
Recipients	['greg.whalley@enron.com', 'kenneth.lay@enron.com', 'mark.frevert@enron.com']
File	kitchen-l/_americas/ooc/112.

The Enron Building is being evacuated. However, we will be updating this very tragic and volatile situation regularly.
Contacts:

Robert Johnston- x39934 cell: 713-594-7995

Clay Seigle x31504 cell: 713-875-8778

Brendan Fitzsimmons x54763 cell: 832-455-5887

1. US is under attack. We are in state of emergency. Casualties are likely to be in the thousands. Two US "critical infrastructures"--transportation and finance--the cornerstones of the US economy have been severely damaged.
2. Discount all gossip. Responsibility will be put on many groups and many groups will claim responsibility. There are no facts at this time.
3. Nonetheless, there are a limited number of terrorist groups that could coordinate an attack with this many targets and this level of sophistication. Indeed, it is likely that a state sponsor of some kind would be required to provide financial and intelligence support for such an attack.
4. It is virtually certain that these groups or countries are based in the Middle East. It is almost equally certain that a massive US response against a Middle Eastern target is forthcoming. There will be enormous domestic political pressure on the Bush Administration for a vengeance attack. This will be at least partially offset by a reluctance to further inflame Arab radicalism in the Middle East and Persian Gulf.
5. As mentioned above, in addition to the horrendous human cost, there are economic and market consequences:

Oil- IPE and NYMEX are closed. Oil futures will of course react strongly to the dramatic uptick in Middle Eastern uncertainty.

Equities- General flight to quality. Investors are selling equities and putting funds into cash. Many major brokerages and trading firms have been wiped out in the WTC collapse. It will take some time--days or weeks--for these firms to restore operations.

Currencies- Swiss Franc and US dollar will benefit from flight to quality.

Shipping- major ports and border crossing closed, surrounding areas jammed with traffic. Impact on all commodities--steel, lumber, pulp/paper, crude/products shipments, LNG, etc. Ships at sea will back up, affecting pipeline deliveries. Freight impacted by road chaos in major US cities.

Metals- gold/platinum benefit from flight to quality.

We will update as soon as we get information.

Message 139 of 148

ABB on EOL

Sender	f..calger@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/portland/27.

Calpine and NRG risk management guys wanted to know if we would make a market in turbine call options - great idea (yours) but I am afraid they want our bid.

Chris Calger 503-464-3735

-----Original Message-----

From: Thome, Stephen Sent: Thursday, October 04, 2001 8:27 AM To: Calger, Christopher F.; Le Dain, Eric Cc: Jacoby, Ben; Wiggs, Brett Subject: RE: abb

Chris,

I have received a number of emails. Only one (CP&L) was asking specifically about the turbines. The other two (Calpine and NRG) are more interested in the turbine call option concept as a risk management tool.

I will keep you posted on the contacts. I placed a call back to CP&L, and email reply to Calpine. NRG call is planned for the afternoon.

The turbine option is not clickable yet. My citrix server is experiencing some problems. The helpdesk is working on it.

Steve

-----Original Message-----

From: Calger, Christopher F. Sent: Thursday, October 04, 2001 8:04 AM To: Le Dain, Eric Cc: Thome, Stephen; Jacoby, Ben; Wiggs, Brett Subject: RE: abb

Eric. Thanks for the update. The units are posted on EOL, but no one can click "done" just yet and I dont think we have had any activity..

Chris Calger 503-464-3735

-----Original Message-----

From: Le Dain, Eric Sent: Thursday, October 04, 2001 7:54 AM To: Calger, Christopher F. Cc: Kitagawa, Kyle Subject: RE: abb

Silence from Chino the last 2 days. We were supposed to hear Tuesday am. Marine Diesel is bringing a buyer to site tomorrow. Supposedly they are ready to go for a project overseas with a JV between HQ and probably the main utility in France. They are ready with funds for the deposit. Of course I've heard that before, but the broker is very excited so it may have some truth. Nevertheless, I gather you're pressuring Steve to go click live on EOL. I understand we need to move on this, and just pray no one is so foolhardy to click until we get these other buyers sorted out (unless it's a front run of these potential buyers Chino and the French outfit). Also, Tesco is back in the game with the California Power Authority and Water District - their timing is early next week.

-----Original Message-----

From: Calger, Christopher F. Sent: Tuesday, October 02, 2001 1:45 PM To: Le Dain, Eric Subject: abb

any news?

Chris Calger 503-464-3735

Message 140 of 148

FW: Physical Access (ID Cards) for access to Enron

Sender	mark.bridges@ubsw.com
Recipients	[]
File	kitchen-l/_americas/netco_restart/36.

UBSW Regional Security has coordinated the following access control procedures with Enron Security. We request that all visitors to Enron-Houston complex follow this process.

1. Forward an email(before your departure)to Regional Security(Nikki Canavan) requesting access to Enron in Houston, Texas
2. Regional Security will authorize and forward these names to Enron security.
3. UBS employees should go to main lobby reception desk at 1400 Smith Street in the North Tower to obtain their temporary ID's. UBS employees should inform the receptionist/security officers that their names have been forwarded to Enron security. Enron receptionist/security personnel will give the UBS employees a temporary access card to the building which will be valid for 24 hours only. UBS employees will be required to show a valid state(Drivers License) or federal(passport) identification prior to the issuance of this temporary ID card.
4. UBS employees intending to stay more than one day will then need to call Enron security at 713-646-6200 to arrange to have their photo taken and then they will be issued an Enron access card. This card will be valid for seven business days. If your visit to Enron will exceed 7 business days please include that information on your e-mail. Forward all questions/comments to Nikki Canavan in Stamford or call 203-719-5642.

UBSW Regional Security Management can be notified via our security console desk(203-719-8757) which is operational 24 hours a day, 7 days a week.

Rgds

Mark

Visit our website at <http://www.ubswarburg.com>

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Message 141 of 148

FW: Transmission Line Project-ABB Agreement

Sender	f..calger@enron.com
Recipients	['louise.kitchen@enron.com']
File	kitchen-l/_americas/portland/32.

Louise,

I want to sign a confidentiality and exclusivity agreement with ABB with respect to our San Francisco T-Line Project. There are no payment or service terms other than the concept that we are granting exclusivity to each other for two years.

Reasons: - I want to get some inexpensive resources from them to help us design and develop the project; - I want to lock them up early since they are the clear industry leader and the public entities in CA may ultimately RFP.

My understanding is that approval is needed from you, John or Detmering.

Is this OK with you?

Regards,

Chris Calger 503-464-3735

-----Original Message-----

From: Rasmussen, Dale Sent: Friday, September 28, 2001 10:42 AM To: Mays, Wayne; Parquet, David; Etringer, Michael
Cc: Tweed, Sheila; Calger, Christopher F.; Schuler, Lance (Legal) Subject: Transmission Line Project-ABB Agreement

Re-sending with minor changes to the prior documents. A clean copy is now provided.

Lance Schuler advised me that it is now Jeff Donahue, rather than Mark Metz, that needs to sign off on Corp's behalf, and that either Tim Detmering, Louise Kitchen or John Lavorato can approve on behalf of ENA.

A redraft of the ABB confidentiality/exclusive dealings agreement is attached for review and comment.

This document is based on the form ABB provided and for which ABB has expressed a strong preference.

This draft calls for bilateral exclusivity for the Term (2 years). As several of us have discussed, this will prevent ENA from choosing an alternative technology or supplier during that time should it choose to construct a DC transmission line within a 15-mile radius of San Francisco. As I understand it, we are prepared to link arms with ABB to do this project because ABB is the premier supplier of this type of equipment.

Based on recent discussions between Wayne and ABB, the language necessary for creating the exclusivity arrangement has been added to the form of confidentiality agreement that we had been working on with ABB earlier. The added language is somewhat lengthy, but was necessary to establish the relationship and at the same time protect ENA against arguments that we are obligated to proceed with the potential transaction.

Because this transaction does commit ENA to exclusivity obligations I understand that we will need to talk with Tim Detmering and Mark Metz about the transaction.

Please let me know of comments.

Dale Rasmussen Tel: (503) 464-8863 Fax: (503) 464-8058

Message 142 of 148

Online Power Trading Grows, But Traditional Brokers Still Lead US

Sender	rahil.jafry@enron.com
Recipients	['louise.kitchen@enron.com', 'kal.shah@enron.com']
File	kitchen-l/_americas/press/20.

FYI - the claim that both ICE and EOL have more than 1/3 of the electronic trading market each may be true, but doesn't reflect on how much more we have on EOL than on ICE....

-----Original Message-----

From: djcustomclips@djinteractive.com Sent: Thu 8/23/2001 3:06 PM To: 168842@mailman.enron.com Cc: Subject: Rahil Jafry: Online Power Trading Grows, But Traditional Brokers Still Lead US Power ...

Online Power Trading Grows, But Traditional Brokers Still Lead US Power Markets, Energy Argus Survey Shows

08/23/2001 PR Newswire (Copyright (c) 2001, PR Newswire)

NEW YORK, Aug. 23 /PRNewswire/ -- Electricity trading continued to move online in the past six months, but most wholesale power deals are still being done through traditional voice brokerages, the latest Energy Argus survey has found. Internet-based trading now makes up 38% of trading in the US, up from 28.5% in February and 25% in April 2000, according to Argus data.

Most online trading is done through either IntercontinentalExchange or EnronOnline, each of which have more than a third of the electronic market, the survey of 40 power traders found. However, another 24% of the transactions are completed through a variety of other platforms, including DynegyDirect, Bloomberg Powermatch and TradeSpark. Although their market share has declined from 75% two years ago, traditional brokers continue to process most power trades, due to their ability to offer options and other derivatives, their dominance in the short- term physical markets and some trading houses' reluctance to embrace online technology.

For a full copy of the Energy Argus Survey, please send your request to info@energyargus.com .

Energy Argus Inc., the youngest company in the Argus group, is dedicated to creating a knowledge and analysis resource for the power industry in the US and Europe. Energy Argus covers news and prices as well as focusing on reporting on all developments that might have a medium- or long-term impact on power markets. The guiding principle in our coverage is to ensure market and industry relevance. "Cutting through the noise" means rigorous culling of hype and fluff and a sharp focus on market-moving developments, whether it's short-term plant operations or long-term political maneuvers.

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/CONTACT: Peter Rosenthal of Energy Argus Inc., 201-659-4400 x201/ 15:04 EDT

Folder Name: Rahil Jafry Relevance Score on Scale of 100: 85

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Message 143 of 148

FW: Enron Management Conference - Home Video Project

Sender	john.lavorato@enron.com
Recipients	[' louise.kitchen@enron.com ']
File	kitchen-l/_americas/ooc/74.

Who is this guy.

-----Original Message-----

From: James, Terrie Sent: Tuesday, September 25, 2001 2:19 PM To: Lavorato, John Cc: Clark, Mary Subject: RE: Enron Management Conference - Home Video Project

I heard about the videos at your offsite and I'm hoping people will take your lead. VHS shot on someone's Sony will be great! Innovision has also agreed to work with any team to simply provide editing services for them.

As for the \$10,000 figure ... I was concerned that if "outsourcing" wasn't an option, we wouldn't get many entries. But the cheaper the better -- there will be recognition given to the best "independently produced" video.

Thanks for your input and I hope Enron Americas will have a submission. Terrie -----Original Message----- From: Lavorato, John Sent: Tuesday, September 25, 2001 12:54 PM To: James, Terrie Cc: Kitchen, Louise Subject: RE: Enron Management Conference - Home Video Project

You should give zero budget for videos, not 10,000. We did this for our offsite and it worked fine.

-----Original Message-----

From: James, Terrie Sent: Tuesday, September 25, 2001 12:35 PM To: Lay, Kenneth; Whalley, Greg; Frevert, Mark; Causey, Richard; Fastow, Andrew; Koenig, Mark; Delainey, David; Dietrich, Janet; Horton, Stanley; McCarty, Danny; McMahon, Jeffrey; Bowen Jr., Raymond; Sherriff, John; Brown, Michael - COO London; Fallon, Jim; Dimichele, Rich; Lavorato, John; Kitchen, Louise; Mcconnell, Mike; Shankman, Jeffrey A.; Piper, Greg; Beck, Sally Cc: Kean, Steven J.; Olson, Cindy; Clark, Mary; Williamson, Joannie; 'beth.stier@innocom.pv' Subject: Enron Management Conference - Home Video Project

The Enron Management Conference will be held Wednesday through Friday, November 14-16, 2001, at the Westin La Cantera Resort in San Antonio. While the business agenda is still being finalized, there is one thing that is certain ... we want to inject some humor into the event. The past year has been eventful, and at times challenging, for Enron and its employees. However, it's not in Enron's corporate fabric to focus on the past. Instead, we want to look ahead, and even laugh at ourselves. The Management Conference will provide a platform for just that.

We want to challenge each of the business units to develop and submit a humorous "Home Video" to be presented at the Management Conference. The video can address any Enron-related topic that your business unit chooses. However, there are a few rules to follow. 1.) The videos should be no more than five minutes long. 2.) Business units should spend as little as possible on the videos, and no more than \$10,000. Innovision Communications (Beth Stier) has agreed to work with any business unit to help them create an original, inexpensive video. Innovision can be contacted at 713-446-4424. 3.) The videos should be fun, but not disparaging. They should adhere to Enron's values of respect, integrity, communication and excellence. 4.) By Monday, October 15, business units need to notify me of their intention to submit a video. To avoid duplication, business units will also need to identify a topic they intend to address. 5.) To ensure inclusion in the Management Conference agenda, videos need to be submitted to me by Friday, November 9. 6.) Awards will be given for creativity and humor. The first annual, and soon-to-be-coveted, "Enny" will also be awarded for "Best Overall Video."

If you have any questions about the "Home Video" project, please contact myself or Mary Clark.

Terrie James ph. 713-853-7727 terrie.james@enron.com

Mary Clark ph. 713-853-7325 mary.clark@enron.com

Good luck and happy filming! Terrie James

Message 144 of 148

UPDATED TIMELINE CHART

Sender	beth.barrett@ubsw.com
Recipients	[jeff.golden@enron.com] , [david.port@enron.com] , [david.oxley@enron.com]
File	kitchen-l/_americas/netco_restart/18.

All,

Attached please find an updated Critical Timeline Chart for this mornings meeting Changes since late on 1/30/02 include: - New Legal Close date is 2/8/02 - Moved Canadian capital, funding and guarantees to Day 1 - Added HR Critical Mass to Day 0 This available on the UBSW web and will be available shortly on the UBSWEnergy web.

Thanks, Beth 203-719-3206 -----Original Message----- From: Barrett, Beth Sent: Wednesday, January 30, 2002 2:47 PM To: 'Alexander Fusco'; 'Audrey Martin'; 'Beth Barrett'; 'Bill Bradford'; 'Bruce-C Reilly'; 'Cheryl Roberts'; 'Christian Maytain'; 'Claudia Robinson'; 'Colette Dow'; 'Dave Forster'; 'David Oxley'; 'David Port'; 'Ernest Pittarelli'; 'Frank-A Lenti'; 'Jay Webb'; 'Jeff Golden'; 'Jenny Rub'; 'Joel Forbes'; 'Lisa Feld'; 'Louis Eber'; 'Louise Kitchen'; 'Mark Bridges'; 'Mark Haedicke'; 'Mark LeRoux'; 'Mark Wallace'; 'Markus Buerger'; 'Martin Nadel'; 'Mary Barker'; 'Matt Meinel'; 'Matt Meinel'; 'Michael Bolin'; 'Michael Stockman'; 'Natacha Carrel'; 'Neil Davies'; 'Pat ODonnell'; 'Per Dyrvik'; 'Richard Robinson'; 'Rocco Veltri'; 'Sally Beck'; 'Sid Karpoff'; 'Stacey Goodman'; 'Steve Kinross'; 'Steve Russell'; 'Thomas-A Graf'; 'Ursula Mills'; 'Wes Colwell'; 'William Glass' Subject: FW: AGENDA: UBS Warburg/"Energy" integration meeting Thurs. 31 Jan., 9:00 CST, 10:00 EST Importance: High

-----Original Message-----

From: Bridges, Mark Sent: Wednesday, January 30, 2002 1:04 PM To: Barrett, Beth Subject: AGENDA: UBS Warburg/"Energy" integration meeting Thurs. 31 Jan., 9:00 CST, 10:00 EST

Meeting details for Thursday, January 31st at 10:00 AM (EST), 9:00 AM (CT) 15:00 (London) Dial in information: Network: 19-337-0070 For External Dial-in: +1-203-719-0070 Freephone within USA: 1-877-315-5218 Conference Pin: 553815

AGENDA: -Opening Remarks - Pat O'Donnell/Mike Bolin/Louise Kitchen -Program Office - Mark Bridges/Dave Forster
-Issues list -Timeline Update - Lou Eber/Mark Bridges

-Key Issues - Legal Lou Eber/Mark Haedicke - Business Colette Dow/Louise Kitchens - HR Audrey Martin/David Oxley - IT
Matt Meinel/Jay Webb - Ops Ernie Pittarelli/Sally Beck - CRM Bill Glass/Bill Bradford - MRM Mike Stockman/David Port -
FCD Per Dyrvik/Wes Colwell - CRE Markus Buerghler/Jeff Golden - Security Steve Kinross - Corp Comms Claudia
Robinson/Neil Davis - CAS Bruce Reilly/Wes Colwell

-Other business

IMPORTANT!!!The issues list, time line and contact list will be updated on the integration WEB site tonight. Be sure to
print out the necessary information for this meeting on Thursday morning.

UBS Warburg employees can access the integration WEB site by typing: <http://energy.ubs.warburg.energy.llc>
employees need to enter: <http://ubsintegration.corp.enron.com> Please sure your normal login and password.

- timeline_013002.ppt

Visit our website at <http://www.ubswarburg.com>

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solicitation or offer to buy or sell any securities or related financial instruments.

Message 145 of 148

RE: Enron Management Conference - Home Video Project

Sender	louise.kitchen@enron.com
Recipients	['paul.devries@enron.com']
File	kitchen-l/sent_items/996.

What about the actual small video tape in the video camera?

-----Original Message-----

From: Devries, Paul Sent: Wednesday, September 26, 2001 12:55 PM To: Kitchen, Louise Subject: RE: Enron
Management Conference - Home Video Project

Another work of art lost in the world! Calgary didn't make a copy....

-----Original Message-----

From: Kitchen, Louise Sent: Wednesday, September 26, 2001 1:51 PM To: Devries, Paul Subject: RE: Enron
Management Conference - Home Video Project

Mr Haedicke instructed destruction of the videos. As we couldn't tell which was which - they all went.

I would assume Calgary has a copy.

-----Original Message-----

From: Devries, Paul Sent: Wednesday, September 26, 2001 12:45 PM To: Kitchen, Louise Subject: RE: Enron
Management Conference - Home Video Project

Louise, do you have a copy of the Enron Canada video we showed in Beaver Creek? I would like to show it to the Enron Toronto office....

Cheers, Paul D

-----Original Message-----

From: Kitchen, Louise Sent: Wednesday, September 26, 2001 1:34 PM To: Allen, Phillip K.; Arnold, John; Arora, Harry; Baughman, Edward D.; Belden, Tim; Black, Don; Breslau, Craig; Calger, Christopher F.; Collonges, Remi; Davies, Derek; Davis, Mark Dana; Dayao, Anthony; Deffner, Joseph; Devries, Paul; Duran, W. David; Dutt, Ranabir; Forster, David; Foster, Chris H.; Gonzalez, Orlando; Grigsby, Mike; Herndon, Rogers; Josey, Scott; Keel, Allan; Kishkill, Joe; Kitagawa, Kyle; Lagrasta, Fred; Luce, Laura; Martin, Thomas A.; McDonald, Michael; McMichael Jr., Ed; Miller, Don (Asset Mktg); Milnthorp, Rob; Mrha, Jean; Neal, Scott; Parquet, David; Presto, Kevin M.; Redmond, Brian; Shively, Hunter S.; Sturm, Fletcher J.; Swerzbin, Mike; Thomas, Jake; Thompson, C. John; Tricoli, Carl; Tycholiz, Barry; Vickers, Frank W.; Whitt, Mark; Wiggs, Brett; Zipper, Andy; Zufferli, John Cc: Lavorato, John Subject: FW: Enron Management Conference - Home Video Project

Any volunteers to take on this project?

-----Original Message-----

From: James, Terrie Sent: Tuesday, September 25, 2001 12:35 PM Subject: Enron Management Conference - Home Video Project

The Enron Management Conference will be held Wednesday through Friday, November 14-16, 2001, at the Westin La Cantera Resort in San Antonio. While the business agenda is still being finalized, there is one thing that is certain ... we want to inject some humor into the event. The past year has been eventful, and at times challenging, for Enron and its employees. However, it's not in Enron's corporate fabric to focus on the past. Instead, we want to look ahead, and even laugh at ourselves. The Management Conference will provide a platform for just that.

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Terrie James ph. 713-853-7727 terrie.james@enron.com

Mary Clark ph. 713-853-7325 mary.clark@enron.com

Good luck and happy filming! Terrie James

Message 146 of 148

RE:	
Sender	louise.kitchen@enron.com
Recipients	[leslie.hansen@enron.com] , <a href="mailto:'legal <.taylor@enron.com'">[legal <.taylor@enron.com] , [david.forster@enron.com]
File	kitchen-l/sent_items/387.

Its the week-end so I am finally doing my emails.

I forgot to thank Leslie for doing these - so thanks Leslie it was appreciated.

-----Original Message-----

From: Hansen, Leslie Sent: Thursday, January 03, 2002 2:09 PM To: Kitchen, Louise; Forster, David; Carter, Carl; Taylor, Mark E (Legal) Subject:

Attached please find the proposed Electronic Trading Agreement and Password Application for Netco. I have included a clean copy of each document as well as a red-lined copy marked against the version sent to Mark Taylor by Dave and Carl.

You will note that I have made a number of changes to the original EOL documents.

1. The Password Application.

The Password Application contains no substantive changes. I advise that we retain the original description of the website as a platform for the "purchase and sale of products and instruments based on energy products or other commodities (including derivative products)". The description is sufficiently broad to cover any potential expansion beyond the original gas and power products, as well as third party product offerings. After a brief discussion regarding the auction platform with Louise, I revised the PA to reinsert references to the auction.

2. The Electronic Trading Agreement.

There are numerous revisions and additions to the ETA. I outline below a few of the key changes requiring your consideration:

- a. I added a sentence at the end of Section 1 to make clear that in the event the ETA conflicted with any other agreement between the parties, including any terms posted on the Website, the ETA controls.
- b. I added a new Section 2(h) to address Counterparty content posted on any public area of the Website. To the extent that we anticipate such a capability in the future, it may be a good idea to include such a provision. If we do include this section, do we want to limit our license of the content to use on the Website and related materials, as proposed here? If you do not want to include such a limitation, we can add the word "worldwide" to the first sentence before the word "royalty-free" and delete the balance of the final sentence after the phrase "not distorted by displaying only a part)".
- c. I revised Section 3(e) to clarify that Netco is not required to send written confirmations of on-line transactions and to provide that electronic records are admissible as evidence of the transaction. The last sentence of the section is intended to make clear that to the extent the master agreement requires a written confirmation, such master agreement controls, provided that the failure to send a confirmation will not invalidate the transaction.
- d. I added a new Section 4 to address transactions posted by unaffiliated third parties. (This issue was already covered in the last paragraph of the original PA.)
- e. I revised Section 5(a) to clarify that Netco is not liable for any direct damages and to expressly cap its damages to amounts paid by Counterparty for accessing the Website.
- f. I revised Section 5(b) and (c) in response to issues raised by many counterparties when I negotiated EOL ETA issues.
- g. Section 6(a) has been revised to expressly provide that Confidential Information excludes counterparty identifying information, as well as transactional or biographical information in statistical form. Please let me know if you disagree with the scope of this exclusion. If you don't want to exclude counterparty identifying information, we can merely delete the phrase "the identification of Counterpart as a user of the Website and shall also exclude". I added a 1-year term following expiration of the ETA to the confidentiality obligation in Section 6(d), reasoning that most of the confidential information protected by this Section belongs to the Counterparty, not Netco, and thus desiring some cut off point for our obligation to maintain confidentiality.

A number of our counterparties enter into transaction by and through service companies or agents. I have prepared a revised Password Application, side letter to the ETA, and Consent and Acknowledgment form to be utilized by such counterparties and attach these documents below for your review and reference as well.

Please give me a call with any questions or comments.

Regards,

Leslie (713) 853-6121 (o) (713) 256-0572 (cell) (713) 528-5215 (home)

Message 147 of 148

RE: Enron Online case	
Sender	kal.shah@enron.com
Recipients	['louise.kitchen@enron.com', 'rahil.jafry@enron.com', 'cbartlett@hbs.edu', 'christie.patrick@enron.com']
File	kitchen-l/_americas/mrha/ooc/231.

Chris -- In response to your e-mail, here are some quantitative facts that will give your students some insights about the scope of the economic return created by EnronOnline.

1. EnronOnline supports Enron's Wholesale Services division. In 2000, IBIT (Income before interest, minority interests and taxes) for Enron Wholesale Services division rose 72% to \$2.3 billion, with record physical energy volumes of 51.7 trillion British thermal units equivalent per day (TBtue/d) -- a 59% increase over 1999. Both of these growth rates were very significantly higher than growth rates we experienced in previous years. For example, for the past five years, wholesale services earnings have grown at an average compounded growth rate of 48% annually.

2. It took nearly a decade for Enron's daily gas transactions in North America to reach 13.9 bcf in 1999. Just 12 months later, EnronOnline had helped to practically double daily transactions to 24.7 Bcf.

If you have any questions on this, please call me at 713 853 9354. Thanks

Kal Shah EnronOnline

-----Original Message-----

From: Kitchen, Louise Sent: Friday, May 04, 2001 8:39 AM To: Patrick, Christie Cc: cbartlett@hbs.edu; Kal Shah/HOU/ECT@ENRON Subject: Re: Enron Online case

Hello Chris and Christie,

I have asked Kal Shah to run with getting you what you need to ensure that you will have a contact during my absence. I have copied Kal on this email and hope that this works for everyone.

Thanks

Louise

Christie Patrick 05/03/2001 01:12 PM To: cbartlett@hbs.edu cc: (bcc: Louise Kitchen/HOU/ECT)

Subject: Enron Online case

Hi Chris!

Thanks for the message and the great experience at Harvard last week! Harvard's hospitality was the best!!

I'm travelling right now and only have a minute, but I've passed along your request to Louise and will follow up with her and the totality of your request on Monday. (I also told Louise she was a "star in absentia" at Harvard last week!!!)

Take care and we'll speak soon!

Best!

--Christie. ----- Forwarded by Christie Patrick/HOU/ECT on 05/03/2001 01:02 PM -----

Christopher Bartlett <cbartlett@hbs.edu> on 05/03/2001 09:33:48 AM To: christie.patrick@enron.com cc:

Subject: Enron Online case

Christie:

Following up on my message of last week, I have now finished the minor edits required to clarify the Enron Online case (correcting the stock price, clarifying the "One to Many" versus "Many to Many" models of trading, etc.). The one piece that remains for me to insert is some information that will allow the students to make some estimates about the economic risk involved in this bold move. I know that wholesale services contributed about 89% of Enron's total profit in 1999, but it is unclear what extent of this was provided by the traditional trading activities that subsequently were enhanced by Enron Online. My suspicion is that it is the majority of the sales volume, and perhaps the majority of profitability, but if we could give some clue to that in the case, it would be helpful. This might simply be that "trading activities constituted the majority of wholesale services profits" or "the vast majority" or "over 80%" or whatever you think would give the students some sense of quantification. The alternative might be to provide data that was disguised and could be footnoted as such. For example, we could identify that trading contributed "over \$750 million to Enron's net profits" with that number footnoted as a disguised figure.

The other thing that would be very helpful would be again to provide some data on the profitability of operations in 1999 versus the profitability in 2000 when Enron Online became a dominant part of its activities. Once again, we could include broad-level generalizations or disguised data. It's your choice, but it will give the students a sense of the size of the issue facing them.

If it is helpful to talk about this in person, please feel free to call me on 617-495-6308 today (Thursday); or tomorrow (Friday) in the afternoon at 802-457-1880.

Once again, thanks so much not only for the cooperation on the case, but also for the terrific organization you did in getting your executive team up here for last week's classes. I think you probably realized that it was a "home run" with the students, who are still talking about it.

Best wishes, Chris

<Embedded Picture (Device Independent Bitmap)> <Embedded Picture (Device Independent Bitmap)>

Message 148 of 148

Enron Mentions

Sender	m..schmidt@enron.com
Recipients	[]
File	kitchen-I/_americas/sec_media/71.

AT ENRON, THAT RUN-DOWN FEELING BusinessWeek, 10/29/01

PRESS RELEASE: Enron Corp Outlook Now Negative By S&P 2001-10-25 17:24 (New York)

Concerned Energy Cos Make Few Changes In Enron Dealings Dow Jones Energy Service, 10/25/01 Enron woes fuel online energy trade jitters Reuters, October 25, 2001 Enron's Trading Partners Say It's Business as Usual (Correct) Bloomberg, 10/25/01

Kenneth Lay Resigns from i2 Board of Directors Business Wire, 10/25/01 Average Investors Need Access to Good Info About Bonds RealMoney.com, 10/25/01

Enron shares finish lower CBSMarketWatch.com, 10/25/01

Selective buying wipes out early losses Associated Press Newswires, 10/25/01

Stock of the Day: Enron CNNfn: The Money Gang, 10/25/01

In Business This Week AT ENRON, THAT RUN-DOWN FEELING Edited by John Protos

10/29/2001 BusinessWeek 40 (Copyright 2001 McGraw-Hill, Inc.)

The good times are looking even farther away for Enron. The company's inability to extend its energy-trading model to some other commodities is proving increasingly costly. On Oct. 16, the nation's top natural-gas trader and leading wholesale electricity marketer reported a \$1.01 billion charge. Among other things, that covers recent forays into broadband and water trading--as well as the unraveling of a pair of limited partnerships. Those partnerships had raised questions about conflicts of interest. Until recently, they had been overseen by the company's CFO, Andrew Fastow, even though they were outside entities that bought assets from Enron. The aftertax charge was one reason the company posted a \$618 million loss in the third quarter, vs. a profit of \$292 million in the year-ago period. Without the charge, Enron would have shown a profit of \$393 million for the quarter.

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PRESS RELEASE: Enron Corp Outlook Now Negative By S&P 2001-10-25 17:24 (New York)

Following is a press release from Standard & Poor's:

NEW YORK (Standard & Poor's) Oct. 25, 2001--Standard & Poor's today affirmed its ratings on Enron Corp. (triple-'B'-plus/'A'-2') and subsidiaries and revised its long-term ratings outlook to negative due to concerns that the significant drop in market capitalization in the past week has adversely affected the company's financial flexibility and could impede management's ability to pursue plans to rebuild its balance sheet. (A complete list of ratings is available on RatingsDirect, Standard & Poor's on-line credit research service, or by calling the Standard & Poor's Ratings Desk at (1) 212-438-2400.) Ratings for Portland General Electric Co. remain on CreditWatch with negative implications pending the announced acquisition of Portland by Northwest Natural Gas Co.

Enron expects to use asset sales proceeds over the next year to restore its balance-sheet strength to a level that is consistent with the current ratings. The negative outlook acknowledges the potential for erosion of the company's credit quality as investor confidence in the company's management has waned and concerns have arisen about the possible long-term effects on their core marketing and trading business. Standard & Poor's is closely monitoring Enron's capital needs and liquidity position, which are crucial to the continued success of its core business operations, and does not believe the company is threatened by liquidity concerns. Enron will be challenged to economically convert its sizable portfolio of non-strategic assets into cash to reduce debt and strengthen its balance sheet.

Despite the negative outlook, several factors supportive of Enron's credit quality have been sustained throughout the uncertainty surrounding the company. The fundamental strength of Enron's energy marketing and trading franchise has remained steady. Standard & Poor's has detected no lapses in the company's risk management practices and trading discipline. No significant deterioration in trading volumes or willingness of counterparties to transact with Enron has been revealed to Standard & Poor's in contacts with major energy market participants.

Moreover, the strategic direction of the company is likely to become more credit-positive in the wake of recent management changes. The prior emphasis on growth initiatives and the constant need for new capital to fund those initiatives have constrained credit quality, and if the company is led to concentrate on its core energy businesses and refrain from committing capital to more speculative ventures in the future, the credit profile will improve as the company proceeds with the strengthening of its financial position. Assurances from the top levels of Enron management that the company will maintain its commitment to its credit quality and that no steps are being taken to support the company's common stock price at the expense of credit quality provide further support for Enron's ratings. **OUTLOOK: NEGATIVE** The negative outlook for Enron is based on the considerable challenges facing the company as it attempts to reduce balance-sheet leverage through asset dispositions in a timely manner. Any shortfall in the company's willingness or ability to restore the balance sheet through sales proceeds and new equity issuances would result in a ratings downgrade. Current ratings will be stabilized if the company can successfully reduce financial risk while maintaining the ability of its operations to produce sustainable cash flow and earnings without increasing its business risk.

Concerned Energy Cos Make Few Changes In Enron Dealings By Mark Golden, Kristen McNamara, Jon Kamp and John Edmiston Of DOW JONES NEWSWIRES

10/25/2001 Dow Jones Energy Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

NEW YORK -(Dow Jones)- Energy trading companies have concerns about the credit quality of troubled Enron Corp. (ENE), but they have made almost no changes in policies concerning the top trader of North American power and gas, the companies said Thursday. The concerns have arisen because Enron, which accounts for about a quarter of the trade in the country's power and gas markets, has seen its share price fall by a third this week due to uncertainties about its extremely complex financial structure. Moody's has put Enron's credit on watch for possible downgrade, and some of the company's debt is trading like junk bonds in the secondary market this week. "We have made no changes to our credit policy concerning Enron," said John Sousa, chief spokesmann for Dynegy Inc. (DYN). "It's business as usual." Williams Cos. (WMB) spokesman Jim Gipson said that his company, too, has made no changes and has no concerns about Enron's credit. Another Top 10 power and gas trading company, Aquila (ILA), has also left Enron credit unchanged. Other companies expressed concern, though they've taken little if any action. "Like everyone else in the marketplace, we're proceeding with caution," said Lora Kinner, director of credit for Tractebel Energy Marketing, the North American subsidiary of the Belgian company Tractebel S.A. Kinner said the company is just looking for more information and doesn't expect to make any drastic changes.

Like many utilities, the Public Service Co. of New Mexico (PNM) is "monitoring the situation." So is Aquila, said Mark Gurley, general manager of trading at the company. "We haven't altered our credit policy at all," Gurley said. But if Enron's credit rating slips, "our tolerances for risk with them would go down," he said. A trading manager for another energy company said that all energy and financial companies that have dealings with Enron are assessing their exposure. But that manager's company has made no changes and doesn't expect Enron to have cash liquidity problems. One large firm has been limiting the credit it extends to Enron for the past month. A ga